Moree Plains Development Control Plan 2013

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1. INTRODUCTION

This plan is known as the Moree Plains Development Control Plan (DCP) 2012. It applies to the Shire of Moree unless otherwise specified elsewhere in this Plan.

The DCP was adopted by Council on 31 January 2013.

This DCP repeals Moree Plains DCP (2008) which was adopted by Council on 5 June 2008.

Chapter headings in this DCP generally follow the same sequence as DCP 2008. It may be necessary to refer to more than one chapter to ensure that all relevant controls are applied to any specific development. Applicants are encouraged to consult with Council to ensure applicable policies are considered, and to undertake a formal pre-lodgement meeting with Council as part of early considerations for any application.

Where special circumstances exist, the General Manager or Council staff acting under delegation may require standards greater than those specified as acceptable solutions in this Development Control Plan. Alternatively, Council may, at its discretion, relax the requirements of this DCP where these are considered unreasonable or unnecessary in the circumstances of the case, and where the Development Control Plan's objectives will not be compromised and the performance outcomes of the plan would still be achieved.

AMENDMENT OF THE PLAN

The plan may be amended in accordance with the provisions of the Regulations under the EP&A Act, 1979.

REPEAL OF THE PLAN

The plan may be repealed under the provisions of the Regulations under the EP&A Act 1979.

RELEVANT LOCAL ENVIRONMENTAL PLAN

The plan relates to Moree Plains Local Environmental Plan 2011, as amended. In the event of any conflict between this DCP and that Plan, the Local Environmental Plan takes precedence.

NOTES

Notes (in italics) are for guidance and do not form a legal part of this plan.

DEFINITIONS

Within this DCP words have the meaning as set out in the Dictionary to Moree Plains LEP 2011. The DCP adopts the following specific meanings as outlined in this clause:

"1% AEP Flood" means the flood with a chance of occurrence of one in one hundred in any one year. *Note: This is the preferred description of the 1:100 year ARI event*;

"5% AEP Flood" means the flood with a chance of occurrence of five in one hundred in any one year. *Note: This is the preferred description of the 1:20 year ARI event*;

"**10% AEP Flood"** means the flood with a chance of occurrence of ten in one hundred in any one year. *Note: This is the preferred description of the 1:10 year ARI event*;

"above awning sign" means a sign located on top of an awning or verandah;

"adjoining land" means land which abuts an application site or is separated from it only by a roadway, pathway, driveway or similar thoroughfare;

"advertising" is where Council, in addition to writing to those persons required to be notified, places an advertisement in a local paper and a sign on the application site, advising of the submission of a development application.;

"affected person" means a person who owns or occupies adjoining land or neighbouring land the enjoyment of which may, in the opinion of Council, be detrimentally affected by a proposed development;

"AHD" means Australian Height Datum;

"ancillary development" means development on land for a purpose that is ancillary or incidental to a use under the Moree Plains LEP 2011;

"ancillary development (minor)" means development on land for a purpose that is ancillary or incidental to a purpose of parking, loading facilities, the erection of tool houses, haysheds, stables, fowl houses or the like;

"application site" means the parcel of land to which a Development Application relates, and includes all lands required for the carrying out of the application proposal;

"area" of an advertisement in the form of a sign means the area within the outline of that sign or, where one side is larger than the other, the area within the outline of the larger side; or for any other sign (e.g multi-sides signs), one third of the total surface area of the sign;

"banners, flags, bunting sign" means a sign of lightweight material secured so as to allow movement;

"below awning sign" means a sign fixed below and awning;

"billboard sign" means a sign situated and supported independent of a building structure;

"blimps, balloon sign" means an advertising device which is inflated and suspended above the premises, site or event which it is intended to promote or identify;

"commercial facilities and services" means those businesses established within the Shire which provide commercial support or services to the members of the community;

"commercial/industrial development" has the meaning prescribed in the Building Code of Australia;

"design floor level" means the proposed reduced level (to AHD) of the habitable rooms of a building;

"directional sign" means a sign erected for purposes of directing vehicular or pedestrian traffic, advising or restricting the public;

"directory sign" means a sign containing an advertisement, which refers only to the name of the proprietor, premises, the use and the address (including telephone number) and also includes an identification sign containing a list of businesses occupying a shared tenancy for the same premises;

"fascia sign" means a sign which is painted on to or attached to the fascia or return of an awning, but does not exceed the height of the fascia or return of the awning;

"flood evacuation centre" means a designated area where persons can be safely accommodated during a 1% AEP or more severe event, when evacuation from premises is considered appropriate;

"flood investigation report" means a report prepared by an appropriately qualified and experienced professional that reviews the history of flooding in an area, where modelling is not available;

"flood management plan" means a plan prepared to address flooding risks to life and property for an individual development or dwelling.

"floodplain risk management plan" means a plan adopted pursuant to the principles of the Floodplain Development Manual;

"flood proofing mound" means an earth structure intended for the purpose of providing a level of protection against flooding.;

"flood plain development manual" means the NSW Government Floodplain Development Manual the management of flood liable land dated April 2005 as Gazetted by the NSW Government on 6 May 2005;

"flood planning level" means the level of a 1% AEP (annual exceedance probability) flood event plus 0.5 metre freeboard as adopted by Moree Plains Local Environmental Plan 2011.

"flood storage area" (flood impact category) means a planning control for the purpose of limiting development that would displace floodwater;

"floodway" (flood impact category) A planning control within a floodplain risk management plan for the purpose of excluding buildings, earth embankments and other forms of development from an area of land where significant volume of water flows during floods;

"floor height certificate" means certification from a registered surveyor confirming that the floor height level achieves at least the required height as set out in the flood information certificate;

"hazardous material" means a material which contains significant quantities of any substance, which if accidentally released into flood waters would pose a significant risk in relation to the locality, to human health, life or property; or to the biophysical environment;

"home occupation/industry sign" means a sign attached to the dwelling, bearing only the name and occupation of the occupier with an area not exceeding 0.75m^2;

"illuminated sign" means any signs illuminated by an internal or external source of light and includes reflectorised or luminous advertising devices;

"integrated development" is development (not being Exempt or Complying) that, in order for it to be carried out, requires development consent and one or more approvals set out in Section 91 of the Environmental Planning and Assessment Act 1997.

"land" includes any building or part building erected on the land;

"life hazard category" means one of three life hazard categories, determined by the probability that the land, or its access would be inundated. L3 life hazard categories are areas that are potentially subject to inundation in the 10% AEP event, thus requiring high frequency of evacuation. L2 life hazard categories are areas that are potentially subject to inundation in the 1% AEP event, thus requiring moderate frequency of evacuation. L1 life hazard categories are areas that are potentially subject to inundation in the PMF event, thus requiring low frequency of evacuation.

"minor extension (dwelling)" means an extension or extensions of an existing dwelling to a maximum increase of ground floor area of 30% or an additional area of 50m^2 from the ground floor space (whichever is the greater) as existing at 2 September 1997. Ground floor area is taken to be that area of the dwelling as adapted from the definition of "gross leasable floor area" in the Model Provisions with respect to floorspace, namely:

"…the area … is taken to be the area within the outer face of the external enclosing walls as measured at a height of 1,400 millimetres above each floor level excluding:

1. Columns, fin walls, sun control devices and any elements, projections or works outside the general line of the outer face of the external wall,
2. Lift towers, cooling towers, machinery and plant rooms and ancillary storage space and vertical air-conditioning ducts,
3. Car-parking … and any internal access thereto.

Open verandahs, and patios, storage space (non-habitable) and car parking are specifically excluded, although service areas such as bathrooms and laundries are included.

"minor extension (enclosure)" means enclosure of an existing open verandah, patio, or car parking area beneath the existing roof of the building whether or not the area is to be used as a habitable room.

"minor extension (other building)" means an extension or extensions of an existing building to a maximum increase of ground floor area of 10% from the ground floor space as existing at 2 September 1997. Ground floor area is taken to be that area of the building as adapted from the definition of "gross leasable floor area" in the Model Provisions with respect to floorspace, namely:

"…the area … is taken to be the area within the outer face of the external enclosing walls as measured at a height of 1,400 millimetres above each floor level excluding:

1. Columns, fin walls, sun control devices and any elements, projections or works outside the general line of the outer face of the external wall,
2. Lift towers, cooling towers, machinery and plant rooms and ancillary storage space and vertical air-conditioning ducts,
3. Car-parking … and any internal access thereto".

Open verandahs, and patios, storage space (non-habitable) and car parking are specifically excluded, although service areas such as bathrooms and laundries are included.

"minor building development" means swimming pools, storage areas, sheds, carports domestic garages and the like;

"moving sign" means a sign with movement, flashing, colour changes and the like;

"neighbouring land" means any land, other than adjoining land, which is near to a development site (and may include land in a neighbouring local Council area or State);

"notification plan" means the plan showing the height and external configuration of buildings, which accompanies a Development Application and includes such details as described in the DCP;

"owner" means:

1. The person or persons who appear on Council's computer property records to be the owner of the land at the date of notification
2. In the case of land that is the subject of a strata scheme under the Strata Titles Act 1973, or a leasehold strata scheme under the Strata Titles (Leasehold) Act 1986, the Owners' Corporation
3. In the case of land that is community, precinct or neighbourhood parcel within the meaning of the Community Land Development Act 1989, the Association for the parcel;

"pole or pylon sign" means a sign situated and supported on a pole or pylon independent of a building structure;

"portable footpath/A-frame sign" sign means a small freestanding, portable advertising device located on footpaths and areas utilised for pedestrian traffic and includes sandwich boards and shall not exceed 1 square metre and must be located within 1.5 metres of the building line;

"probable maximum flood (PMF)" means the largest possible flood that could conceivably occur. In the absence of detailed study analysis of the height and flow volume of the PMF flood, for the Gwydir / Mehi system at Moree and environs, it is taken as 1.00m above the 1% AEP flood;

"projecting wall sign" sign means a sign, which is attached to a wall and projects more than 300mm from the wall;

"property hazard category" means one of three property hazard categories, determined by the combination of depth and velocity where the energy of the flood flow would not have a detrimental effect on certain classes of structures. P3 property hazard categories represent potential instability for conventional light framed structures. P2 property hazard categories represent potential instability for light structures, such as caravans, manufactured homes and shipping containers. P1 property hazard categories do not present any instability issues for most structures;

"residential development" means dwellings, residential flat buildings, motels, boarding houses, hostels, caravan parks, units for the aged and any place where persons would ordinarily be expected to reside and sleep;

"sky, roof and fin sign" means any sign erected on or above a roof or parapet wall of any building, which is supported, wholly or partially, by the building;

"stationary vehicle sign" means any sign erected on a stationary vehicle and includes trailer signs, affixed to cars, trucks, buses and the like;

"structural adequacy certificate" means certification from a practicing structural or civil engineer with experience in flooding that a proposed development can withstand the expected flood velocities, including scour, debris and buoyancy forces;

"temporary" sign means a sign erected on a temporary basis and includes real estate signs, election signs, community or civic purpose signs, garage sale signs and the like;

"tourist facility" means an establishment providing holiday accommodation or recreational facilities, or both on a short term basis, and may include:

1. Hotels, motels, bed and breakfast accommodation, serviced apartments, holiday cabins, caravan parks, camping grounds, houseboats, and associated swimming pools, golf courses, tennis courts; and
2. Restaurants; and
3. Souvenir shops, arts and craft galleries and exhibition centres;

"top hamper" sign means any sign erected on the wall of the building directly below the awning;

"wall sign" means a sign affixed or painted directly onto an exterior wall building, bus shelter or other structure;

"window sign" means a sign painted or displayed on the exterior or interior of a shop window or any glazed surface of the building or the building or other structure;

2. PARKING

ABOUT THIS CHAPTER

This chapter of the DCP has been prepared as a guide to Council's requirements in connection with the provision of car parking, access and loading facilities as part of development works within the Moree Plains Shire. The chapter supports desired growth while protecting traffic and pedestrian flows.

WHERE THIS CHAPTER APPLIES

This chapter applies to all zones under Moree Plains Shire Local Environmental Plan 2011.

GENERAL ADVICE TO APPLICANTS FOR DEVELOPMENT

Aims and Objectives:

To provide a guide for the provision of parking, associated with development in Moree Shire in order that:

1. Traffic safety and management are maintained or improved;
2. Parking areas are provided that are convenient, functional and sufficient for use;
3. A balance is achieved between the needs of the proposed use and of vehicular and pedestrian traffic; and
4. Parking areas, once established, are maintained in an adequate condition that continues to provide facilities that comply with those required when development consent was granted.

PARKING REQUIREMENTS

General

1. The provisions of this chapter will be applied to new development. The provisions of this chapter will also be applied to the extension of an existing building or works as if it were an independent development.
2. Off-street car parking provision now provided to existing developments shall be retained. Additional parking spaces required for any new development or redevelopment shall comply with the provisions of this document.
3. In the case of a change in the use of an existing building, Council will apply the provisions of this DCP if it considers that the proposed new use will produce a substantially different parking requirement than those attributable to the existing use.
4. The total number of on-site parking spaces provided in association with new development shall be in accordance with the recommended ratios set out in this chapter as appropriate, subject to any qualifications or exceptions which may be applicable in the circumstances of the case. In this regard parking proposals that provide less parking than required by this chapter shall be supported by a parking study. *(Note the specific definition of Gross Leasable Floor Area in the notes to the Standard of Provision Table below.)*
5. In the event of a conflict between this document and an Australian Standard, the Australian Standard will prevail.

PROVISION OF PARKING SPACES

Aims:

1. To provide accessible car parks.
2. To provide sufficient car parks to serve the needs of particular developments.

Performance Outcomes:

1. New car parks are sufficient in number and design to provide appropriately for the needs of new developments.
2. All parking bays must be readily accessible and an adequate area is provided for the turning and manoeuvring of vehicles.

Acceptable Solutions:

1. The provision of on-site car parking at the rate set out in Table 2.1 for any particular type or category of development.
2. Car parking is provided on the site of the development.
3. The layout and dimensions of car parking areas is in accordance with the design standards and principles as set out in Table 2.1 and Figure 2.1.
4. All required car parking areas, driveways, turning areas and loading areas are paved in either a bitumen seal coat, asphaltic or bituminous concrete, cement concrete, concrete paving blocks, or brick paving blocks, except on industrial zoned land, where discretion shall be with the Director of Planning and Environment. *Note: The standard of paving required will be dependent upon the type of development proposed, with regard to traffic loadings including turning movements of heavy vehicles.*
5. In villages and rural areas paving to driveways, turning areas, loading areas and car parking areas are all weather. *Note: with surface materials to be at the discretion of the Director of Planning and Development.*
6. All parking spaces are suitably marked by lines or spaces indicated by other approved means.
7. Free and interrupted access to car parking areas is maintained at all times.

Note: No account shall be taken of spaces, which do not have direct access to a driveway, or which are double banked (except where specific provision is made for tandem or "stack" spaces) or obstructed in any way when assessing the car parking spaces provided.

Alternative Approaches and Design Suggestions:

A design that complies with the relevant Australian Standard and/or any relevant State Environmental Planning Policies will be considered.

While the Council would normally expect the provision of car parking to be on the site of the development, Council is prepared to consider the provision on other land owned or leased by the developer provided that the alternate location is convenient to the subject development and will satisfy the requirement, and an appropriate legal mechanism is put in place to ensure the ongoing availability of the off-site parking for the life of the development.

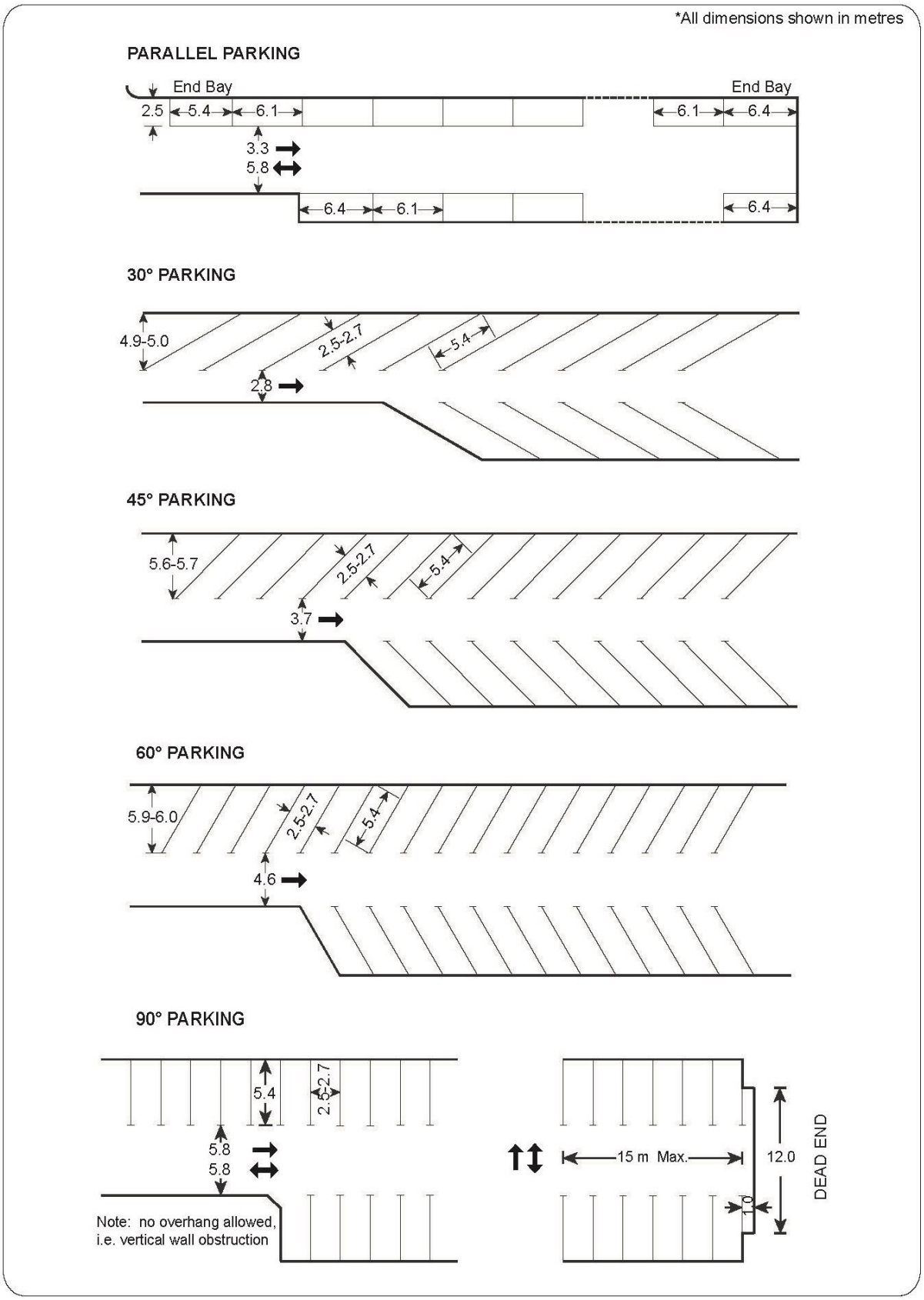


Figure 2.1 *Recommended car park layout configurations*

Table 2.1 Car Park Provision - Acceptable Solutions

Land and building use	**Rate of Provision**
Boarding houses, hostels, unlicensed hotels, guests houses and similar uses	1 space per 3 guest rooms, plus 1 space for a manager, plus 1 space per 3 employees or part thereof.
Bowling clubs	30 spaces per green or rink
Brothels	2 spaces per room used for prostitution plus one 1 space for each employee;
Catering and reception premises	1 space per 3 guests
Drive in, take away food van	5 spaces
Detached Dwellings (single units)	2 spaces (stack parking permitted) per dwelling.
All Educational Establishments	Council will require the provision of on-site set-down and pick-up areas for buses and cars taking students to or from the school or colleges. Specific requirements depending on the educational use must also be met. Consultation with Council is strongly suggested as part of the site design process.
Pre-school, infants and Primary schools	1 space per staff employed
Secondary schools	1 space per staff employed, plus 1 space per 10 senior students (Years 11 and 12)
Tertiary schools and Colleges	1 space per staff employed, plus 1 space per 5 students, plus 1 space per live-in student where residential accommodation is provided
Dual Occupancy/Duplex Residential Buildings i.e. a residential flat building containing two but no more than two flats such as duplex, maisonettes or semi-detached dwellings.	One or two bedroom* unit: 1 on-site car parking space per unit Three bedroom unit: 2 on-site car parking spaces per unit.
Residential flat buildings i.e. more than two dwellings	One bedroom unit: 1 space per unit Two bedroom unit: 1.2 space per unit Three bedroom unit: 1.5 spaces per unit; Visitors parking: 1 space for every 4 units or part thereof.

Land and building use	Rate of Provision
Hospitals, nursing homes and similar institutions	1 space per 3 beds, plus 1 space for each resident or staff doctor, plus 1 space for each three employees
Industries (other than motor vehicle repair workshops)	1 space per 2 staff employed, or 1 space per 100 square metres of gross leasable floor area (whichever is the greater)
Licensed hotels, clubs and restaurants	1 space per guest room or unit, plus 1 space for manager, plus 1 space per 7.5 square metres of bar, Lounge, restaurant service areas
Motels	1 space per unit, plus 1 space for manager, plus 1 space per 7.5 square metres of bar, Lounge, restaurant service areas
Motor vehicle repair workshops (includes panel beating and spray painting workshops, general repair or servicing of motor cars and light commercial vehicles and trucks)	1 space per 60 square metres of gross leasable floor area
Motor vehicle showrooms and display areas	1 space per 100 square metres of gross leasable floor area of the building plus 1 space per 320 square metres of open display area – *Note: this assumes one space is required per 16 cars displayed. One car display – equals 20 square metres*
Offices, including banks, professional offices and other similar uses	1 space per 50 square metres of gross leasable floor area
Places of worship, mortuary, chapels, church halls and similar uses	1 space per 10 seats, or, if no seats, 1 space per 10 square metres of gross leasable floor area
Restaurants, refreshments rooms and cafes (where no liquor license is required)	1 space per 10 square metres of service area
Shops, (not including supermarkets), department stores and the like.	1 space per 35 square metres of gross leasable floor area
Service stations	3 spaces for service station use, with additional spaces to be provided for other on-site uses in accordance with Table 3.1.
Squash courts, tennis courts and bowling alleys	3 spaces per court or alley
Sports stadium	1 space per 10 seats
Supermarkets	1 space per 20 square metres of gross leasable floor area
Theatres, concert halls, cinemas and similar uses	1 space per 10 seats

Land and building use	Rate of Provision
Home for aged persons	1 space per 5 units plus 1 space for resident manager or as per requirements under SEPP (Housing for People with a Disability), whichever is the lesser
Industrial warehouses	1 space per 100 square metres

Note: This DCP defines parking standards for a number of uses, which are the most frequently encountered. The Council will define a requirement for uses not referred to in the DCP according to the merits of the specific case. The RTA Guide to Traffic Generating Development may be utilised in this instance, noting that this document requires updating and may not be relevant in all instances.

Explanatory Notes

1. *In this chapter Gross Leasable Floor Area means the overall usable area of the building excluding amenities, stairways, lift wells and plant rooms.*
2. *Ancillary or incidental uses will be assessed as part of the main user of the building i.e. the office of a supermarket will be included in the area of the supermarket and will not be treated as a separate office use.*
3. *A use comprising a combination of two or more uses such as combined motor sales and repairs will be assessed as if the two uses existed independently and the required on-site parking provisions will be the aggregation of the independently derived requirements.*
4. *For the purpose of Table 2.1, "bedroom" is taken to be any room which would be available for use as a bedroom without structural alteration to the dwelling.*
5. *The parking provision for restaurants and function rooms may be reduced where it is demonstrated that the time of peak demand for parking associated with each facility does not coincide or where common usage reduces total demand. Each case will be considered on its individual merits.*
6. *If the calculation of required car spaces results in a non-integer value such as 3.6, then this should be rounded up or down according to the following rule:*
    a. *Partial values less than 0.5 can be rounded down (e.g. 2.4 can be rounded down to 2)*
    b. *Partial values of 0.5 or more should be rounded up (e.g. 2.5 and 2.7 would both be rounded up to 3)*

GENERAL PROVISIONS FOR CAR PARKING AREAS

Aims:

1. To provide car parks and related infrastructure to acceptable standards of construction.

Performance Outcomes:

1. Parking operations are logical and the circulation pattern clearly defined through the use of appropriate traffic management measures.
2. The number of conflict points between vehicles, and between pedestrians and vehicles, is minimised.
3. For one-way traffic, circulation is in the clockwise direction.
4. Solid walls or other obstructions to visibility are avoided on the inside of tight turns.
5. Blind aisles longer than 15 metres are avoided.

6. Entry/exit points are clearly marked so as to avoid any confusion. Within the car park, signs are provided where necessary so that drivers wishing to leave the car park may do so by the most efficient route. Signposting is easily seen and understood.
7. One-way markings are clearly set out on the pavement in such a manner as to be easily readable and understandable to the users of the car park.
8. All parking bay delineations, arrows and other information for drivers painted on the pavement are marked using white (or high-contrast) paint or approved markers. Delineations are not less than 75mm or greater than 100mm wide.
9. Note: In certain situations, the installation of signs to Council's satisfaction may be required over and above the normal requirements. Signposting and line-marking will assist to prevent the choking of the aisles and contribute to the general ease of use of the facility. Details of all proposed signposting and marking for parking areas are to be submitted with the development application for Council's consideration.
10. Where the development generates a reasonable volume of traffic, separate entry and exit locations are provided with suitable separation between the access points.
11. Good visibility is provided at these locations and longitudinal grades provide for a holding area within the property.
12. Good sight distance is provided onto footpath areas from vehicles leaving car parking areas.
13. Garages in residential development are capable of easy entry and exit.
14. Grades of parking areas are minimised, consistent with achieving adequate drainage.
15. Headroom for undercroft (or underground) parking is sufficient to cater for the vehicles anticipated to use the development.
16. Turning circles cater for the range of vehicle sizes anticipated to utilise the site.
17. Loading docks provide easy and convenient access for the service vehicles likely to utilise the site.
18. Provisions are made in the design of loading docks so that delivery vehicles do not conflict with customer traffic.
19. Parcel pickups are located so as to provide convenient access, including safe pedestrian access to vehicles and to avoid conflict with other vehicle movements.
20. Note: In examining any proposal for a parcel pick-up, the following points will be considered:
21. Storage of vehicles approaching the parcel pick-up.
22. A minimisation of the effect of these stored vehicles on the general flow within the car park.
23. Location of parcel pick-up within the car park
24. Physical separation of through traffic lanes not concerned with the parcel pick-up from parcel pick-up lanes. The purpose of this requirement is to prevent vehicles stopping in the exit aisle and causing further congestion.
25. The provision made for the removing of exhaust fumes from idling cars in covered areas.
26. Shade is provided to improve customer comfort in all customer parking areas.
27. Pedestrians are separated from vehicular traffic as much as physically possible.
28. Ramps are designed to as to avoid damage to vehicles and to provide adequate visibility.

Acceptable Solutions:

1. Compliance with Australian Standard AS2890 Part 1 and Part 2
2. Any blind aisles are:
    a. Less than 15m in length;
    b. A minimum of 6.5 metres wide;
    c. Clear of all obstructions;
    d. Provided with a manoeuvring area at the blind end of the aisle being a 2.5 metre extension of the aisle past the end of the last parking space; and
    e. Allocated, where possible, for staff or other non-customer vehicles.
3. Where aisles are, in effect, internal roads leading to parking areas or individual garages, such as occur in villa home type developments, the following minimum dimensions are provided:
    a. Minor access aisles: 6m
    b. Minor feeder two way aisles: 5m
    c. Separations of entry and exits comply with Tables 2.2 and 2.3.

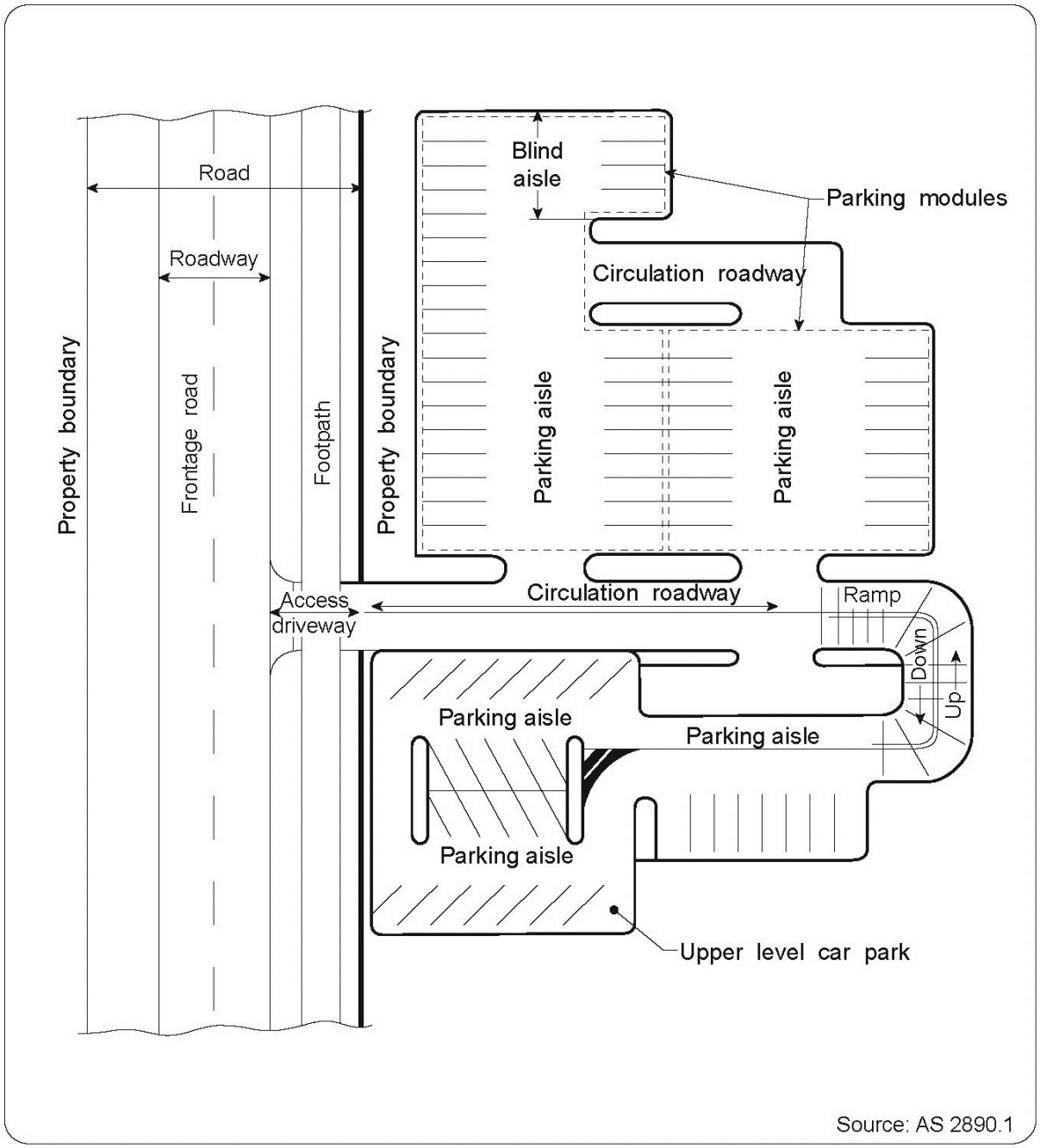


Figure 2.2 An example of a car park layout showing various design elements

4. Holding areas have a maximum grade of 5% for a distance of not less than 6 metres in length immediately behind the road boundary. *Note: For less intense traffic generating developments this distance may be reduced to 3 metres.*

5. The design of access points and internal circulation areas is such that entry to and exit from the site is made by driving in a forward direction. *Note: The reversing of vehicles onto the street will not generally be accepted, except for single residential dwelling houses. Some minor relaxation may be permitted in this matter depending on the conditions of the site, the location of the site and the nature of the development.*

6. Access points are in accordance with the restrictions in Figure 2.4. Note: The minimum driveway width at the entry/exit points is to be selected having regard to the footpath crossing width.

7. When garages are provided in parking areas associated with residential developments, the following minimum dimensions are achieved:

    a) Minimum internal width: 3.0m

    b) Minimum width between door jambs: 2.75m

    c) Minimum aisle widths to allow adequate access to garages are:

    - 6.7m where the door jamb width is 2.75m
    - 6.2m where the door jamb width is 2.90m

8. In a large residential development of 12 or more dwellings of the type which includes building back from the street, provision is made for delivery vehicles, etc. to be accommodated close to a suitable entrance to the building. These vehicles are able to drive in a forward direction when both entering and leaving the site.

9. For residential developments of 12 units or larger, provision is made for off-street collection of garbage from a mobile compaction unit. Provision for the access of such vehicles to the collection point is required. *Note: These units may require loading from the sides and sufficient room is necessary to allow easy access to the loading area of the unit by the operators.*

10. The maximum acceptable grade for sloping parking is 10%. For all areas the minimum longitudinal grade and the minimum cross-fall grade is as shown in Table 2.4. *Note: Minimum crossfall requirements should be met wherever possible; however, the relatively flat grades in Moree and the villages may mean that this cannot be achieved. If this is the case, then advice should be sought from Council.*

11. The minimum clear head room achieved in an undercover parking area which will be used by passenger vehicles only is 2.3 metres. Where vehicles other than passenger vehicles would use an area, the minimum clear head room achieved is 4.6 metres. *Note: On sites where it is certain that van type vehicles are the largest vehicles which will use the area, a minimum clear head room of 2.6 metres may be considered. Particular attention must be paid to head room requirements at ramps.*

12. Turning circles are calculated using the 85th percentile vehicle (Figures 2.5 – 2.8), and for trucks appropriate turning templates from AS2890 Part 2 are utilised for rigid and articulated vehicles (Figures 2.9 – 2.14), as required to service the development.

13. Loading docks provide for the relevant design vehicle that will serve the development. *Note: The provisions of AS2890.2 are applicable.*

14. Parcel pickups are designed following Clause 4.5 of AS2890.1

15. Shading is provided to at least 30% of car parking spaces either by vegetation or through constructed means such as a shade sail.

16. Pedestrian thoroughfares are provided throughout the carparking area to fully separate pedestrian and vehicular traffic.

17. Ramp design is to be in accordance with Clause 3.3 of AS2890.1 which provides that:

Maximum gradients on and near access driveways, other than at domestic properties, shall be as follows:

    a) Property line / building alignment / pedestrian path – max. 1 in 20 (5%) between edge of frontage road and the property line, building alignment or pedestrian path (except as provide in Item (d), and for at least the first 6m into the car park (except as provided below). The grade of the first 6m into the car park may be increased to 1 in 8 (12.5%) under the following conditions:

i) The grade is a downgrade for traffic leaving the property and entering the frontage road.

ii) The user class is Class 1, 1A or 2 only (under Table 1.1 of AS2890.1 these classes refer to medium to long-term parking).

iii) The maximum car park size is –

- For entry into an arterial road – 25 car spaces, or
- For entry onto a local road – 100 car spaces.

The maximum grade across the property line shall remain at 1 in 20 (5%).

b) Vehicular control points – max. 1 in 20 (5%) for at least 6m prior to the control point.

c) Queuing area – max. 1 in 10 (10%) for not less than 0.8 of the queue length (determined in table 3.3 of AS2890.1).

d) Across footpaths – where the driveway crosses a footpath, the driveway grade shall be 1 in 40 (2.5%) or less across the footpath over a lateral distance of at least 1.0m. Longitudinal grades must not exceed 16%

Note: The advice of Council should be sought to obtain grade requirements for footpaths.

Table 2.2 Selection of Driveway Type-Heavy Vehicles (see Table 2.3 for details of driveway types)

Heavy Vehicle Type	**Road Frontage Type**	**Driveway Type**
RIGID	Major	5-6
	Minor	4-5
ARTICULATED	Major	6
	Minor	5-6

Table 2.3 Driveway Types

Type	**Entry width in m**	**Exit width in m**	**Minimum separation of driveways in m**	**Splay at kerbline in m**
1	2.5-6	Combined	NA	-
2	6-9	Combined	NA	2
3	6	4-6	1-3	2
4	6-8	6-8	1-3	2
5	8-9	8-9	3	2
6	9	9	3	2
7	Direct feed from a controlled intersection via a dedicated public roadway.			

NOTE:
Type 1 and 2 driveways are most frequently required in a typically "small" development; i.e. panel beating workshop. Types 3 through 7 would apply to developments such as transport depots and heavy industry.

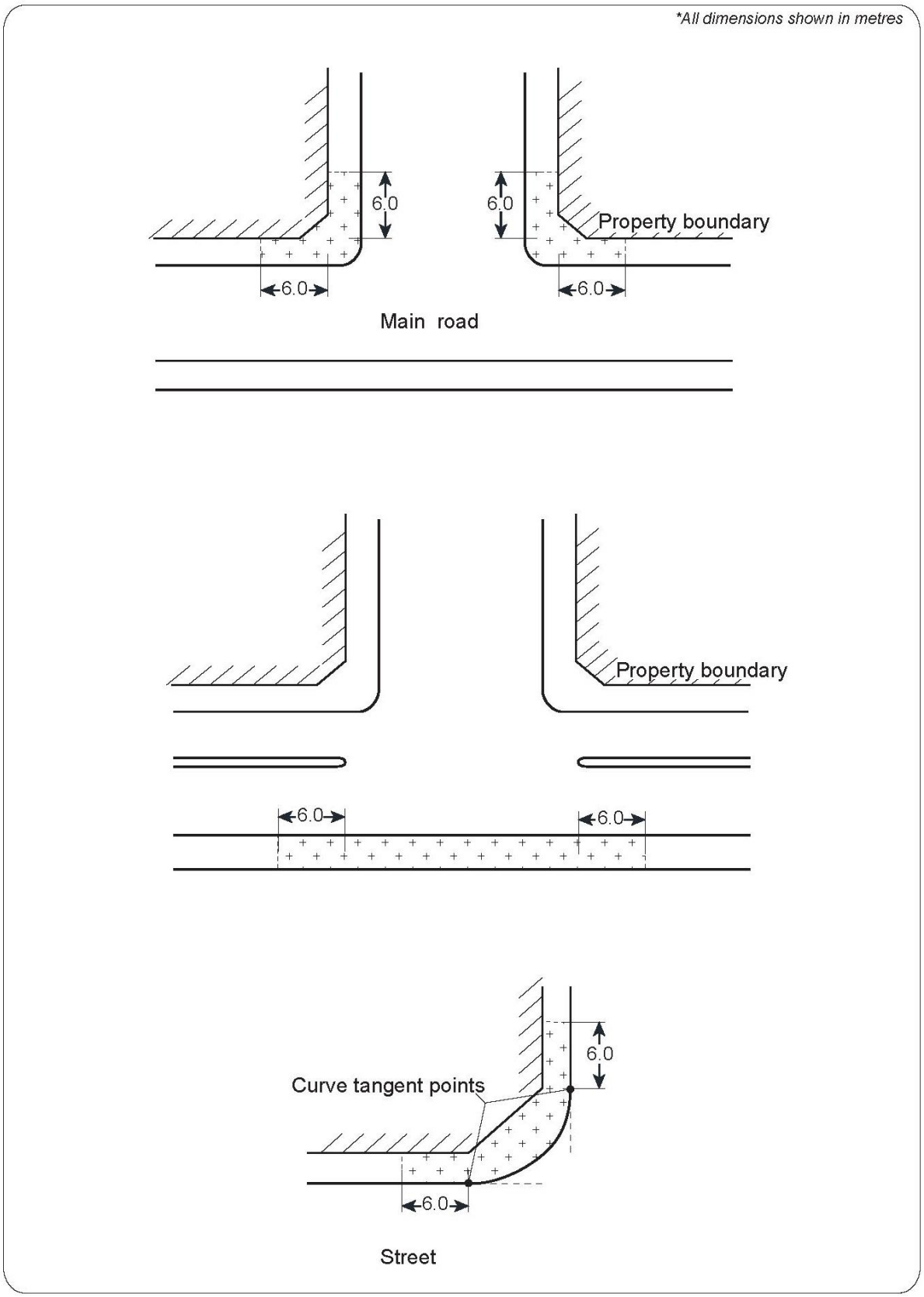


Figure 2.3 Prohibited access points

Table 2.4 Minimum longitudinal grade and minimum crossfall

Type of Surface	**Minimum Longitudinal Grade**	**Minimum Crossfall**
Bituminous Seal Coat	0.5%	3.0%
Asphaltic Concrete	0.5%	2.5%
Cement Concrete	0.35%	2.0%

Alternative Approaches and Design Suggestions:

1. 90 degree parking angles usually result in the most efficient use of an area unless it is either irregular in shape or is a multiple of an angled parking module which would result in an acceptable functional design.
2. Roads within car parks may be two-way, but the circulation pattern and parking distribution should be designed to encourage a predominantly unidirectional flow of traffic.
3. To minimise conflicts between vehicles and pedestrians, particular attention should be given to the protection of main pedestrian desire lines. Pedestrian movement can be assisted if parking aisles are oriented perpendicularly to pedestrian movements. Where possible, the principle circulatory aisles should be placed furthest from the pedestrian trip generator (e.g. shopping centre) to improve pedestrian movement and reduce the number of conflicts between pedestrians and vehicles.
4. As indicated in Figure 2.4, it is recommended that end-parking bays be flared particularly when the crossing aisles are designed to carry two-way traffic.

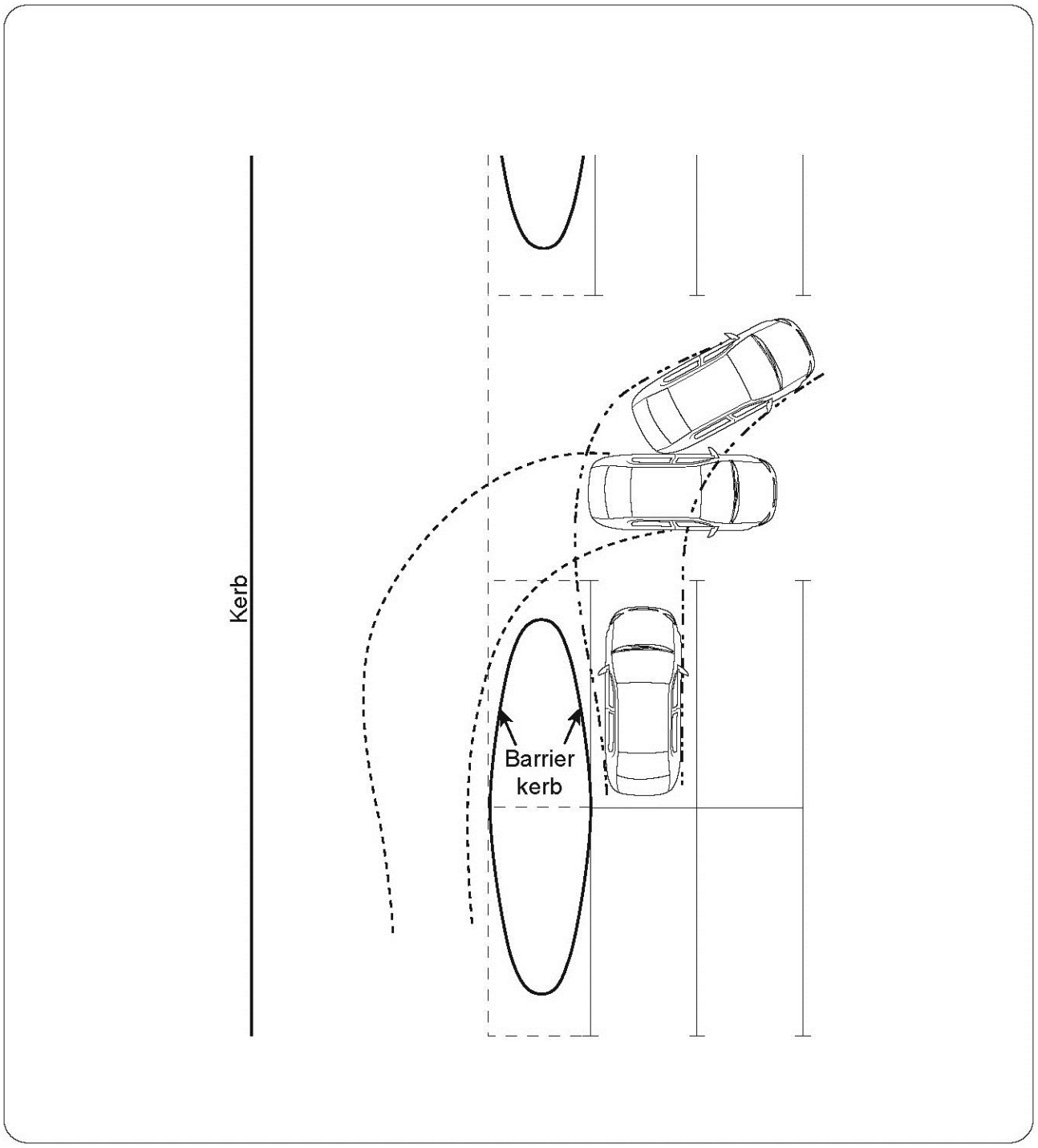


Figure 2.4 End parking bays

Stack Parking:

Stack Parking will be considered in the circumstances of the case. Stack parking spaces, if supported, will be counted at 0.5 spaces per stack space provided. Each dwelling or other premises is to be fully self-contained with respect to parking.

Mechanical Parking:

An application to provide for car parking by the use of mechanical devices will be considered on its merits. Such an application should reflect the broad aims and principles of this chapter of the DCP.

Small Car Spaces:

All bay sizes are required to be of the dimensions set out in this DCP. The provision of undersized spaces for the use of small cars may be permitted although they would not contribute towards the total number of spaces required under this plan.

Drainage of Paved Areas:

It is recommended that concept designs for the drainage of paved areas be submitted to Council in conjunction with the development application. Applicants should consult with Council's Engineering Department to obtain current standards and requirements.

General:

A parking or access design that complies with the relevant Australian Standard (AS 2890) and any relevant State Environmental Planning Policies will be considered.

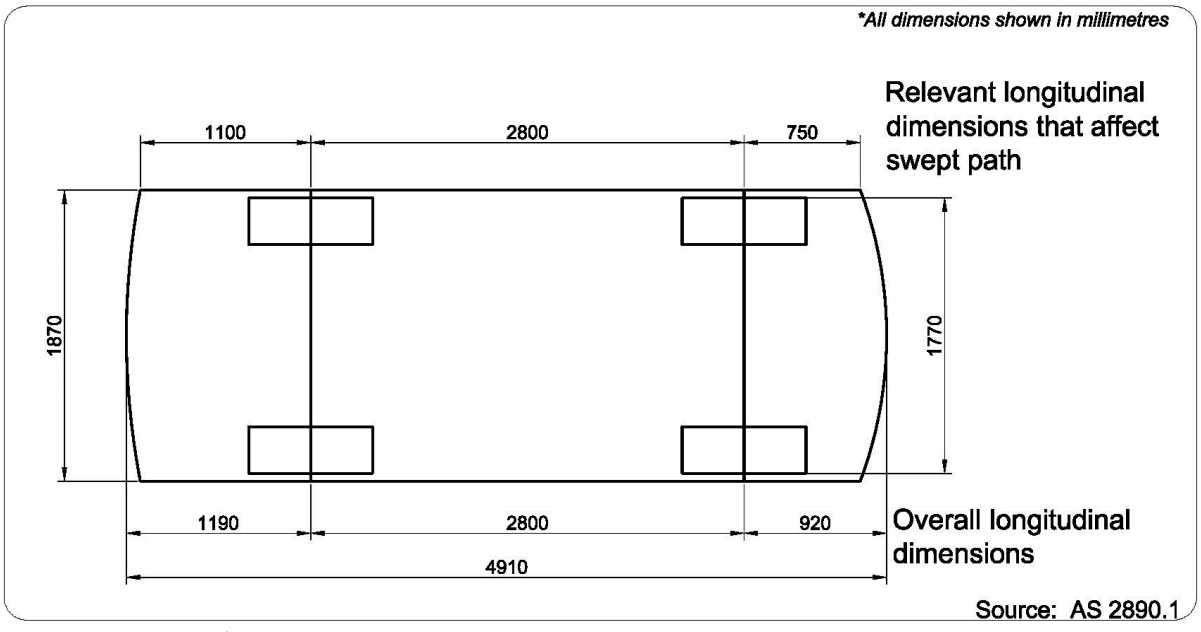


Figure 2.5 85th percentile vehicle

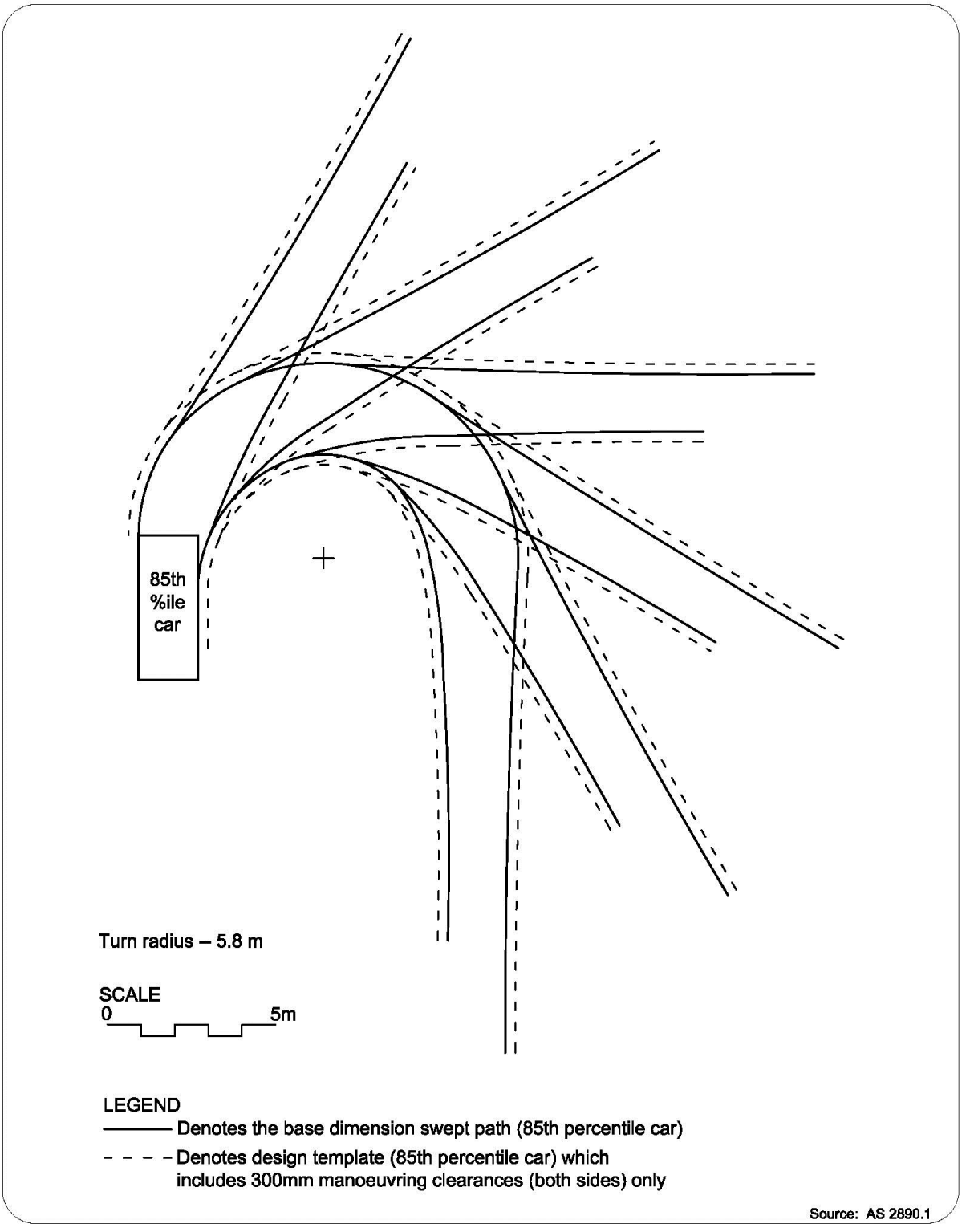


Figure 2.6 Template – 85th Percentile Car

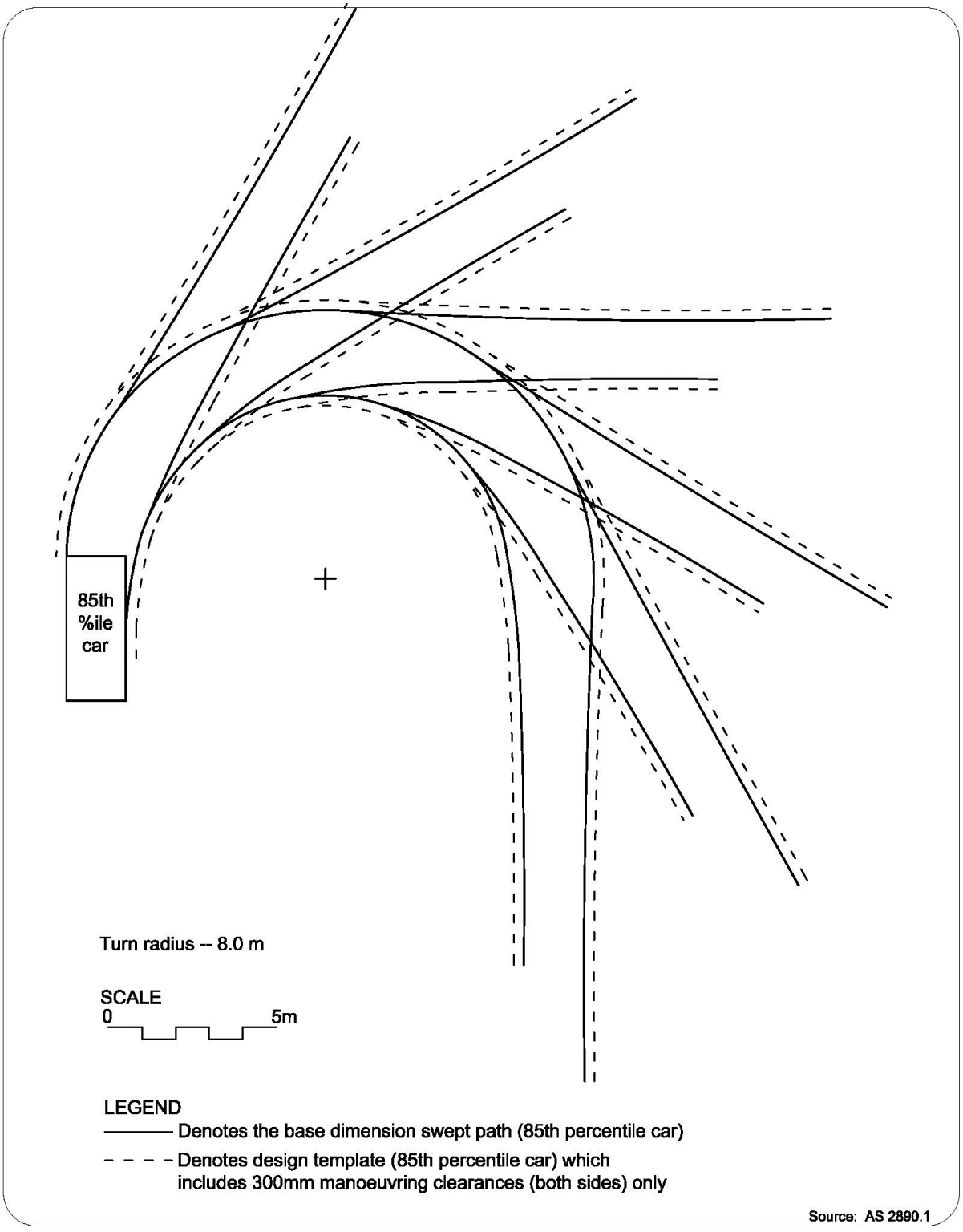


Figure 2.7 Template – 85th Percentile Car

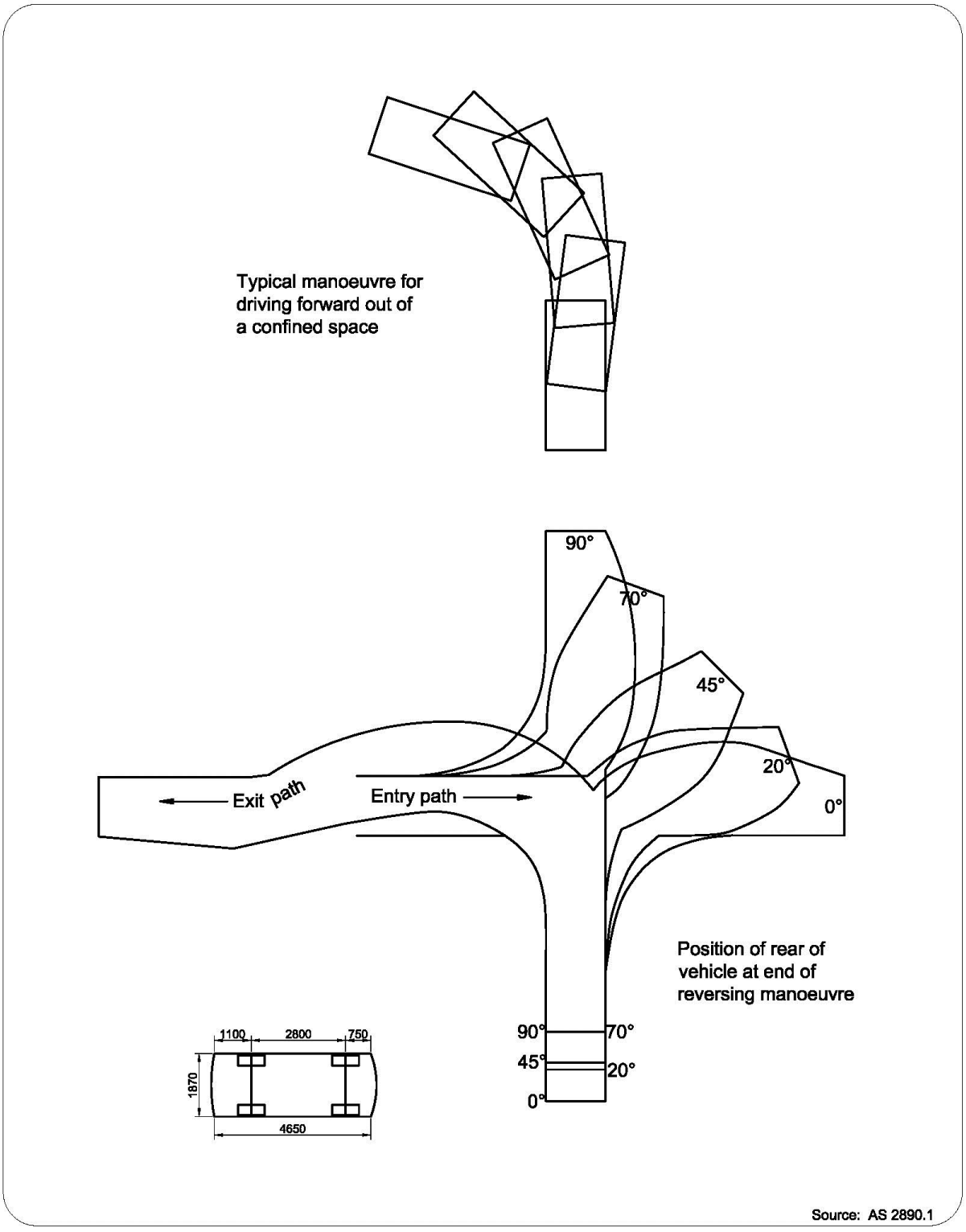


Figure 2.8 Template – Reverse-in Manoeuvre (85th Percentile Car)

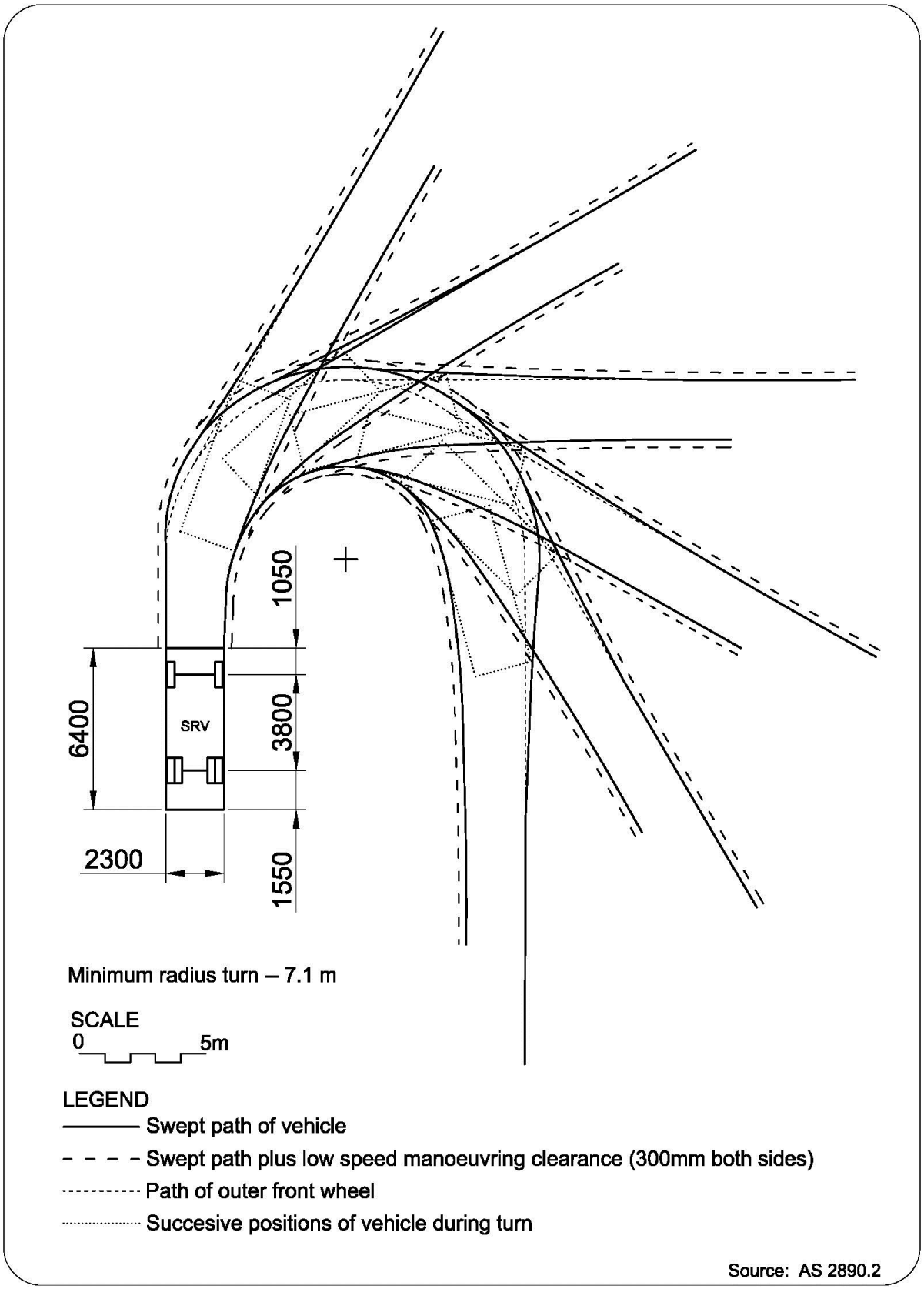


Figure 2.9 Template – Small Rigid Vehicle

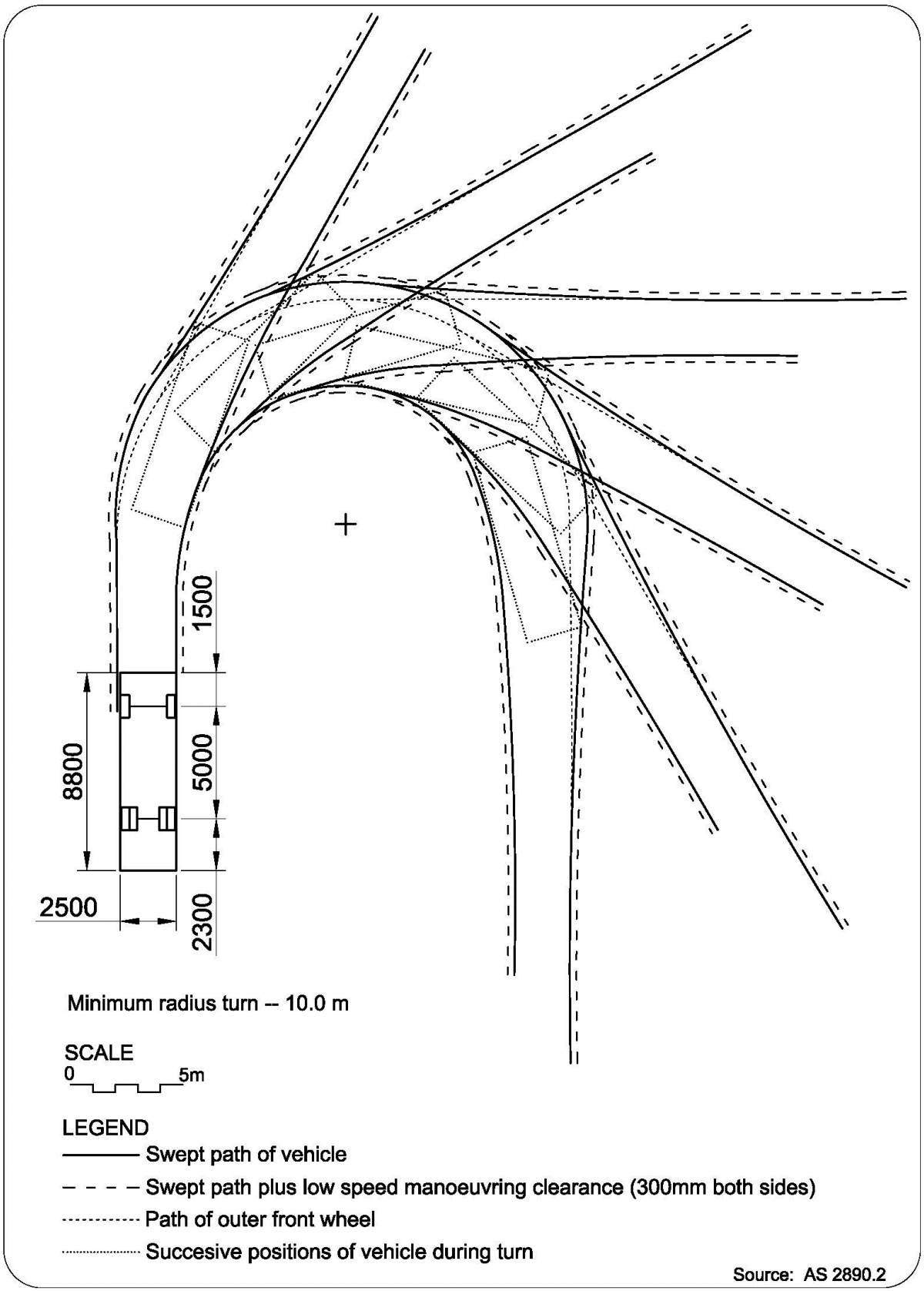


Figure 2.10 Template – Medium Rigid Vehicle

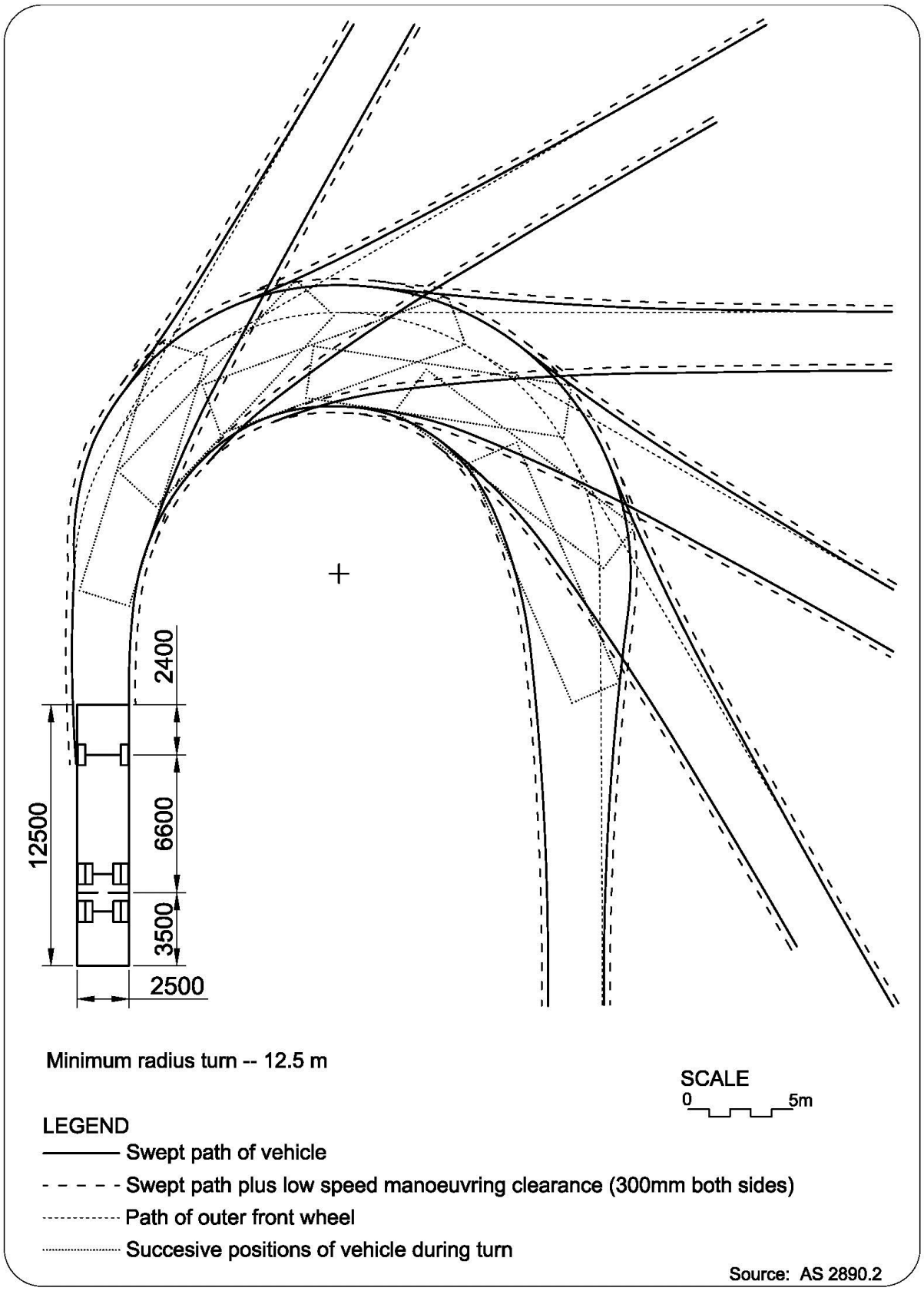


Figure 2.11 Template – Heavy Rigid Vehicle

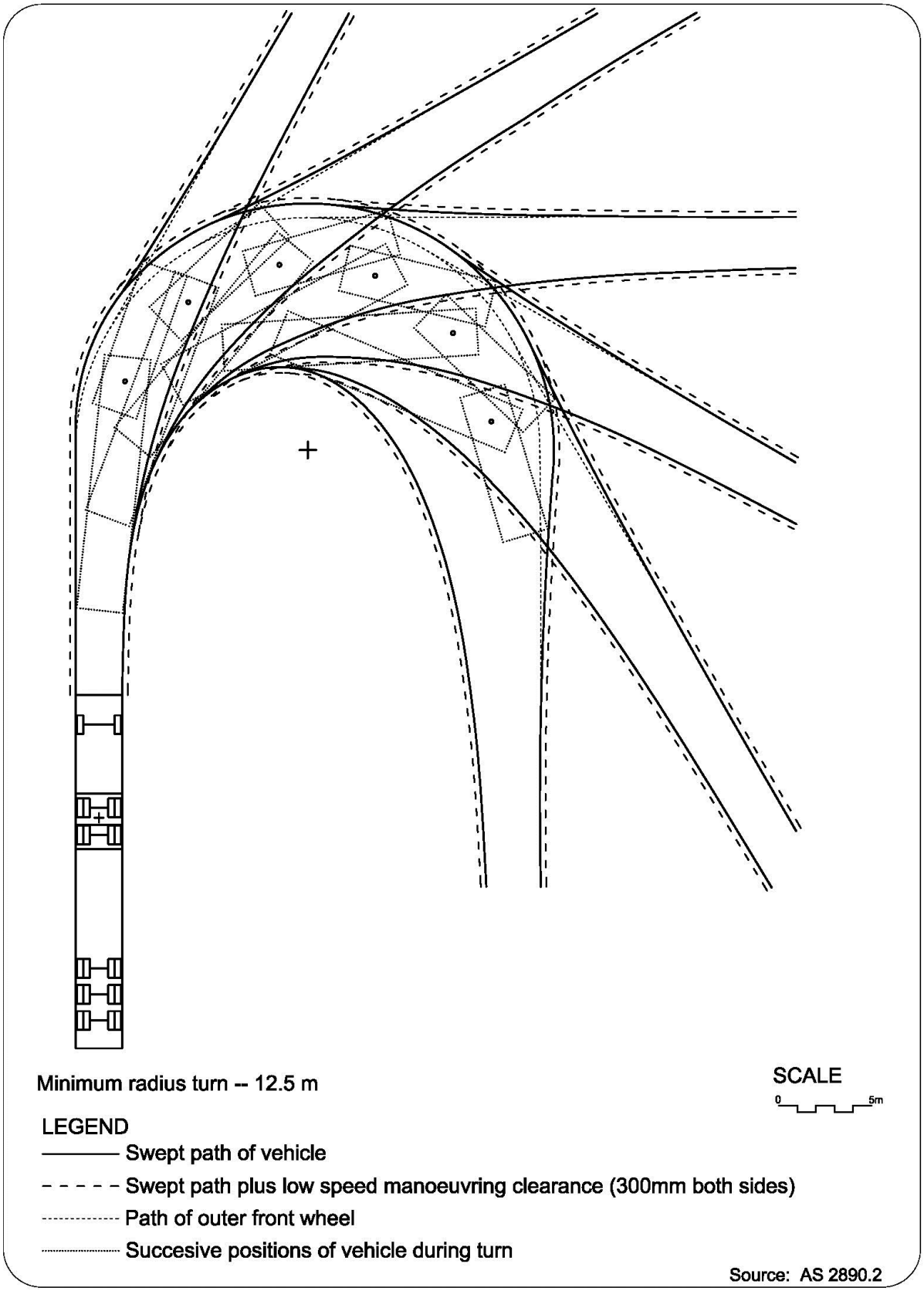


Figure 2.12 Template – Articulated Vehicle

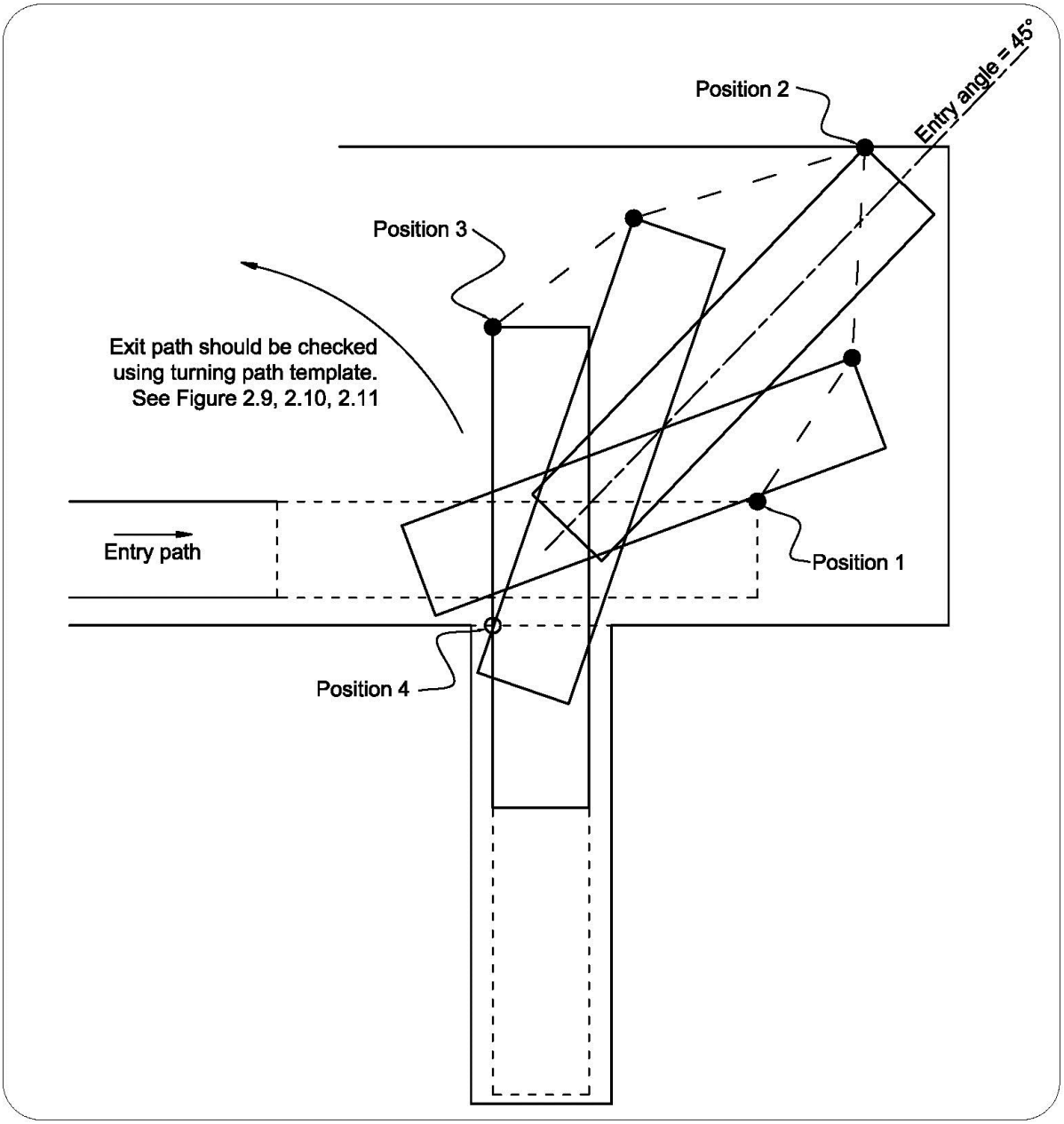


Figure 2.13 Template – Typical Reversing Manoeuvre into Service Bay by Rigid Vehicle

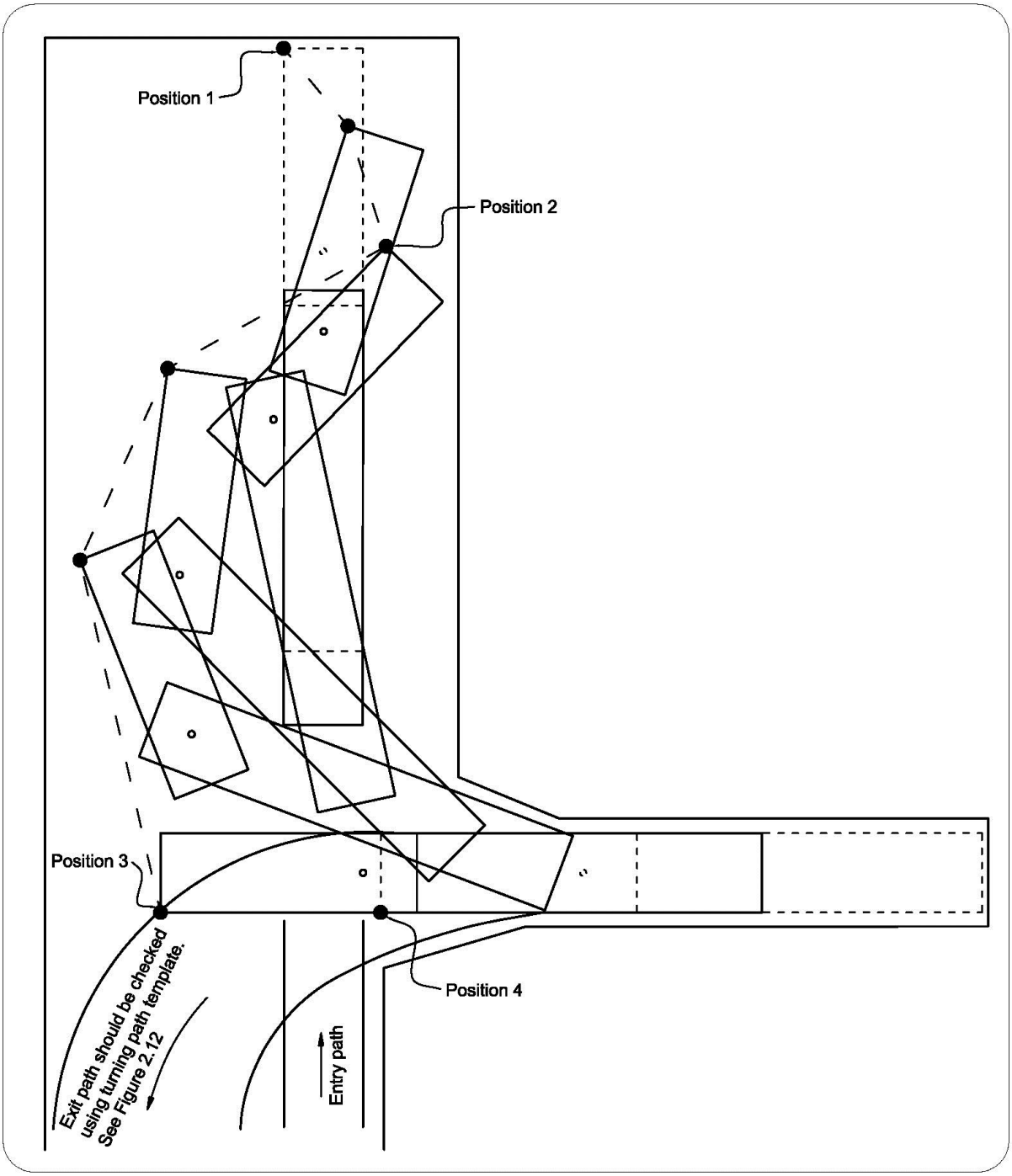


Figure 2.14 Template – Typical Reversing Manoeuvre into Service Bay by Articulated Vehicle

3. RESIDENTIAL DEVELOPMENT

ABOUT THIS CHAPTER

Moree Plains Shire Council has introduced residential development standards which when applied to new development of both detached and multiple dwellings will allow for both innovation in design and protection of the residential environment.

Their use should permit designers greater efficiency by standardising the terms used and the way in which they are applied. This in turn should result in a simplification of the development control process for Council, the development industry and the community.

This chapter of the DCP has been prepared as a guide to applicants developing low and medium density residential development in Moree and provides additional details for the design, orientation and building of housing in Moree. New housing in Moree should respond to the town's unique social and physical characteristics.

WHERE THIS CHAPTER APPLIES

This chapter applies to the following zones under Moree Plains Shire Local Environmental Plan 2011:

1. R1 General Residential
2. R2 Low Density Residential
3. R5 Large Lot Residential
4. RU5 Village

This chapter of the DCP uses ideas from the Australian Model Code for Residential Development (Edition 2) and the Department of Planning's Residential Development Controls No. 1.

GENERAL ADVICE TO APPLICANTS FOR RESIDENTIAL DEVELOPMENT

Aims and Objectives:

The aim is to enhance and protect the amenity of the new and the existing residential areas by:

1. Providing design controls for residential development;
2. Setting reasonable and attainable environmental standards for solar access, privacy, view, vehicular access, parking and landscaping; while recognising that zones require controls that match the zone objectives, and that lower density development should be subject to less stringent controls as their amenity impacts are lower.

Vehicular access and parking requirements are outlined in Chapter 2 Parking and Access.

Application of Controls

In assessing development proposals, Council must consider all the matters specified in Section 79(C) of the Environmental Planning and Assessment Act 1979. Council may refuse a development, which does not comply with the Heads of Consideration under that Section or may seek to modify a non-complying development by imposing conditions designed to make it comply.

SITE DESIGN AND LAYOUT

Aims:

1. To provide flexibility in the layout of buildings.
2. To promote good site functioning.
3. To minimise impacts on adjoining properties.

Performance Outcomes:

1. Site design integrates the controls within this chapter of the DCP to produce attractive and functional development.
2. Development respects neighbouring development, by arranging buildings and uses of areas so as to minimise amenity impacts on neighbours, including noise, overlooking and overshadowing.

Acceptable Solutions:

1. For two or more dwellings on a lot, a site analysis diagram and design response statement are provided that demonstrate the way in which the site has been developed within the constraints and opportunities of the site.
2. Dwellings at the street frontage "address the street" by presenting their front doors and windows to the street.
3. For corner lots, buildings "address the street" to both streets.
4. For developments of more than 3 dwellings on a lot,
    a) Straight driveways longer than 10m without relief are avoided.
    b) Walls longer than 10m are avoided.
    c) Views down driveways shall be to a landscaped area at the end of the driveways.

Alternative Approaches and Design Suggestions:

Use of a registered architect or experienced designer of multi-unit housing is recommended for developments of 3 or more dwellings.

DENSITY

Introduction and General Provisions:

Density is one of the key aspects of the different residential zones, which have varying minimum lot sizes. The density provisions of the DCP are designed to ensure that the density of development reflects the aims and objectives of the zone.

Aims:

1. To ensure that development respects the density characteristics of the zone.
2. To protect neighbourhood character.

Performance Outcomes:

1. To ensure that the minimum site area for a dwelling complements the density of the zone.

Acceptable Solutions:

1. Density of dwellings is in accordance with Table 3.1, Density.

Table 3.1 Density

Dwelling Size	Minimum Site Area per Dwelling		
	Zones R1 and RU5	**Zone R2**	**Zone R5**
Small (<55m2)	130m2	182m2	No minimum
Medium (55-84m2)	200m2	280m2	No minimum
Large (85-125m2)	290m2	406m2	No minimum
Extra Large (>125 m2)	<50% site cover	<30% site cover	No minimum

Alternative Approaches and Design Suggestions:

Consideration can be given to variations on the minimum areas, where all other standards in the DCP are fully achieved and, in the opinion of the Council, the aims and performance outcomes of the clause are achieved.

SETBACKS

Introduction and General Provisions

Setbacks are one of the key determinants of neighbourhood character. The setbacks in this chapter have been designed to reflect the character, aims and objectives of the various residential zones within Moree Plains Shire. Setbacks are to be measured against the walls of buildings 1.4m above ground level.

Aims:

1. To minimise impacts on adjoining properties.
2. To maintain streetscape.

Performance Outcomes:

1. To maintain streetscape, setbacks which are consistent with existing development.
2. To ensure that buildings with wall heights over 3m have greater side and rear setbacks to improve amenity for adjoining properties.
3. To provide for side and rear setbacks that respect the density character of the zone to which they are applied.
4. To provide for projections into setbacks for minor encroachments.

Acceptable Solutions:

1. Setbacks are provided in accordance with Table 3.2, Setbacks.

Table 3.2 Setbacks

Zone R1 – General Residential and Zone RU5 Village

Standard	**Conditions**
Front setback – 6m or the average of the adjoining dwellings, whichever is the lesser	Nil
Side and rear setback – Build to boundary	Walls less than 3.5m in height; Fire rated (e.g. brick or masonry); No windows; Not more than 10m along the boundary; Not more than 50% of the boundary length or the total length of adjoining wall built to boundary, whichever is the greater; Complies with overshadowing requirements of this DCP.
Side setback – 900mm	Walls less than 3.5 m in height
Rear setback – 2.4m	Walls less than 3.5 m in height
Side setback - 900mm + 0.5m for each metre wall is over 3.5 m	Walls greater than 3.5 m in height
Rear setback – 2.4 m + 0.5m for each metre wall is over 3.5 m	Walls greater than 3.5 m in height
Corner lot setbacks	6 m to the primary street frontage; 4m to the secondary street frontage.
Projection into setbacks – 600mm	Projection is one of the following: roof eaves, sunhoods, gutters, downpipes, chimney flues, light fittings, electricity or gas meters, water heaters, heating and cooling appliances and aerials, access ramps or stairs.

Zone R2 – Low Density Residential

Standard	**Conditions**
Front setback – 8m or the average of the adjoining dwellings, whichever is the lesser	Nil
Side setback – 1.6 m	Walls less than 3.5 m in height
Rear setback – 3.2 m	Walls less than 3.5 m in height
Side setback – 1.6 m + 0.5 m for each metre wall is over 3.5 m	Walls greater than 3.5 m in height
Rear setback – 3.2m + 0.5 m for each metre wall is over 3.5 m	Walls greater than 3.5 m in height

Standard	Conditions
Corner lots	8 m setback to the primary frontage; 6 m setback to the secondary frontage.
Projection into setbacks – 600mm	Projection is one of the following: roof eaves, sunhoods, gutters, downpipes, chimney flues, light fittings, electricity or gas meters, water heaters, heating and cooling appliances and aerials.

Zone R5 – Large Lot Residential

Standard	Conditions
Front Setback – 20m or the average of the adjoining dwellings, whichever is the lesser.	Nil
Side and rear setback – 10m	Any wall
Projection into setbacks – 600mm	Projection is one of the following: roof eaves, sunhoods, gutters, downpipes, chimney flues, light fittings, electricity or gas meters, water heaters, heating and cooling appliances and aerials.

Alternative Approaches and Design Suggestions:

In flood liable areas, Council may waive setback requirements where the amenity impacts on adjoining properties and streetscape are acceptable. This would need to be demonstrated in terms of sunlight to private open space and avoidance of overlooking.

Visitor parking (uncovered) may occupy up to 30% of the front setback area (by width) provided that the development is compatible with the existing streetscape, and any parking spaces are set back at least 1m from the front boundary of the property.

OPEN SPACE

Introduction and General Provisions

Open space is required with all new residential development to enhance resident amenity. Open space shall be provided in accordance with the standards in this section. Areas used for driveways, car parking, drying areas and service areas shall not be included as landscaped areas or as part of the usable private open space.

Aims:

1. To provide a landscaped setting for new development
2. To promote the planting of shade trees
3. To provide for secluded private open space

Performance Outcomes:

1. New development is within a landscaped setting which is compatible with or improves the streetscape of the locality and which softens the appearance of new development.

2. Landscaped areas provide for shade trees to enhance the character of the town and to improve solar performance of the development in summer.
3. Open space areas provide adequate area for secluded private open space for each ground floor dwelling and to provide functional private open space for upper floor dwellings.
Note: An upper floor dwelling is a dwelling which, apart from access or parking, is located above another dwelling.

Acceptable Solutions:

1. Landscaped areas are provided in accordance with Table 3.3, Landscaping.

Table 3.3 Landscaping

Dwelling Size (Ground floor Dwelling)	Landscaped Area per Dwelling		
	Zones R1 and RU5	**Zone R2**	**Zone R5**
Small (<55m2)	45m2	60 m2	No minimum
Medium (55-84m2)	45m2	60 m2	No minimum
Large (85-125m2)	45m2	60 m2	No minimum
Extra Large (>125 m2)	45m2	60 m2	No minimum

Dwelling Size (Upper floor Dwelling)	Landscaped Area per Dwelling		
	Zone R1 and RU5	**Zone R2**	**Zone R5**
Small (<55m2)	30m2	50 m2	No minimum
Medium (55-84m2)	45m2	90 m2	No minimum
Large (85-125m2)	100m2	125 m2	No minimum
Extra Large (>125 m2)	125m2	150 m2	No minimum

Alternative Approaches and Design Suggestions:

Landscaped areas for upper floor dwellings may be varied where the development complies with all other standards in this DCP and where the performance objectives of this chapter are achieved. For example this could include a common area of private open space available for the use of residents, or usable balconies (at least 10m2 wide and 2.4m deep) that do not overlook adjoining secluded private open space, or affect the privacy of other dwellings.

SECLUDED PRIVATE OPEN SPACE

Introduction and General Provisions

Secluded private open space is an expectation for every private dwelling. This chapter of the DCP outlines the requirements, which differ for ground floor and other dwellings.

Aims:

1. Access to private open space meets the needs of the residents of the development.

Performance Outcomes:

Ground Floor Dwellings

1. Secluded private open space is provided, with at least one usable area for each dwelling, which is directly accessible from a living area.
2. Secluded private open space addresses the performance outcomes for solar access in this DCP.

Upper Floor Dwellings

1. Access to outdoor private open space is provided for each dwelling without ground level access.

Acceptable Solutions:

1. Secluded private open space is provided in accordance with Table 3.4, Secluded Private Open Space.

Table 3.4 Secluded Private Open Space

Dwelling Type	Secluded Private Open Space Provision		
	Zone R1 and RU5	**Zone R2**	**Zone R5**
Ground Floor	24m2 (minimum dimension 3.5m)	30m2 (minimum dimension 4.5m)	No minimum
Upper Floor	10m2 balcony (min depth 2.4m) **or** access to common open space with provision of amenities, of not less than 15m2 per dwelling	Not applicable	Not applicable

Alternative Approaches and Design Suggestions:

Enclosing screen walls or fences should be designed to ensure privacy, both from adjoining communal open space or access ways, and from dwellings and their courtyards.

Secluded private open space areas should, where possible, make provision for canopy trees or other shade devices that permit access of winter sun to dwellings but limit summer sun. Where shade trees are provided (which is encouraged) these should be compatible with the building structure and services, when grown to their full size.

LANDSCAPING OF OPEN SPACE AREAS

Introduction and General Provisions

Landscaping should provide a softening of the development, maintain or enhance the streetscape, and assist to manage solar access. All parts of the site not built upon or paved shall be landscaped with grass, ground covers, shrubs and/or trees. Site design should not result in bare expanses of fencing or driveway with landscaping largely confined to private open space areas. Good quality presentation of public areas is required.

Aims:

1. To provide an integrated approach to landscaping which achieves the following performance outcomes.

Performance Outcomes:

1. To contribute to the "greening" of Moree; in particular through the establishment of an urban tree canopy.
2. To enhance the streetscape by providing good quality presentation to public areas.
3. To provide areas for infiltration of water, and minimise off-site drainage requirements.
4. To improve the microclimate around dwellings.

Acceptable Solutions:

A landscape concept plan is provided with the development application (similar to the example given in Figure 3.1), utilising the species in Table 3.5, Plant species:

Table 3.5 Plant species

	Botanical Name	**Common Name**
Deciduous Trees (Large)	*Acer saccharinum*	Silver Maple
	Acer negundo	Box Elder maple
	Fraxinus raywoodii	Claret Ash
	Ulmus parvifolia	Chinese Elm
Evergreen Trees (Medium – Large)	*Acacia floribunda*	Catkin acacia
	Eucalyptus Torelliana	Cadaghi
	Grevillea robusta	Silky Oak
Evergreen Trees (Small)	*Bauhinia purpurea*	Bauhinia
	Callistemon salingus	Willow Bottlebrush
	Callistemon viminalis	Weeping Bottlebrush
	Melaleuca linaniifolia	Flax Leaf Paperbark
	Flindersia maculosa	Leopardwood
Screen Trees (Medium Evergreen)	*Casuarina cunninghamiana*	River She-Oak
	Melaleuca quinqenervia	Rough Paperbark
	Eucalyptus torquata	Coolgardie Gum
Screen Trees (Small Evergreen)	*Eucalyptus annulata*	Open Fruit Mallee
	Eucalyptus cruces	Silver Mallee
	Eucalyptus polybractea	Blue Mallee
	Eucalyptus viridis	Green Mallee
Ornamental Deciduous	*Delonix regina*	Poinciana
	Gleditsia tricanthos	Honey Locust
	Liquidamber stryaciflua	Liquidambar
	Pistacia chinensis	Chinese pistachio
	Populus deltoids	Cottonwood
	Populus nigra Italia	Lombardy Poplar
	Prunus cerasifera nigra	Purple Cherry Plum
	Ulmus parvifolia	Chinese Elm

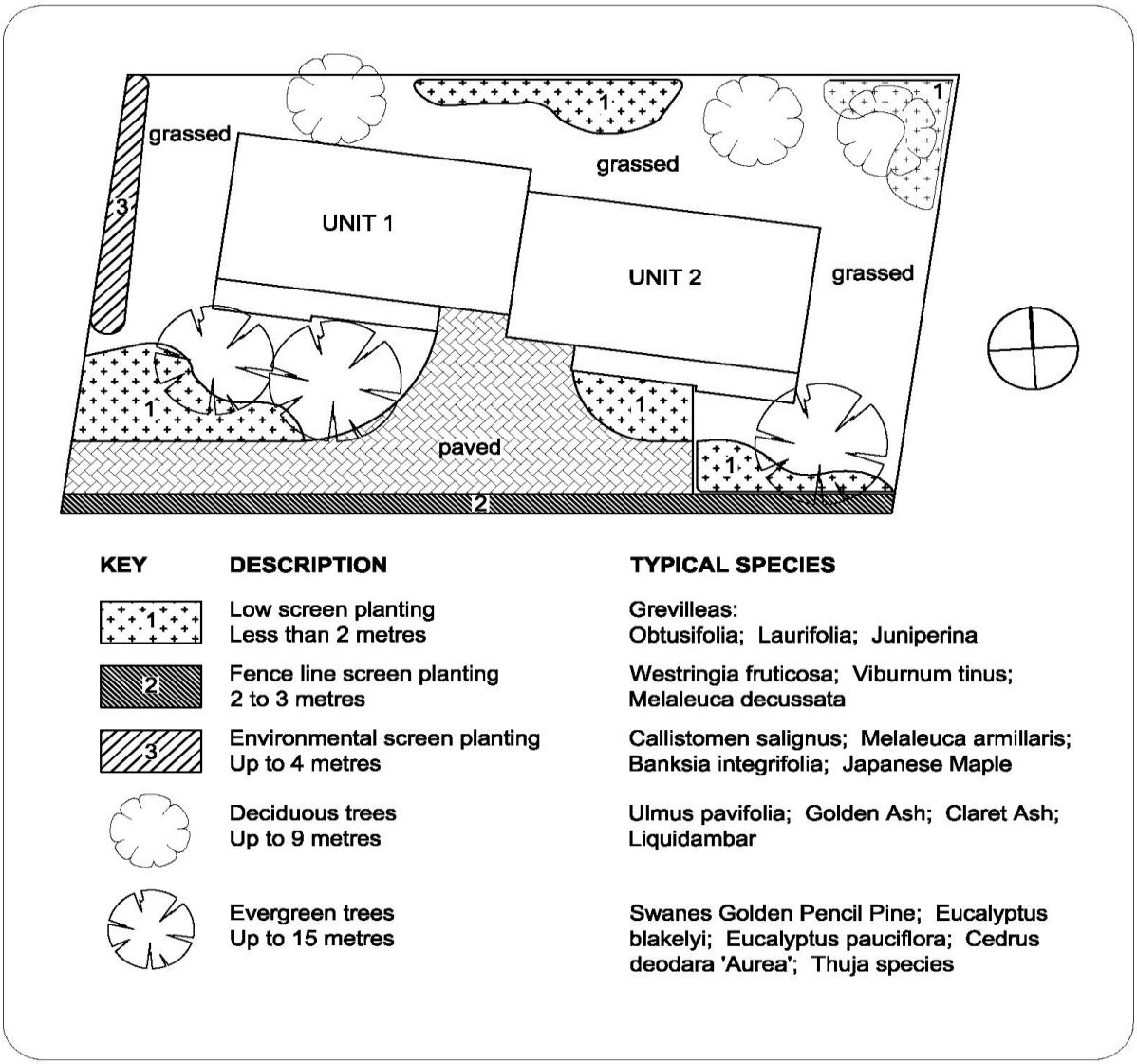


Figure 3.1 Example of Concept Landscaping Plan

Alternative Approaches and Design Suggestions:

A landscape plan that has been prepared by a qualified horticulturalist with experience in the climatic conditions and soils found in Moree will be accepted as an alternative to the acceptable solution.

In established areas, landscaping should relate to the streetscape and the landscaping of adjoining development. Where possible, landscaped areas should adjoin the landscaped areas of adjacent allotments and should incorporate the drip-line of mature trees planted in adjoining properties.

Regard should be given to the use of sun protection devices (i.e. verandahs, pergolas, deciduous trees, etc.) along western-facing walls to produce a comfortable microclimate in and around dwellings.

Careful consideration of the layout of external and internal living spaces can increase the occupants' enjoyment of their dwelling. For example, a deck, terrace or balcony could provide an outdoor extension to an internal living room.

PRIVACY

Introduction and General Principles

Maintaining privacy within habitable rooms of dwellings and in secluded private open space is an important aspect of providing development that meets the occupant's needs. The requirements of this chapter should be regarded as minimum requirements and, wherever feasible, higher levels of privacy should be provided.

Aims:

1. To avoid direct views into windows of dwellings and to ensure that ground level secluded private open space has adequate areas free from overlooking.

Performance Outcomes:

1. At least 75% of secluded private open space is free from overlooking.
2. No direct views occur into habitable rooms of a dwelling.

Acceptable Solutions:

Direct facing windows or balconies of dwellings are not within 12m of windows, secluded private open space or balconies of other dwellings (at angles up to 45 degrees).

Windows are not within 4m of a communal area.

Alternative Approaches and Design Suggestions:

75% of the secluded private open space of a dwelling is not able to be overlooked. (This applies to dwellings within the development and dwellings that may be overlooked by the development).

Screening of windows is provided where windows do not meet the acceptable solutions.

Screening can be provided in various ways. These include opaque glass, ensuring sill heights are greater than 1.7m, or the use of lattice or louvre screens attached to the side of windows (maximum permeability of 25%). Screening to common areas and secluded private open space areas can be provided by hedges, fences, courtyard walls or the like.

SOLAR ACCESS

Introduction and General Principles

In Moree's climate, managing summer sun is a major objective. This assists to maintain liveable dwellings and reduce the use of mechanical cooling. Solar access should be considered as an integral and basic aspect of the design.

Aims:

1. To manage solar access so as to improve liveability in summer and winter, within the dwelling and in the private open space.

Performance Outcomes:

1. At least 50% of the secluded private open space is in shade between the hours of 10am and 3pm on 21 December AND
2. At least 50% of the secluded private open space receives sun between the hours of 10am and 3pm on 21 June.

Acceptable Solutions:

1. Dwellings achieve the preferred solar orientation as shown on Figure 3.2 below:
2. Eaves and window heights achieve the design outcomes shown on Figure 3.3 below:
3. Secluded private open space is located on the north side of dwellings, and is provided with summer shade.

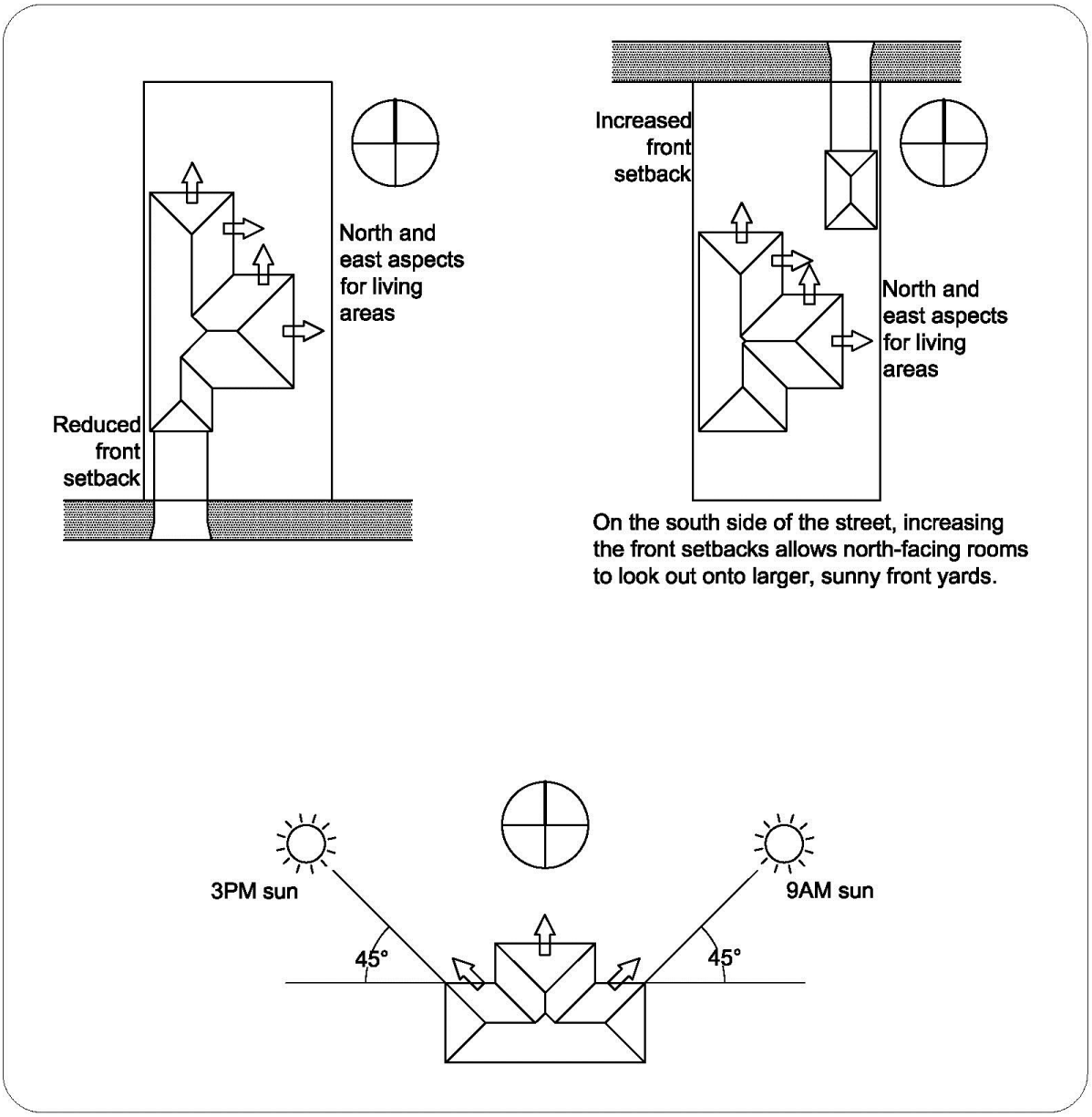


Figure 3.2 Solar Orientation

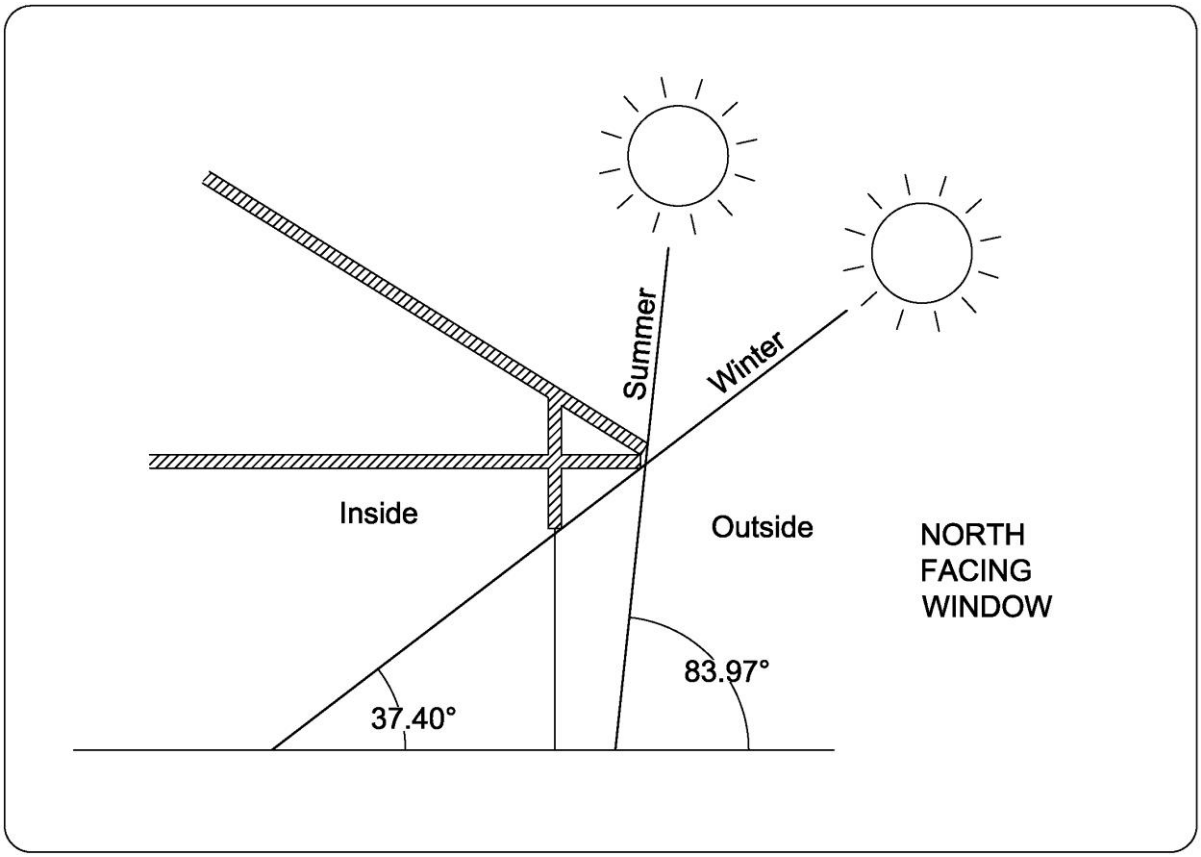


Figure 3.3 Windows and Eaves

Alternative Approaches and Design Suggestions:

1. Utilise a combination of built elements (e.g. pergolas and eaves) and landscaping to achieve the performance outcomes.

4. MOREE AND ENVIRONS FLOODPLAIN DEVELOPMENT AND MANAGEMENT

ABOUT THIS CHAPTER

The purpose of this Chapter is to implement and supplement provisions of the Moree Plains Local Environmental Plan 2011 in relation to flood prone land in Moree Plains Shire.

TERMS USED IN THIS CHAPTER

Specific terms used in this Chapter are outlined in the Dictionary to this DCP.

WHERE THIS CHAPTER APPLIES

This Chapter applies to all land within the Moree Plains Shire with specific reference to land within the mapped flood planning level or as otherwise shown on the flood atlas as subject to inundation.

Note: In the event of a conflict between a floodplain risk management plan and the Flood Atlas, the relevant risk management plan takes precedence.

GENERAL ADVICE TO APPLICANTS

Applicants are encouraged to familiarise themselves with the Moree and Environs Flood Risk Management Plan, 2008, available from Council's Website. For sites identified as being within High Hazard areas as defined in the Atlas, advice from a suitably qualified and experienced flood engineer should be sought.

Note: In the event of a conflict between this DCP and the Moree Floodplain Risk Management Plan, this DCP takes precedence.

Aims and Objectives:

1. To provide concise, comprehensive guidelines, which will facilitate the expeditious assessment and determination of applications for consent under the EP&A Act, in relation to land within mapped flood planning level or otherwise shown on the flood atlas as subject to inundation;
2. To facilitate desirable and appropriate development for lands within the mapped flood planning level or otherwise shown on the flood atlas as subject to inundation by providing clear standards that recognise the expectations of the community and particular characteristics of the local environment;
3. To ensure consistency when dealing with applications;
4. To minimise the risk to life as a result of flood events;
5. To manage the risk to property as a result of flood events;
6. To permit minor extensions to existing development at floor levels consistent with that existing development, where this is appropriate;
7. To inform the community of the risk of flooding.

RELATIONSHIP TO OTHER PLANNING INSTRUMENTS

This plan has been prepared to be consistent with the aims, objectives and provisions of all relevant State Environmental Planning Policies (SEPP's), and the Moree Plains Local Environmental Plan 2011 and implements the Moree and Environs Floodplain Risk Management Plan, 2008.

FLOOD CERTIFICATES FOR DEVELOPMENT APPLICATIONS

All applications (other than for agricultural purposes, including ancillary buildings) proposed in areas within the mapped flood planning level or otherwise shown on the flood atlas as subject to inundation shall be accompanied by the following information so that Council can adequately assess the proposal.

Flood Information Certificate

(to be provided with the Development Application):

This certificate from a registered surveyor shall include:

1. A plan of the site in relation to public road frontage;
2. Location of the proposed development, including distances from boundaries of any proposed flood proofing mound and building(s);
3. Levels to AHD, at 0.1m intervals, of the site;
4. Design levels of the proposed development (including floor levels);
5. The location of any flood mounds within a 50 metre radius measured at the toe of any proposed mound;
6. For residential and subdivision development, flood levels to AHD, as contours for the 10%AEP plus 500mm freeboard, the flood planning level and PMF events (3 surfaces required);
7. For residential and subdivision development, evidence of the flooding characteristics to the most accessible flood evacuation centre;
8. For other development, flood levels to AHD as contours for the flood planning level (reduced by 350mm) and PMF events (2 surfaces required);
9. An estimate of the Frequency Hazard Category, described in the risk management plan;
10. An estimate of the Property Hazard Category, described in the risk management plan;
11. Appropriate metadata relating to the source of the flood information;
12. A description of the confidence of the flood information, as indicated in the relevant flood risk management plan, or otherwise as appropriate.

Structural Adequacy Certificate

(to be provided with the Construction Certificate Application for development [other than for Class 10 structures under the BCA] on high hazard flood liable land):

1. Certification from a practicing structural or civil engineer with experience in flooding that the proposed development can withstand the expected flood velocities, including scour, debris and buoyancy forces.

Floor-Height Certificate

(to be provided during construction):

1. Where the actual constructed floor level is 500mm or less above the required finished floor level (as set down in development consent), certification is provided from a registered surveyor confirming that the floor height level achieves the required height. Certification is to be provided prior to construction of the floor.

Flood Investigation Report

(where existing flood modelling is inadequate or has not been undertaken):

1. Is prepared by an appropriately qualified and experienced professional that reviews the history of flooding in an area, where modelling is not available.
2. The review should draw upon historical information, including from landowners, physical evidence in the locality of any historical events, extrapolation (suitably qualified) from known information or events, and any other such information as might be considered by the professional to be relevant in estimating the flood height of the site;

Performance Outcomes:

1. Development is consistent with the principles of the NSW Flood Plain Development Manual, 2005 and the Moree and Environs Flood Risk Management Plan, 2008.
2. Development does not materially increase the risk to life.
3. Development manages the risk to property, recognising the higher levels of risk associated with residential use of land as compared to other land uses.
4. Protection of property is achieved relevant to the development type, land use and area.

Acceptable Solutions:

Introduction and General Provisions

For the purpose of this plan the various categories of hazard, shown on the Flood Mapping Atlas in conjunction with the Moree Plains Floodplain Risk Management Plan 2008, shall be used to establish the specific criteria to be used when applying the this chapter of the DCP.

Table 4.1 Residential – Low and High Hazard Mapped Land

Residential Development (Other than in Floodways) Low and High Hazard Land	
Feature	**Acceptable Solution**
Permissibility of Buildings	Prohibition for all buildings (except for ancillary buildings) where the land is inundated in the 10% AEP Event plus 500mm freeboard or the difference between the natural surface level and the 1% AEP flood level exceeds 1.5m or where the flood flow velocity exceeds 1m/sec. *Note: In some circumstances land may be able to be filled or mounded to achieve the criteria set out in this table. Refer to Alternative Solutions and Design Suggestions.*
Access to Buildings	Each habitable building is to have access to a flood evacuation centre such that the depth of water across the access is no greater than 300mm for a period exceeding 24 hrs. *Note: If this is unable to be achieved, Council may give consideration to the use of a flood management plan, which includes evacuation triggers consistent with SES evacuation advice. Template flood management plans are included at Schedule 2 to this chapter.*
New buildings or extensions to existing buildings (other than minor extensions).	Floor levels to be at or above the flood planning level. Construction below the flood planning level is to be of suitable flood compatible materials as outlined in Schedule 1 to this chapter or to utilise equivalent alternative methods of flood proofing including techniques to prevent water ingress into building structures.
Minor extensions	The floor level of a minor extension (dwelling) is not to be less than the habitable floor level of the existing structure. The floor level of a minor extension (enclosure) is not to be less than the habitable floor level of the existing structure. Construction is to be of suitable flood compatible materials or to utilise alternative methods of flood proofing including techniques to prevent water ingress into building structures. *Note: Refer to Schedule 1.* *Note: In the event that good evidence is provided that suitable materials or techniques would be unreasonable or unnecessary in the circumstances of the case, Council may give consideration to alternative strategies to minimise the risks of flood damage.*

Residential Development (Other than in Floodways) Low and High Hazard Land	
Feature	**Acceptable Solution**
Flood Protection Measures	Mounds are preferred to raised buildings where feasible, particularly in the low density residential and large lot residential zones. Mounds should achieve 500mm above the 1% AEP flood level, but are encouraged to achieve or exceed the height of the Probable Maximum Flood. Mounds and raised buildings may be used in combination. Mounding or levees are not to exceed 20% of the land area within the allotment as measured by the surface area of the mound or the top of the levee unless certification has been provided by an appropriately qualified and experienced practicing engineer that the structure would not adversely affect the flow of water or storage of water so as to impact on the locality. In this regard, the cumulative effects of other mounds or levees in the vicinity are to be assessed. *The NSW State Government manages mounds and levies within the rural smallholdings and primary production zones.*
Subdivision	Each lot created is to have: • A building envelope that has an area of land sufficient for the erection of a dwelling which is at least 500mm above the 10% AEP Event; • Access to a flood evacuation centre from the building envelope such that the depth of water across the access is no greater than 300mm for a period exceeding 24 hrs; and • The difference between the natural surface level and the 1% AEP flood level does not exceed 1.5m or the flood flow velocity exceed 1m/sec.

Table 4.2 Commercial, Industrial and Other Buildings

Commercial, Industrial and Other Building Developments (Other than in Floodways) Low and High Hazard Land	
Feature	**Acceptable Solutions**
New Buildings or Extensions to Existing Buildings (other than minor extensions).	Floor levels are to be not less than 350mm below the flood planning level ***or*** the building is to be protected by flood barriers which are not less than 350mm below the flood planning level.

Commercial, Industrial and Other Building Developments (Other than in Floodways) Low and High Hazard Land	
Feature	**Acceptable Solutions**
	Note: The floor level dispensation with respect to commercial, industrial and other building developments is provided on the basis that the risk to human life is less than for habitable dwellings. Flood barriers are preferred to raised floors for commercial buildings, in particular buildings within the Heritage Conservation Area. Raised floors will generally only be supported where public access for people with disabilities can be achieved without separate ramp structures. Construction below the flood planning level is to be of suitable flood compatible materials as outlined in Schedule 1 or to utilise equivalent alternative methods of flood proofing including techniques to prevent water ingress into building structures.
Minor Extension (other building)	The floor level of minor extensions is not to be less than the main floor level of the existing structure. Construction below the flood planning level is to be of suitable flood compatible materials as outlined in Schedule 1 or to utilise equivalent alternative methods of flood proofing including techniques to prevent water ingress into building structures. *Note: Refer to Schedule 1.*
Flood Protection Measures	Mounds are preferred to raised buildings where feasible, particularly in the light industrial and general industrial zones. Mounds should achieve at least 350mm below the flood planning level, but are encouraged to achieve or exceed the flood planning level. *(Note: The NSW State Government manages mounds and levies within the rural smallholdings and primary production zones).* Mounding or levees are not to exceed 20% of the land area within the allotment as measured by the surface area of the mound or the top of the levee unless certification has been provided by an appropriately qualified and experienced practicing engineer that the structure would not adversely affect the flow of water or storage of water so as to impact on the locality. In this regard, the cumulative effect of other mounds or levees in the vicinity is to be assessed).

Commercial, Industrial and Other Building Developments (Other than in Floodways) Low and High Hazard Land	
Feature	**Acceptable Solutions**
Storage of Materials Below the Flood Planning Level	The use and storage of hazardous materials is prohibited at levels below the flood planning level in all circumstances. It is necessary to demonstrate that goods and possessions stored at a lower level than the flood planning level can be moved above the flood planning level, by the occupant, within the period of time that a flood warning is issued and inundation of the subject land occurs. *Note: Techniques may include the provision of suitable racking, an area of elevated floor level within the building, or access to a nearby storage facility with storage areas above the flood planning level.*

Table 4.3 Development within Floodways

Development within Floodways - Residential, Commercial, Industrial and Other Building Developments	
Feature	**Acceptable Solutions**
New Buildings and Structures	Prohibition of all new building development including minor extensions.
Subdivision	Prohibition of subdivision which would create an additional building entitlement.
Filling	Prohibition of filling, other than that required to fill local depressions to the natural level of the surrounding land.

Table 4.4 Development in other areas subject to inundation

Development in Areas Subject to Inundation (not being specifically identified as Low and High Hazard Areas within a floodplain risk management plan)	
Feature	**Acceptable Solutions**
New Dwellings	Dwellings are located on a mound, the top of which is at least 1m above the identified flood level for the site (from the flood investigation report), such mound being at least twice the area of the dwelling. Floor level of any dwelling is 500mm above the PMF unless an evacuation plan is incorporated within a flood management plan. A flood management plan is to be implemented that provides for evacuation or self-containment during the designated flood event. *Note: A flood management plan that incorporates evacuation should reference SES "triggers" for evacuation recommendations. Template flood management plans are provided at Schedule 2 to this Chapter.*
Subdivision	Where subdivision would create an ability to apply for a dwelling, that a building envelope be identified that would comply with the requirements for a new dwelling.
Mounds, Levees, filling, etc.	*NB These development categories are managed by the state government in the primary production zone.*

Alternative Solutions and Design Suggestions:

Other Forms of Development

Any forms of development not covered by the acceptable solutions or not complying with the acceptable solutions (as relevant) must demonstrate consistency with the Moree Plains Floodplan Risk Management Plan 2008 and the principles of the NSW Floodplain Development Manual 2005.

Note: An applicant may determine the category of hazard pertaining to a particular site by applying the methodology detailed in the NSW Government Floodplain Development Manual, 2005. Any such application and calculations shall be accompanied by certification from an appropriately qualified and experienced practising engineer that the principles of the Floodplain Development Manual, the Moree Plains Floodplain Risk Management Plan 2008 and this DCP have been adopted.

Variations to the DCP Requirements

Council may give consideration to varying the requirements of this chapter where these are considered unreasonable or unnecessary in the circumstances of the case and where the objectives of the plan, in particular no increase in risk to human life, will not be compromised.

Any request for variation must be accompanied by sufficient calculations and documentation to allow Council's Director of Planning and Development to give the proposed variation full consideration in deciding to recommend to Council approval or refusal of the variation.

Decision Criteria for Variations to this Chapter of the DCP

In assessing all such applications Council will have regard to:

1. The relevant provisions of the EP&A Act, 1979 as applicable in the circumstances;
2. The likelihood of an increase of risk to human life,
3. The likely effect of the development on the depth, velocity and distribution of flood waters and flood behaviour;
4. The potential for damage to the development and the likely damage to stock, machinery and equipment to be located in the development;
5. The number of persons expected to be housed or employed in the development and the measures to be established for their security and/or evacuation and the social disruption and financial loss arising from the design flood event;
6. The availability of alternative flood free sites and reasonable alternative uses for the land;
7. The potential for cumulative adverse impact if the proposed variation sets, or is likely to set a precedent;
8. The relationship to adjoining development.

SCHEDULE 1 – FLOOD PROOFING MATERIALS

Materials used and techniques shall be as listed below. These materials will be used in all situations where the component specified will be below the flood planning level.

Table 4.5 Flood proofing materials

Component	1st Preference	2nd Preference
Flooring and Subfloor structure	• Concrete slab-on-ground monolith construction. *Note: clay filling is not permitted beneath slab-on ground construction, which could be inundated.* • Suspension reinforced concrete slab.	• Timber floor (T&G boarding, marine plywood) full epoxy sealed joints.
Nails, bolts, hinges and fittings	• Brass, nylon or stainless • Removable pin hinges	• Galvanised steel • Aluminium
Floor Covering	• Clay tiles • Concrete, precast or insitu • Concrete tiles • Epoxy, formed-in-place • Rubber sheets or tiles with chemical-set adhesives • Silicon floors formed-in-place • Vinyl sheets or tiles with • Ceramic tiles, fixed with	• Cement/bituminous formed-in-place • Cement/latex formed-in place • Rubber tiles with chemical • Set adhesive • Terrazzo • Vinyl tile with chemical set adhesive • Vinyl-asbestos tiles asphaltic

Component	1st Preference	2nd Preference
	mortar or chemical-set adhesive • Asphalt tiles, fixed with water resistant adhesive	adhesives • Loose rugs • Alkali-resistant grout
Wall Structure	• Solid brickwork, blockwork reinforced, concrete or mass concrete.	• Two skins of brickwork or blockwork with inspection openings.
Roofing Structure	• Reinforced concrete • Galvanised metal construction	• Timber trusses with
Doors	• Solid panel with water proof adhesives • Flush door with marine ply filled with closed cell foam • Painted metal construction • Aluminium or galvanised steel frame.	• Flush panel or single panel with marine plywood and water -proof adhesive • T&G lined door, framed ledged and braced • Painted steel • Timber frame fully epoxy. • Sealed before assembly
Wall and Ceiling	• Fibrous-cement board • Brick, face or glazed • Clay tile glazed in water proof mortar • Concrete • Concrete block • Steel with water proof applications • Stone, natural solid or veneer, water proof grout • Glass blocks • Glass • Plastic sheeting or wall with water proof adhesive	• Brick, common • Plastic wall tiles • Metals, non ferrous • Rubber mouldings and trim • Wood, solid or exterior grade plywood fully sealed.
Insulation	• Foam or closed cell types	• Reflective insulation

Electrical and Mechanical Equipment

For dwellings constructed on flood liable land, the electrical and mechanical materials, equipment and installation should confirm to the following requirements.

Main Power Supply

Subject to approval of the relevant county council the incoming main commercial power service equipment, including all metering equipment, shall be located above the 1% AEP flood. Means shall be available to easily disconnect the dwelling from the main power supply.

Wiring

All wiring, power outlets, switches, etc. should, to the maximum extent possible, be located above the 1% AEP flood. All electrical wiring installed below the 1% AEP flood should be suitable for continuous submergence in water and should contain no fibrous components. Only submersible type splices should be used below the 1% AEP flood. All conduits located below the 1% AEP flood should be so installed that they will be self draining if subjected to flooding.

Equipment

All equipment installed below or partially below the 1% AEP flood should be capable of disconnection by a single plug and socket assembly.

Reconnection

Should any electrical device and/or part of the wiring be flooded, it should be thoroughly cleaned or replaced and checked by an approved electrical contractor before reconnection.

Heating and Air Conditioning Systems

Heating and air conditioning systems should, to the maximum extent possible, be installed in areas and spaces of the house above the 1% AEP flood. When this is not feasible, every precaution should be taken to minimise the damage caused by submersion according to the following guidelines.

Fuel

Heating systems using gas or oil as a fuel should have a manually operated valve located in the fuel supply line to enable fuel cut-off.

Installation

The heating equipment and fuel storage tanks should be mounted on and securely anchored to a foundation pad of sufficient mass to overcome buoyancy and prevent movement that could damage the fuel supply line. All storage tanks should be vented to an elevation of 600mm above the 1% AEP flood.

Ducting

All duct work below the 1% AEP flood should be provided with openings for drainage and cleaning. Self-draining may be achieved by constructing the duct work on a suitable grade. Where duct work must pass through a water-tight wall or floor below the 1% AEP flood, the duct work should be protected by a closure assembly operated from above the 1% AEP flood.

SCHEDULE 2 – GUIDELINES FOR PREPARING A FLOOD MANAGEMENT PLAN

The following guidelines form the basis of a property-specific flood management plan. They can be customised to individual circumstances including specific information relating to your property.

Emergency Flood-Proofing Measures

Apart from flash floods, most other floods allow some warning time. In many situations, unless a really major flood is expected, you may be able to keep flood water from entering your house, if you are prepared to take the necessary action. So plan and prepare ahead of the event.

CAUTION: Even if you take such measures to protect your home, you should still have a further action plan in case your flood-proofing fails.

Important Phone Numbers

Keep a list of emergency phone numbers near the phone including:

1. The SES
2. Police, Ambulance, and Fire
3. Hospital
4. Electricity
5. Moree Plains Shire Council

Check List for Emergency Kit

This kit should comprise the items below.

1. first-aid supplies
2. torch
3. battery operated portable radio
4. spare batteries for radio and torch
5. gloves

On Receipt of a Flood Warning

Flood Warnings are made available by various means including the internet. They are also provided by the radio, by the State/Territory emergency service media, television in some instances, or by direct contact in some areas. When heavy rainfall is being experienced, it is in your interest to find out whether any Flood Warnings are current.

Confirm preferred evacuation routes and flood refuge centre locations.

When you have either been informed or you find out that a Flood Warning has been issued for your area – NOW is the time to put your planning and knowledge to use. Know the whereabouts of other family members and near neighbours and whether they know what is happening. Listen to ABC and/or local radio for further flood bulletins. Ensure your portable radio has fresh batteries. Remove possessions to flood-free storage, and if possible, protect electrical appliances etc. All poisons, chemicals etc. should be stored above predicted flood height.

You may be isolated in your own home or you may be evacuated some distance away, so be prepared.

Initial Preparation

Move household items to a high place. Flood-free storage for lighter household items can often be built into ceiling space, however your ceiling or upper floor may not be able to safely support the additional weight of heavy equipment or furniture unless you have had it specially strengthened beforehand.

Place furniture on beds and then personal items on the furniture. Electrical equipment should be placed on top. Secure all items that may become hazardous and cause damage if moved by flood water, for example – refrigerators and other large household items.

Remove wood drawers from built-ins, cabinets and furniture. Wood swells when wet and the pressure between the drawers and their containers can damage furniture.

Remove light bulbs from light fixtures below flood level. Put the light bulbs and other glass items in plastic bags and move them above flood level.

Protect valuable machinery, equipment and the like that cannot be relocated by enclosing in waterproof covers. Certain machinery may benefit from a coating of grease (please check with the manufacturer prior to applying any substance). Another alternative to consider is encircling such equipment with a wall of sandbags.

Move livestock, machinery, pumps, irrigation equipment etc to high ground. Prepare by knowing the flood heights that affect your property and knowing where higher ground can be found. Remember that higher ground may become isolated with rising flood water. If you are in a rural area and are likely to be isolated by flood waters, paint the name of your property on the roof in large letters.

Family Records - Checklist

Prepare a check list of important family records. Include list of important records including wills, birth/marriage certificates, banking, financial records, etc. Have these stored in a secure location and ready to be packed in a waterproof bag for inclusion in your emergency kit if you need to evacuate.

For the Elderly or those with Special Needs

Disabled and elderly persons will usually require special assistance as they may be dependent on the help of others to prepare their properties and themselves to evacuate if required. Some tips on to how to manage your flood action plan follow:

1. Assess your own special needs, limitations and capabilities realistically and honestly and make a list.
2. Include details of any special dietary needs.
3. Write down name, address and phone numbers of your doctor.
4. Give a copy to a family member, friend or neighbour who could physically help if required and which could be readily available to emergency workers.
5. Keep medications, duplicate prescriptions and other medical needs handy.
6. Keep mobility items close at hand.

Fill your petrol tank and stock your car with emergency supplies to be evacuated with you.

Immediately Prior to Evacuation

Include cardboard boxes and newspapers etc, as items to be moved to higher ground. If this is not done, they will disintegrate and clog drains.

Remove perishable food from refrigerators, place in plastic bags or containers and seal. Tie and anchor outdoor garbage bins to minimize spread of disease and unsanitary conditions. Leave refrigerator and freezer doors or lids open, (otherwise they may float, tip over and be damaged or cause damage).

Tie down timber, drums and other loose, buoyant items in the yard to prevent them from being carried away by flood water or battered against other items or structures.

Secure dangerous or damageable items

Relocate chemicals that react with water to give off heat or form explosive or toxic gases and poisons to the highest level in your home in waterproof containers. Include any substances that could contaminate flood waters.

When evacuation becomes necessary, either by emergency workers (SES), Police or you decide to leave, implement the following preparations and actions:

Electricity

Electricity is controlled by either plug fuses or circuit breakers located within a meter board fuse-box mounted on the wall of your home. If flooding is imminent, remove (don't just loosen) all fuses, including the one at the main switch and at the range switch, and put them in a place above the anticipated flood level. This will minimise the danger of short circuits when the power authority returns service to your home after the flood.

If you have a circuit breaker panel board, switch each circuit breaker to the OFF position.

Gas

Close main gas valve on any tanks or cylinders. This valve is generally located on the gas piping just prior to its entry into the gas meter.

Gas cylinders/bottles should be tied down or disconnected and moved above anticipated flood height.

Water

Close main water valve. It usually is found on the main line where the water supply enters your property at the water meter.

Drinking water can be stored in a clean and covered bathtub or in the hot water tank.

If the hot water tank valves are turned off and no heat is supplied to the tank, flood water cannot enter the tank.

Fuel Tanks

Anchor fuel tanks to prevent them from overturning or floating. Close fuel tank valves to prevent leaks, spills and flood water infiltration.

Toilet and Showers

Place a strong plastic bag full of sand or earth in the toilet bowl to prevent a back-flow of sewage into your home. Place a strong plastic bag full of sand or earth over shower and bath outlets.

Emergency Kit

Locate your basic Emergency kit and include last minute items such as:

1. Special medicines
2. Non-perishable food and water for your family and pets
3. Blankets and dry clothing

4. Rubber boots
5. Important papers, bank books, money and credit cards
6. Valuables and cherished articles (jewellery, photographs etc.)

Evacuation

Evacuate if requested to do so by the SES or Police.

If you evacuate voluntarily prior to an evacuation request make sure you tell a member of the family, a friend or a neighbour and the State/Territory emergency service or police when you are going, (and where, if you know) so that authorities can account for you. Remember in an ordered (planned) evacuation take only those items essential to your special needs. Food, clothing, shelter and first aid should be available at the evacuation centre. Travel light. Protect valuables and goods

Listen/watch for flood reports and instructions. Follow all instructions by emergency authorities and react to changing conditions.

Post Flood

Wait until authorities have declared the area safe before entering a flood zone. Before entering your house, wait until water has fallen below floor level.

Wear rubber boots (or at least rubber-soled shoes) and rubber or leather gloves.

If you are going into an isolated area notify the proper authorities.

Check with electricity, gas and water authorities to determine whether supplies to your area have been interrupted and are safe to be turned on by you. If the water supply system has been flooded, you must assume it is contaminated.

Hazards

Indoors or out, under flooded or damaged conditions, treat every electrical item with the greatest respect. EVERY SOURCE OF ELECTRICITY CAN BE EXTREMELY DANGEROUS under flood conditions.

If travelling on foot through a flood zone, observe overhead electrical lines for broken wires or evidence of arcing. Avoid power lines if possible. If you must cross them, cross under them only at mid-length between supporting poles.

An energised electrical wire or pole partially or totally submerged in water – whether metal or wet wood – can create an electrical field in the water that will cause a serious electrical shock hazard.

On Entering your Home

Move around slowly and carry a torch as you inspect for damage. Flooring and stairways need particular attention. Watch for loose floor boards, holes in the floor, protruding nails, and sagging ceiling areas that may be ready to fall. Wet plaster is heavy and dangerous; if loose, use a broom stick or any other long handled device to break it down before doing any work. Take care, as a sagging ceiling may contain a surprising quantity of water. Do not smoke or use open flames, as escaping gas may have collected in pockets of the building.

Also keep a look out for other flood "victims" such as snakes and spiders.

There is a very real risk of death within a flooded home containing energised wiring. Do not turn on any lights or appliances until a qualified electrician has checked the entire electrical distribution system.

Electrical Distribution System

Every portion of your electrical system that has been covered with water or mud must checked by a licenced electrician before it is used.

Drinking Water

If there is any chance of flood contamination of your drinking water, drink only boiled or bottled water until the normal water supply has been declared safe by health authorities.

Town and village water systems as well as private sources are subject to flood contamination, and health officers should certify water sources as fit for consumption.

Food

Discard all foods exposed to flood water except those in sealed (airtight) metal cans. Permanently mark the cans to keep their contents identifiable, remove paper labels, and wash the cans in soap and warm water. Then immerse in a solution of three quarters cup of household laundry bleach per five litres of water for two minutes to disinfect the outside of cans. Rinse immediately in clean water. Do not treat aluminium cans with bleach solution.

Hygiene

Remove and burn or bury rubbish, decaying vegetation and driftwood.

Wash out mud, dirt, and debris from your home as soon as you can at medium pressure.

Use a hose and start from the top or upper limit of the flooding and work downward to the floor or basement.

Wash surfaces that have been inundated with flood waters in order to reduce the danger of flood-carried infections. Pay particular attention to surfaces that children can reach.

Wash your hands thoroughly (with a disinfectant soap) after handling contaminated articles.

To be on the safe side, consider all items exposed to flood waters as contaminated.

Wait until your home and belongings have been thoroughly cleaned and dried before deciding whether to throw out. They may return to good condition or at least be repairable. Much can be salvaged if immediate restoration steps are taken as described in the following pages.

Insurance Claims

Insurance claims need to be considered first. The advice contained within this document is of a general nature. Always seek expert advice on repairs or discuss concerns with your insurance company. This needs to be done prior to cleaning or disposing of damaged items.

Bedding

Mattresses soaked with flood water generally are damaged beyond use and should be discarded.

Feather and foam rubber pillows may be washed but those stuffed with kapok or cotton may not.

Clothing, Household Linens and Woollens

Allow clothing that is to be dry-cleaned to dry slowly at room temperature, away from direct heat. Shake, brush, or vacuum loose dirt from the articles before sending them to the cleaners.

To clean washable woollen clothes and blankets, first shake and brush to remove dirt, then rinse repeatedly in lukewarm water to remove particles of soil lodged in fibres.

Dry woollens in a warm place but not near a fire or in direct sunlight. Never allow them to freeze.

To clean mud-stained, washable clothing and household linens other than woollens, first brush off any loose dirt, then remove as much mud as possible by rinsing repeatedly in cool water.

Electric blankets should be dried on a clothesline and gently stretched into their original size and shape. They should NOT be used until safety tested by a qualified electrician.

Wash lightweight quilts in the same manner as woollens. Dry outdoors in the sun, if possible, to remove unpleasant odour. Thick comforters may need to be taken apart and the cover and filling each washed separately.

To further ensure sanitisation of washable articles, sanitise the washing machine occasionally to kill bacteria that live on the interior surface. Pour a disinfectant into the empty machine, then complete a 15-minute cycle at the hot water setting.

Floor Coverings

You will have to make a decision regarding cleaning your rugs and wall-to-wall carpeting. If you leave the carpeting on the floor, you risk fostering wood decay, mildew, and warpage of the flooring by hindering its drying. However, if you remove the carpeting, you risk shrinkage. Although professional cleaners do have methods for controlling shrinkage, the chance of preventing it entirely for wall-to-wall carpeting is unlikely.

If linoleum is broken, brittle, and cannot be salvaged, remove it with a chisel or hoe. Be sure to let the underfloor dry thoroughly before laying any type of floor covering.

Furniture

Promptly place pieces of wood or aluminium foil under furniture that has castors or metal caps on the legs to avoid staining carpeting.

When weather permits, take all furniture outdoors, but keep it out of direct sunlight to prevent warping or fading. A garage or carport is a good place to work. Remove as many drawers, slides, or other moving parts as possible. If the furniture is made of wood, these will probably be jammed in position. Do not force drawers with a screwdriver or chisel.

Remove the back of the furniture – cutting it out if necessary and push out the drawers.

If kitchen cabinet doors or drawers are stuck, do not force them open. Once they have dried they should be easier to open.

Clean off all mud and silt from furniture items, using a hose if necessary.

To remove mildew from wood furniture, scrub with a mild alkali, such as four to six tablespoons of baking soda to five litres of water. Rinse well with clean water and allow to dry thoroughly. After cleaning, store the wood furniture inside the house or garage where it will dry slowly; do not leave it out in the sun as it might warp and twist.

To remove mildew from upholstered furniture, first remove loose mould from outer coverings by brushing with a broom. Dry the article as quickly as possible with an electric heater, fan, or any convenient method to carry away moist air. Sun and air the article to stop the mould growth.

CAUTION: Sunlight may fade the colour of your upholstery.

If mildew remains on upholstered articles, sponge lightly with thick suds of soap or detergent and wipe with a clean, damp cloth. Use as little water on the fabric as possible to avoid soaking the padding.

Wood furniture that has not been submerged may have developed white spots or a whitish film or cloudiness from dampness. Try rubbing with a cloth wrung out of a mixture of half cup household ammonia and half cup water, turpentine, camphorated oil or oil of peppermint. Wipe dry at once and polish with wax or furniture polish. If colour is not restored, dip fine steel wool in oil (boiled linseed, mineral, or lemon) and rub lightly with the grain of the wood. Wipe with a soft cloth. Use a drop or two of ammonia on a damp cloth for deep spots; immediately rub dry with a soft cloth and then polish. If all efforts to remove white blemishes are ineffective, it may be necessary to refinish the furniture.

Leather

Remove surface dirt from leather by rinsing with cold water, then wipe with a dry cloth. Stuff purses and shoes with crushed paper to retain shape. Leave suitcases open.

Dry leather away from heat and sun. When dry, rub with saddle soap. Neat's-foot oil may be used on shoes that have become stiff, however, it causes leather to darken. Paste-type neutral floor wax may be used on leathers as a final polish if they are not to be refinished by a commercial cleaner.

Use fine steel wool (lightly) or suede brush on suede.

Rinse leather and suede jackets in cold water. Dry away from heat.

To remove mildew from leather goods, wipe with a cloth wrung out of diluted household bleach. Dry in an airy place. If mildew remains, wash with thick suds of a mild soap or detergent, saddle soap, or a soap containing a germicide or fungicide. Then wipe with a damp cloth and dry in an airy place. Polish leather shoes and luggage with a good wax dressing.

Refrigerator and Freezers

Clean them thoroughly and disinfect inside. Don't turn them on until they have been given the opportunity to dry out. Have them checked by an electrician first.

TV/Radio Sets

TV and radio sets, even if completely immersed may be salvaged and repaired provided the cabinet is sound and appearance acceptable to the owner. Those wishing to try salvage are advised to take the following steps:

1. If still wet and muddy, thoroughly and gently hose the set internally and externally with clean fresh water, or if it has dried out, gently brush out dirt etc.
2. In either case, then apply a non oil-based water repellent/cleaner (for example, isopropyl or methylated spirits) to all metal and electrical parts, avoiding rubber components.
3. Allow to dry (seven days). In the meantime, call an expert for a repairs quotation.

Hot Water Systems

A flooded hot water system should be repaired by an experienced repair person only. Controls can suffer hidden corrosion damage. They may operate adequately for a while, but cease to operate safely in the future. Testing seldom reveals future problems. Burners or electrical components should not be assembled or adjusted by the home owner/occupant.

Valuable Books and Papers

Wet paper attracts mould and will continue to deteriorate until it dries. Separate sheets of paper as soon as you can and allow them to dry. Separate sheets not touching one another can be placed in a photographic print dryer, but care must be taken to prevent them from scorching.

Larger quantities of paper, such as in file cabinets; can be placed in a freezer to stop mould and deterioration. Separate into small bundles. When time allows, bundles can be removed, allowed to thaw, and individual sheets separated and dried. Do not try to unfold wet paper because it tears easily.

Many stains can be removed from water damaged paper with non sudsy household ammonia. Use it in a well ventilated place to avoid fumes.

Place books on end to dry and keep the leaves apart. If books are very damp, sprinkle cornflour or talcum powder between the leaves to take up the moisture, leave for several hours and then brush off.

After exposing books to the air for a time, pile and press them to keep the leaves from crumpling. Continue this alternate drying and pressing until they are dry to prevent mildew.

Just before they are completely dry, apply a little heat between the pages to prevent musty odours.

Building Repairs

The main considerations are to dry the building materials and furnishings out as soon possible, and to delay renovation and redecoration for as long as possible, at least until building components are substantially dry.

Drying involves draining, flushing or pumping out mud and water from wall cavities, ducts, service pits and basements; ventilating as much as possible by keeping doors and windows open, taking up floor coverings, and moving furniture away from walls; and ensuring good sub-floor ventilation by removing floor boards to assist in drying the floor and floor joists.

Drying can also be assisted by the use of fans and heaters. Waterlogged insulation material should be removed. In the case of masonry houses, mud should be cleared from the wall cavities and ventilators.

Electricity and gas service pose special problems and the appropriate authorities should be contacted to check and, if necessary, to arrange for repair of flood affected fittings.

The natural tendency to restore the appearance of a flood damaged building as soon as possible should be resisted. Drying out is likely to take a long time – possibly months – depending on the type of construction, and premature painting of walls and restoration of floor coverings will delay drying of the structure and probably lead to early manifestations of dampness (such as mould growth) and failure of paint films.

Similarly, repainting and other repairs to cracked brickwork or concrete masonry are best left until the foundation soil has dried out and foundation movements have ceased. Doors and windows should not be replaned to make them fit their frames until the timber is back to its normal moisture content, which may take several weeks. One thing that should be done promptly is to oil locks and hinges to prevent them binding with rust.

Brickwork and Concrete Blockwork

Mud on the walls will make them look unsightly and will probably be stuck fairly firmly, but mud will not seriously affect the performance of masonry. The mud should be cleaned off using water, detergent and a good stiff nylon or bristle brush. It is not a good idea to use acid as this could cause staining.

As the walls dry out, there is a fair risk of efflorescence or white salt growth on the bricks or blockwork. This is not serious and it should stop when the wall is fully dried. In most cases it can be removed by brushing with a bristle broom. Acid treatments may be effective as a last resort but should be used cautiously.

Wall Cavities

One of the places where cleaning is often overlooked is within the cavities of timber, brick veneer or cavity brick walls. Make sure there is no mud present that will hold water. Take off the top and bottom boards, part of the wall lining or a few bricks to inspect the cavities. If necessary, flush them out and leave them open until everything is dry.

Remember that with timber frames there may be noggings in the frame half-way up which could hold the mud.

Sub-Floor Space

If necessary, clear all the mud out from the sub-floor. This may involve taking up some floor boards which should be left up to help drying. Everything should be done to increase under-floor ventilation, for example by taking out bricks from the walls below floor level.

Careful attention should be given to clearing away any mud from around the floor joists and other sub-floor members.

Floors

Do not attempt to straighten warped or buckled wood floors until they have dried out. Wood and plywood expand when wet, then return to near original dimensions when dry.

Flooring may require replacing, refastening, or refinishing, but if there is any question, wait until after drying is complete to make the decision. Remove floor coverings, to allow the flooring to dry. Mop off excess water as soon as possible.

Heating Ducts

Clean out all mud and water from heating and other duct work.

Stains

Rust stains can be treated with proprietary phosphate compounds. Stains from timber can be treated with bleach. Some bleaches (such as oxalic acid) can be dangerous to humans and should be handled with care. Oil stains, grease etc. can be treated with detergents.

Mould

It is highly likely that wet lining boards and some timbers will grow mould during the drying process. Remove it with hypochlorite bleach used in accordance with the manufacturer's recommendations. Repeated applications may be necessary as the drying continues.

Note that the bleach may affect the colour of some materials.

Wetting for a short period does not cause permanent damage to many building materials but they should be dried out as quickly as possible. Check for hidden pockets of water and think of ways to facilitate the drying. In most cases, especially with masonry materials, drying can take a very long time, possibly months.

Don't repaint walls too soon. Drying will be quicker if furniture and pictures are kept away from them.

Brickwork

Don't rush into brickwork repairs. Wait until there is a fair chance that all movement has ceased before patching any cracks. Some cracks may actually close up as the foundation dries out. Minor cracks are not serious in brick veneer structures as there is usually a large margin of structural safety.

Joinery

Again, don't rush into repairing things until the timber has had a chance to dry. A door may have swollen and jammed while it is still wet. Don't trim it off while wet. Wait until it is dry – it will probably fit again then. It may help to take off the architraves to help drying.

Particle Board

Particle board is likely to lose strength when saturated and re-dried. Any parts carrying load should be very carefully checked, particularly if they show any sign of swelling, before they are re-used.

Plaster Sheet

Plaster sheet is very weak when wet but may recover its strength when dry. If it is obviously damaged, get any load off it and let it dry – it will probably be alright, particularly if reinforced with glass fibre.

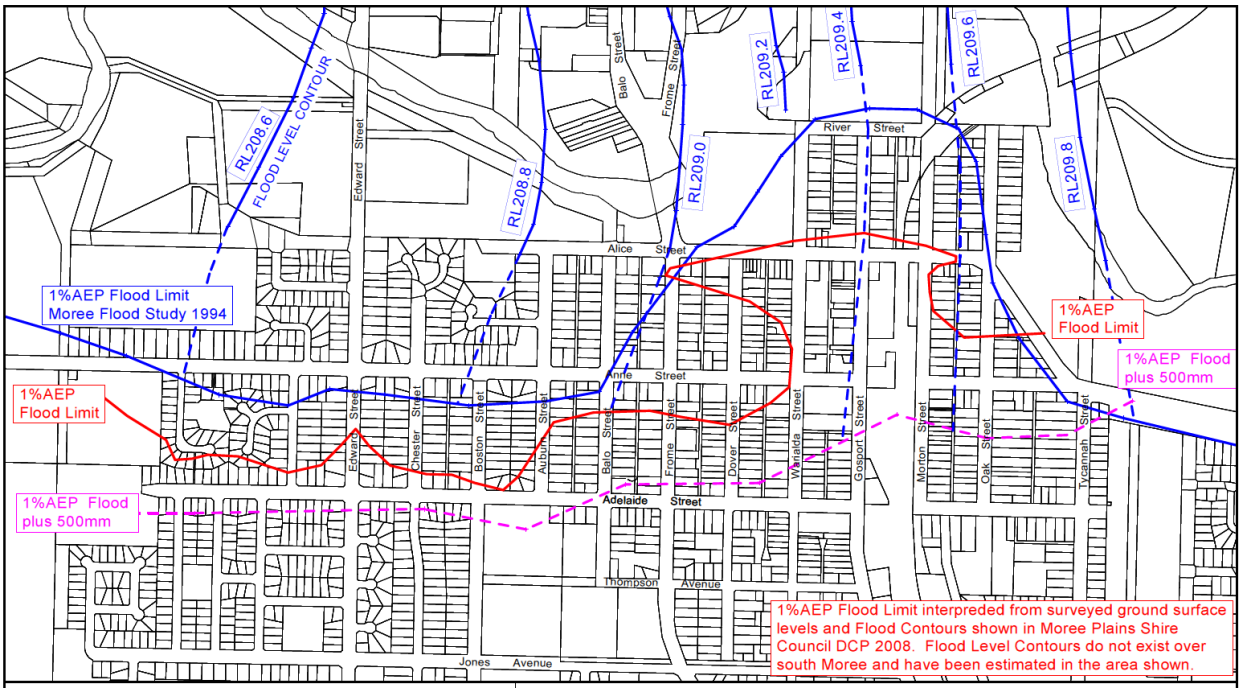


Figure 4.1 Flood levels – South Moree

5. COMMERCIAL USE OF PUBLIC FOOTWAYS

ABOUT THIS CHAPTER

This Chapter provides a framework for managing the commercial use of public footways.

WHERE THIS CHAPTER APPLIES

This Chapter applies to land zoned Business (B1, B2, B3, B6 or B7) under Moree Plains Local Environmental Plan 2011.

GENERAL ADVICE TO APPLICANTS FOR COMMERCIAL USE OF PUBLIC FOOTWAYS

Aims:

1. To support Moree Plains Local Environmental Plan 2011 as amended by providing additional detail and guidance on the regulation of the commercial use of public footways and public spaces; and
2. To enable businesses to enter into a lease agreement with Council, for the use of public footways and public spaces within the business zones, for certain commercial purposes in the Moree Plains Local Government Area.

Objectives:

1. To manage footpath use by private enterprise in a controlled and safe manner;
2. To ensure the commercial use of footways does not compromise the safety;
3. To permit the provision of outdoor seating in the business zone;
4. To minimise the risk of injury to the public;
5. To ensure a free path of travel for all pedestrians;
6. To ensure access to and from premises is not obstructed;
7. To ensure people with a disability are not disadvantaged; and
8. To provide additional colour and interest to the business areas of the shire.

Gaining Approval:

The following approvals/consents are required to be obtained prior to the use of public footways for commercial purposes:

1. Development Consent under Part 4 of the Environmental Planning and Assessment Act, 1979;
2. Approval under Sections 125 and/or 138 of the Roads Act, 1993;
3. Approval under Section 68 of the Local Government Act, 1993.

Should Council determine to grant consent to an application for the commercial use of a public footpath, Council will obtain/issue the abovementioned approvals/consents as part of the development consent process.

Lease Agreement

As well as the abovementioned approvals, the applicant shall enter into a lease agreement with Council for the area of public land used by the development. The term of any lease agreement shall not exceed the term of the development consent. The lease charges are detailed in Council's current Management Plan.

Public Liability Insurance

As a condition of any approval Council will request that at all times the applicant shall have in force a Public Liability Insurance policy in the sum of not less than $10,000,000 or otherwise specified by Council. The policy shall include the public area the subject of the development consent and shall indemnify Council in the event of any claim. Council shall be named in the policy as an interested party.

A copy of the policy shall be lodged with Council prior to the release of the development consent and thereafter annually.

Hours of Operation

The hours of operation of any commercial use of a public footpath shall not exceed the hours of operation of the associated premises.

FOOTPATH CLEARANCE AND BUILDING ACCESS

Introduction and General Provisions

The layout of activities and outdoor furniture pertaining to any use of a public footpath should maintain unobstructed pedestrian flows and should not compromise the safety of the footpath's users. It should also enhance or complement the existing neighbourhood character.

Aims:

1. To ensure the commercial use of footways does not compromise the access or safety of its users and pedestrians.

Performance Outcomes:

1. Commercial use of footpaths is arranged so that there is enough room for its users to move around without obstructing or endangering pedestrians;
2. Unobstructed access along the footpath as well as to and from all premises is maintained at all times;
3. The width of any required emergency exit is not diminished, obstructed or encroached upon by any use of the footpath;
4. Vehicular traffic entitled to cross the footpath is not obstructed by any use of the footpath;
5. Access for disabled persons is not obstructed by any use of the footpath;
6. Outdoor furniture or stands are stable and safe.

Acceptable Solutions:

1. Except for blisters (see Figure 5.1), commercial uses of footpaths must be located outside the associated premises. In this regard commercial uses of footpaths shall be set back 1

metre from the associated premise's projected side boundaries and 600mm from the kerb (unless a barrier at least 900mm high and of sturdy construction is placed at the kerbside);

2. A clear pathway at least 2 metres wide must be maintained along the footpath directly adjacent to the building wall and kept clear of obstacles at all times;
3. Doorways and crossovers must be maintained clear at all times for a width at least equal to that of the doorway or crossover.
4. Outdoor furniture/stands/umbrellas must be stable with no sharp corners, edges or projections.
5. Outdoor furniture/stands/umbrellas must not be fixed to the pavement but care must be taken to ensure its stability in windy conditions.
6. Freestanding umbrellas may be used in areas without shade only and they must not overhang any pedestrian corridor and must have a minimum clearance of 2.1 metres.
7. *Note: 900mm high (canvas) screens and/or planter boxes of a high standard of appearance may be used to delineate dining areas subject to Council approval;*

Alternative Approaches and Design Suggestions:

1. Commercial uses along footpaths should generally be arranged as shown in Figures 5.1 - 5.3.

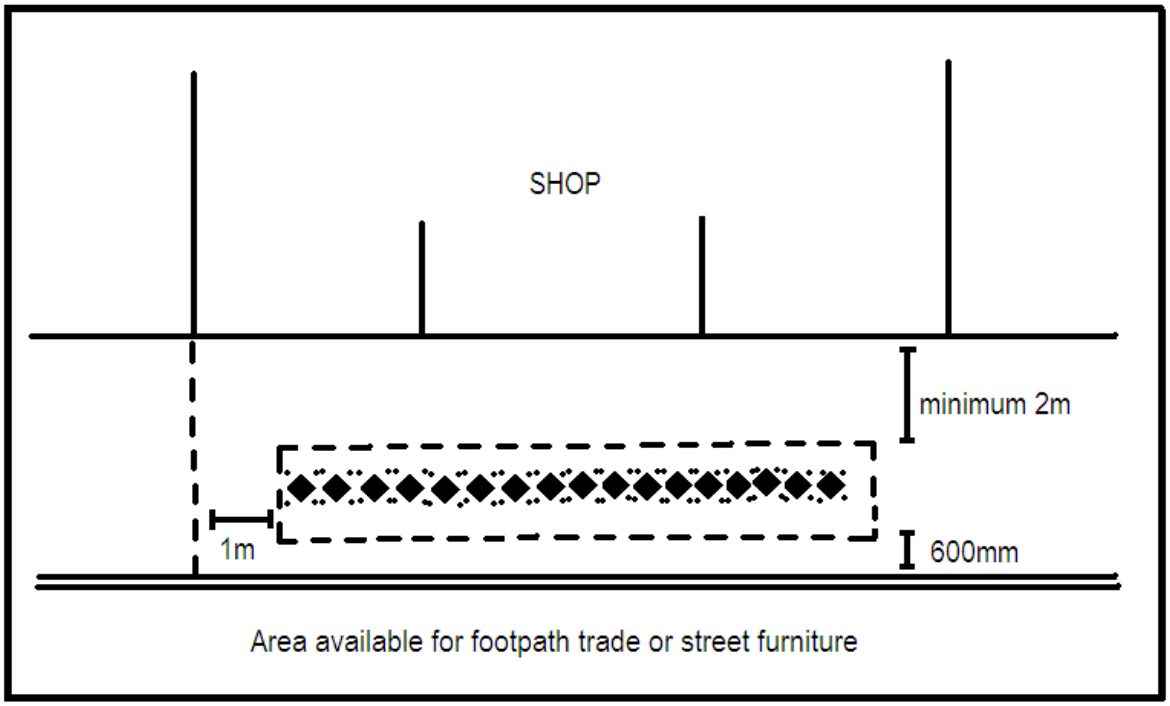


Figure 5.1 Footpath lease area adjacent to the kerb

Additional seating or display space may be available by placing the dining or display area towards the kerb. These facilities shall be located in accordance with Figure 5.2.

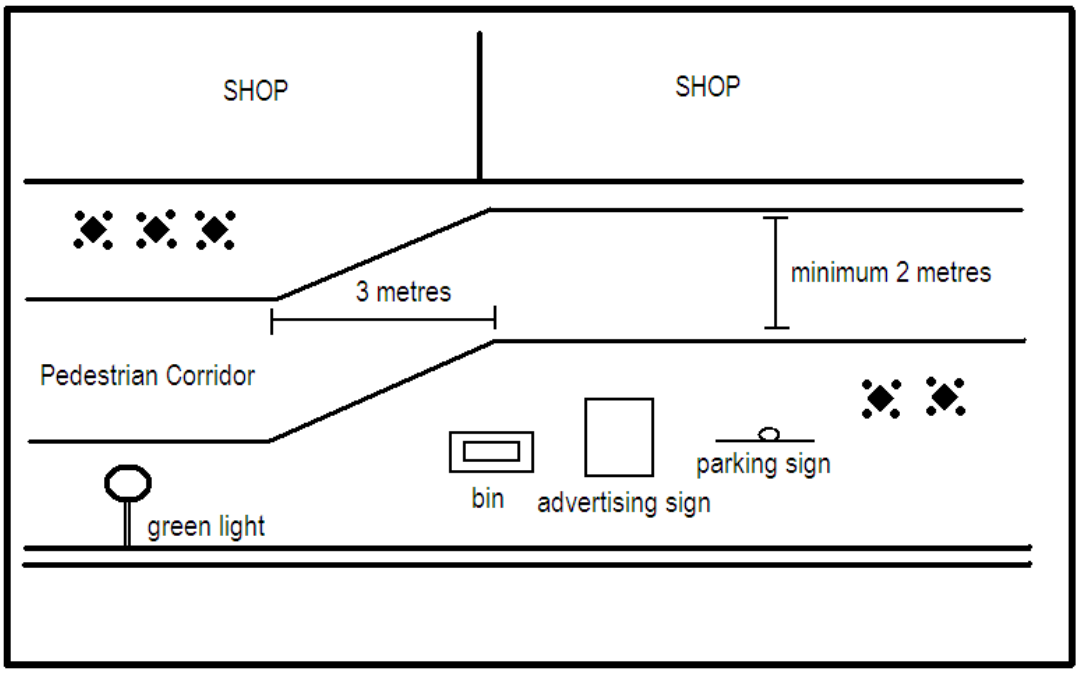


Figure 5.2 Alternative footpath lease area arrangements

Where shopkeepers wish to use a combination of shopfront and kerbside dining or display areas, then a transition zone not less than three metres long shall be maintained where a deviation in the pedestrian thoroughfare is required.

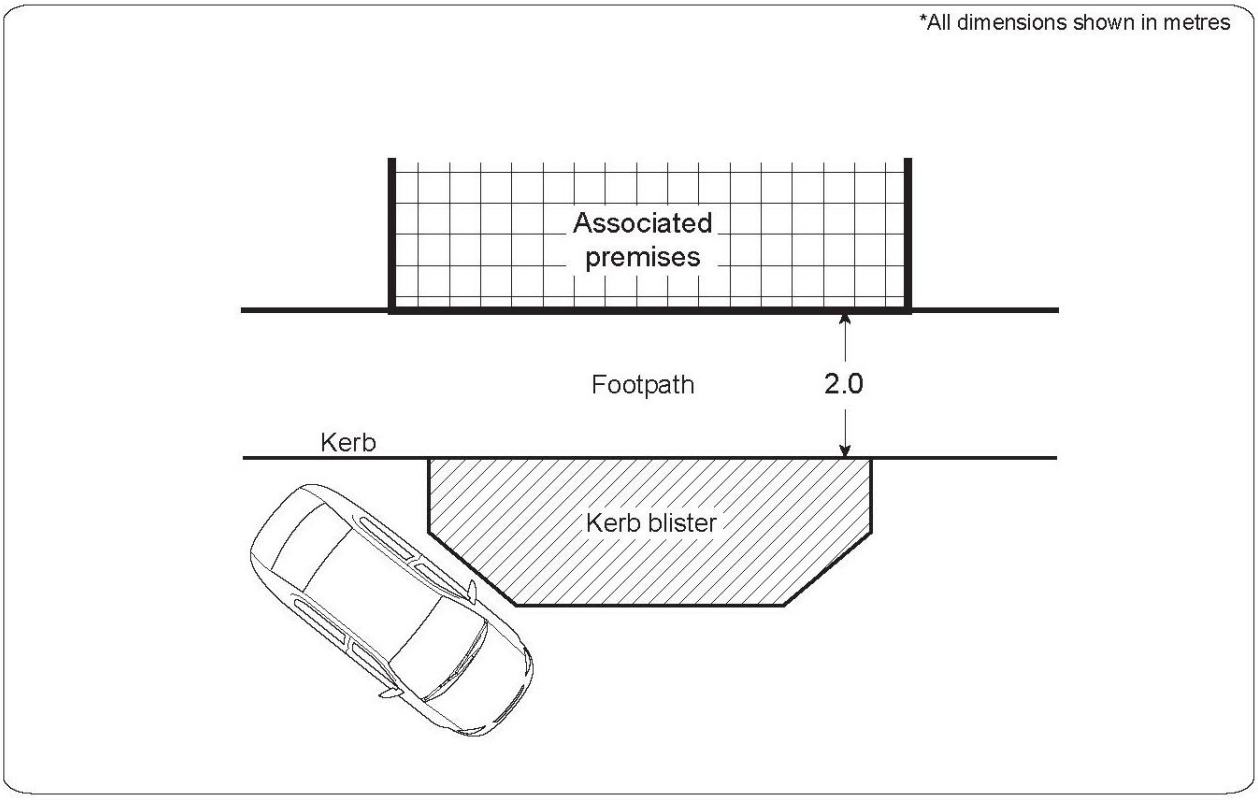


Figure 5.3 ..... Blister dining or displays

Kerb blisters provide ideal areas for commercial activities to take place. Council may consent to the use of kerb blisters for footpath dining or other uses where the use extends in front of adjoining shops where no objection is raised by the adjoining shopkeeper.

OPERATION OF OUTDOOR DINING AREAS

Aims:

1. To ensure outdoor dining areas maintain good levels of hygiene;
2. To ensure outdoor dining areas do not compromise the access or safety of its users and pedestrians.

Performance Outcomes:

1. Outdoor dining areas are to be kept clean and managed by Council approved food premises;
2. Outdoor dining areas and their users should not obstruct or endanger pedestrians;
3. Outdoor dining areas should not detract from the existing or preferred neighbourhood character.

Acceptable Solutions:

1. Outdoor dining areas are provided only in conjunction with Council approved food premises
2. The outdoor dining area is either in front or immediately adjacent to the food premises.
3. Outdoor dining areas do not operate beyond the approved hours of operation for the associated food premises;
4. Outdoor dining areas are only be located on sealed surfaces (not including asphalt) that comply with all of Council's requirements. *Note: Should an applicant propose outdoor dining on an unsealed surface, the applicant will be required to pay the cost of construction for the required sealed surface.*
5. Outdoor furniture, other facilities and the pavement are kept clean and free of food scraps or other droppings and litter at all times;
6. The lessee provides and maintains litter bins in the dining area;
7. An outdoor water point is provided, such being recessed into the wall of the associated food premises and is used for cleaning the outdoor dining area as required;
8. The lessee steam cleans the pavement of the outdoor dining area and adjacent pavement immediately if directed to do so by an officer of Council;
9. Outdoor furniture is maintained in an aesthetically pleasing condition;
10. Outdoor furniture is kept strictly within a bounding area in compliance with the requirements outlined above in the *Footpath Clearance and Building Access* clause.

Alternative Approaches and Design Suggestions:

1. Council may nominate a range of preferred styles. Each establishment should adopt a single colour and style of seats, table and umbrellas for its particular area to provide consistency and identity;

6. REGULATION OF BROTHELS

ABOUT THIS CHAPTER

Brothels require development consent from Council before they can operate and must also comply with Council's planning controls. These controls are contained within the Moree Plains Local Environmental Plan 2011 and this chapter of the Development Control Plan.

The planning controls are designed to ensure that brothels operate in appropriate locations and in an appropriate manner so that their effects on the community are minimised and do not result in the loss of any community amenity.

WHERE THIS CHAPTER APPLIES

This chapter applies to any application for a brothel in the Moree Plains Shire.

GENERAL ADVICE TO APPLICANTS FOR BROTHELS

Purpose

The purpose of this chapter is to provide detailed planning controls and guidance for the operation of brothels.

Aims:

This chapter aims to:

1. Provide guidelines and planning controls for the determination of development applications for brothels in the Moree Plains Shire; and
2. Ensure that the operation of brothels meets community standards and does not adversely affect the amenity of land used for educational, recreational, residential, cultural, religious or community purposes or neighbourhood business.

Objectives:

The objectives of this chapter of the DCP are:

1. To ensure that brothels are appropriately located to minimise offence to the community and mitigate any adverse social impacts;
2. To ensure that the access to brothels is safe for patrons and staff;
3. To ensure that brothels are designed to minimise the impact and presence of the development in the locality;
4. To ensure that there is adequate provision for off street car parking;
5. To ensure the safe and healthy operation of brothels;
6. To ensure that brothels operate at times where they will have least impact on the community and surrounding neighbourhood; and
7. To allow Council to monitor the operation of approved brothels in terms of compliance with conditions of consent and complaints from the general public.

Application of the Chapter

Council shall take the provisions of this chapter into consideration in determining applications for the operation of brothels. Compliance with the provisions of this Chapter does not necessarily imply that Council will consent to an application. Council must consider the full range of matters listed under Section 79C(1) of the Environmental Planning and Assessment Act 1979. Each application will be considered on its merits.

Note that Council may give consideration to a time-limited consent, in the circumstances of the case, in particular where Council is of the opinion that a limited period of operation is necessary to fully assess whether a brothel could operate in a satisfactory manner. Within this period the applicant shall be entitled to seek an amendment under Section 96(2) of the Environmental Planning and Assessment Act 1979 to allow an extension to the operation of the brothel. Council may then decide to either allow the brothel to operate for a further period or decline to amend the period of operation, in which case the brothel shall cease operation on the expiration of the consent.

Information to be Supplied

The following information as a minimum must accompany any development application for a brothel:

1. Plan Information:
    a) A fully dimensioned Location Plan, drawn to scale, showing proximity and location to nearby churches, schools, community facilities, hospitals, bus stops, parks and recreational facilities used by children, such as amusement arcades, sporting fields etc and distance from any residential zone or from properties used or partly used or capable of being lawfully used for residential purposes (other than ancillary dwellings); and
        i) Type of land uses carried out on adjacent and nearby properties; and
        ii) The location of any other brothel in the vicinity;
    b) A fully dimensioned Site Plan drawn to scale which locates the proposed brothel accurately in relation to the boundaries of the subject land;
    c) A Floor Plan and Elevation Plans of the building drawn to scale which indicates the proposed use of each room and shows compliance with the Building Code of Australia and the Disability Discrimination Act 1992; and
        iii) Entrances to and exits from the site; and
        iv) Location, number and layout of off-street car parking; and
        v) The exterior colour scheme of the proposed brothel; and
        vi) Details of the existing and proposed external lighting.

2. Written Information:
    a) The application shall include a Statement of Environmental Effects detailing the proposed use and indicating the following:
        i) Name of occupier of the premises or contact person;
        ii) Number of employees, including the number of sex workers;
        iii) Proposed hours of operation;
        iv) Number of rooms in the premises proposed to be used for prostitution;

v) Car parking facilities;

vi) Method of laundering linen/towels;

vii) Sanitary facilities to be provided;

viii) Health and hygiene control;

ix) Ventilation and lighting; and

x) Security provisions.

The Statement of Environmental Effects submitted with the application shall also demonstrate how the proposal complies with Council's planning requirements and the matters to be assessed under Section 79C(1) of the Environmental Planning and Assessment Act 1979.

3. A Waste Management Plan is to be prepared in accordance with the NSW Health Department's guidelines.

Note: Failure to comply with this Plan or submit the information detailed above will usually mean that the application will be delayed or refused.

ESTABLISHMENT OF BROTHELS

Introduction and General Provisions

Brothels are to be only located within Zone RU1 (Primary Production); B3, B6 and B7 (Business) and Zone IN1 or IN2 (Industrial) as identified in the Moree Plains Local Environmental Plan 2011.

Aims:

1. To ensure brothels and associated activities remain discreet and dispersed;
2. To prevent safety problems for staff and patrons.

Performance Outcomes:

1. Brothels are not located in such concentration (either alone or in combination with other sex-related businesses) as to result in the creation of a "red light" district;
2. Access to or from a brothel is not near or within view from a church, hospital, bus stop, school or any place frequented by children for recreational or cultural activities;
3. Patrons of brothels do not loiter outside the premises;
4. Access to the premises is clearly illuminated in order to discourage loitering and to ensure the safety of patrons and staff;
5. Brothel premises are designed to be compatible with the built form of adjacent premises;
6. Disabled persons are able to comfortably access the development.

Acceptable Solutions:

1. The brothel is not located within 100 metres access (pedestrian shed) of any other brothel;
2. The brothel is not in a “shop front” premises;
3. The brothel is not located within a 150 metre access (pedestrian shed) of existing dwellings and hospitals;

4. The brothel is not located within a 200 metre access (pedestrian shed) from churches, schools, recreation areas and childcare centres;
5. The brothel does not adjoin a residential flat, a residential flat building, an activity operated by a religious institution, a restaurant, a supermarket, a video shop, or amusement parlours and/or arcades;
6. The brothel is not be located in or adjoining licensed premises, motels, boarding or guest houses;
7. The brothel does not contain more than 4 separate rooms for the purposes of sex services;
8. The brothel is provided with a waiting room of at least 20 square metres in size;
9. The brothel is fitted with the necessary facilities and services for Class 6 buildings under the Building Code of Australia;
10. All windows are covered with blinds or curtains at all times;
11. Outdoor lighting complies with Council's requirements;
12. Access for disabled persons is provided to the development in accordance with the Disability Discrimination Act, 1992 and the Building Code of Australia.

Alternative Approaches and Design Suggestions:

N/A

OPERATION OF BROTHELS

Introduction and General Principles:

The premises must be kept in a clean condition at all times. Cleaning is to be carried out by staff as required. Particular attention must be paid to showers, baths and toilets (which may harbour and spread fungi if inadequately disinfected and ventilated), linen, and swimming and spa pools.

Other General Provisions:

1. Hours of operation are to avoid times of peak community activity in the locality.
2. Signs indicating that any premises are used for, are available for use, or that a person is available, for the purposes of sex services are not to be erected.
3. No food or alcohol shall be served or consumed by clients on the premises.
4. In addition to emergency service providers, the brothel must allow entry to Police and authorised persons from Moree Plains Shire Council (planning, health and building sections) or the NSW Department of Health immediately upon request.

Aims:

1. To ensure the health and safety of patrons and staff;
2. To ensure the brothel and associated activities remain discreet.

Performance Outcomes:

1. Adequate sanitary facilities are provided for staff and patrons;
2. Showers, baths and toilets are kept clean and free of mould and fungus;

3. Linen provided to patrons and staff is clean;
4. Contaminated waste is appropriately managed and disposed of;
5. Good levels of hygiene are maintained for swimming and spa pools;
6. The use of the premises does not give rise to transmission of noise to any place of different occupancy or an offensive noise as defined in the Protection of the Environment Operations Act;
7. The brothel maintains a discreet profile.

Acceptable Solutions:

Sanitary Facilities:

1. Sanitary facilities are provided in accordance with the requirements of the Building Code of Australia, Part F. Separate toilet facilities are provided for staff.
2. Each room contains its own sanitary facilities comprising shower, toilet and hand basin for the use of both sex workers and their clients. All required hand basins shall be provided with an adequate supply of potable water, at a temperature of at least 40°C, delivered through an approved mixing device which can be adjusted to enable hands to be washed under hot running water;
3. Regular physical cleaning and use of disinfectants is undertaken to control mould problems.
4. The proprietor ensures that baths, toilets, and showers are cleaned and disinfected after each use with a hypochlorite based disinfectant.
5. Soap and single use towels are provided at all hand basins required in the premises.

Linen:

1. The proprietor provides clean linen or clean cover; and clean towels for the use of individual clients and sex workers;
2. All linen, including towelling, which comes into contact with sex workers or clients, is changed immediately after use.
3. Two receptacles are provided for the separate storage of clean and used linen.
4. Linen is washed by category in a hot water wash (water temperature a minimum of 70 degrees Celsius) using laundry detergent;
5. All linen items are thoroughly dried after washing.

Note : It is recommended that proprietors use private contractors to launder towels, sheets etc. When laundering is carried out on the premises, commercial/industrial equipment must be used.

Contaminated Waste:

1. Contaminated waste is disposed of by Environment Protection Authority licensed waste collectors. Used condoms must be double bagged in plastic and placed in a suitable waste receptacle on the premises.

Spa and Swimming Pools:

1. Spa baths are drained after each use so they can be cleaned and refilled with fresh water. Note: Officers of Council and the NSW Health Department may carry out periodic tests to ensure the pool water is suitable for bathing purposes;
2. The proprietor keeps on the premises an accurate kit used for the testing of pool water.

   The kit is able to determine the concentration of:

   a) Free chlorine, total chlorine, and combined chlorine; or

   b) Total bromine; or

   c) Baquacil;

   d) pH; and

   e) Total alkalinity.
3. Swimming and spa pools comply with the NSW Health Department Guidelines for Disinfecting Public Swimming Pools and Spa Pools.
4. All swimming or spa pools are disinfected by a method approved by the NSW Health Department.

   Note: Approved methods include:

   a) Chlorine; or

   b) Bromine; or

   c) Salt water chlorination; or

   d) Ozone.
5. Spa pools are drained each day so they can be cleaned and refilled with fresh water.
6. Swimming or Spa pools are provided with a system of automatic analysis and dosage control equipment that will maintain the level of disinfectant.
7. Tests are conducted on every swimming pool or spa pool before the pool or spa is opened each day, and every four (4) hours thereafter when the pool or spa is in use.

   a) A log book of the pool or spa water quality is kept by the proprietor and is available for inspection by Council's officers.

Note: The temperature of the water in the bathing area of a spa pool should not be allowed to exceed 40°C.The guidelines for disinfecting public swimming and spa pools can be obtained from Council's Environmental Services Division.

Ventilation and Lighting:

1. The premises are ventilated in accordance with the requirements of the Building Code of Australia.
2. The premises are provided with adequate lighting in accordance with Australian Standard AS 1680.

Noise:

1. The use of the premises does not give rise to sound levels at any point on the boundary of a site greater than 5dBA above the background levels specified in Australian Standard 1055, Acoustic Description and Measurement of Environment Noise.

Alternative Approaches and Design Suggestions:

N/A

7. HERITAGE CONSERVATION AREA SHOPFRONT AND FAÇADE POLICY

INTRODUCTION TO THIS CHAPTER

This chapter:

1. Supplements the provisions of the Moree Plains LEP 2011;
2. Describes the heritage significance of the Conservation Area, i.e. why the area is culturally important;
3. Identifies the contributory criteria which contribute to the area's distinctive identity and sense of place;
4. Provides conservation guidelines to ensure development is sympathetic to the cultural heritage significance of the conservation area and ensure the conservation of individual heritage items identified in the Moree Plains Local Environmental Plan 2011.

WHERE THIS CHAPTER OF THE DCP APPLIES

This chapter of the DCP applies to the Conservation Area as identified in Moree Plains LEP 2011.

RELATED DOCUMENTS

This chapter of the DCP applies to the Heritage Conservation Area. However, it must be read in conjunction with all other sections of the DCP applying to the land to which the proposed development relates.

HERITAGE SIGNIFICANCE

The Main Street of Moree represents the largest collection of art deco buildings in any town centre in Australasia. Extensively damaged by fire in the 1920s, the commercial centre of the town was largely rebuilt in the art deco style. This provides a unique feel to the town centre, which is a culturally significant example of the art deco style and also of a Main Street which has a high degree of uniformity and building integrity.

CONTRIBUTORY CRITERIA

The fact that some items in a heritage conservation area have little or no heritage value in themselves, does not diminish the cultural heritage significance of that area. Many buildings within the conservation area may contribute to its heritage significance because of their age and integrity and relationship with significant elements. They are not themselves an item of heritage significance (or listed under the Moree Plains LEP 2011 as a "heritage item") but they do have collective significance.

CONTRIBUTORY BUILDINGS (INCLUDES HERITAGE ITEMS)

The following criteria should be used to determine the extent to which the existing building contributes to the heritage significance of the area. Generally buildings will fall into one of the categories outlined in Table7.1.

Table 7.1 Heritage Significance Categories

Category	Description	Acceptable Solutions
Category 1: **Heritage Items and Landmark Buildings**	These buildings generally have a high degree of intactness and are significant both as an individual heritage item in their own right and for their high level of contribution to the character of the area. These buildings are often landmarks within the conservation area. Individually listed Heritage Items are contained in the Moree Plains LEP 2011. The significance of these buildings should not be compromised.	Maintain heritage characteristics and all significant fabric and streetscape intactness. *Note: These buildings are listed in Schedule 1 of Moree Plains LEP 2011.*
Category 2: **Significant Contribution**	Buildings of form and character with a high degree of intactness which contribute significantly to the character of the area.	Maintain and where appropriate, restore heritage characteristics and streetscape intactness.
Category 3: **Contribution Compromised**	Buildings which contribute to the character of the area but whose significance has been reduced by loss of original materials/details (e.g. roofs, fences, verandahs and unsympathetic changes) or inappropriate decorative treatment.	Reconstruct original features/ remove unsympathetic additions.
Category 4: **Complementary In-fill or Neutral Impact Buildings**	In-fill buildings which complement heritage characteristics and streetscape qualities. Buildings whose impact on the heritage character of the area is neutral.	Ensure buildings and/ or the site continues to compliment its surrounding development with no adverse impact on the heritage significance of the area. Maintain the neutral impact of such buildings and improve as and when appropriate, by reconstruction of original features or removal of unsympathetic additions.
Category 5: **Adverse Impact**	Buildings which have an adverse impact on the precinct because of their scale, design, assertiveness, materials, or because their original qualities have been altered, removed or destroyed	Encourage the ultimate replacement of the building with one less assertive, or ameliorate their adverse impact by more appropriate colour scheme, etc.

DEVELOPMENT GUIDELINES - GENERAL

Aims and Objectives:

1. The objective of conserving the character of the Heritage Conservation Area is to sympathetically accommodate development (change), not to prevent it. The area must be allowed to redevelop and grow to accommodate the needs of the commercial area.
2. These development guidelines aim to promote development that is well sited and designed to be sympathetic with the character of the area.

Performance Outcomes:

1. Development is unlikely to have an adverse impact on the heritage significance of the conservation area and will contribute positively to the conservation area in a way that is respectful of the conservation area.
2. Development references the inventory sheets of main design elements and responds positively to those items.
3. Development restores original shopfront elements in preference to replacement, and reconstructs original shopfront elements where feasible.

Acceptable Solutions – Existing Buildings:

1. Alterations do not compromise street façade,
2. Alterations do not involve removal of significant elements or original external features of the building;
3. Additions constitute less than 50% of the floor area of the existing building;
4. Alterations or extensions are not visible from any point in the street;
5. Alterations do not involve sand blasting, painting unpainted brick, render or timber or the rendering of an unrendered surface or replacement of original timber cladding with contemporary materials;
6. Original fabric is maintained where possible;
7. Works are sympathetic with the character and design of the existing building having regard to the architectural form, bulk, wall height, roof height and pitch, materials and detailing of the existing building(s) *(Note: This does not require copying or exactly repeating of any of these elements)*
8. Works only involve maintenance, repair or restoration.

Acceptable Solutions – New Buildings:

Note: Applications for the demolition of a building within a conservation area are generally discouraged. Where demolition is proposed it will only be considered in conjunction with an application for a replacement building which is consistent with the objectives of the heritage conservation area.

1. Existing heritage buildings, prior to demolition, are provided with a Heritage Impact Statement as part of any application to demolish a building *(Note: Provision of a Heritage Impact Statement does not guarantee approval to demolish).*
2. New buildings are respectful of their neighbours and their context, whilst avoiding being imitative of existing structures.

3. New buildings are designed by an appropriately qualified and experienced heritage architect.

Note: In considering applications for the total or partial demolition of buildings or works, Council will consider:

1. Whether the building or work makes a positive contribution to the Heritage Conservation Area;
2. Whether the building or work constitutes a danger to its users, occupiers or the public;
3. Whether, in the case of an application for total demolition, redevelopment is a reasonable alternative to retention;
4. In the case of total demolition, a Structural Engineer's report detailing the structural condition of the building and a Heritage Impact Statement from a heritage practitioner. Demolition consent may be conditional on the preparation of an archival recording of the building and its setting;

DEVELOPMENT GUIDELINES - DESIGN DETAIL

General

The exterior finishes and colours used on buildings in the Conservation Area are derived from the popular materials of the Federation and Inter-War periods. Most buildings within the Heritage Conservation Area have suggested colour schemes. Most of the suggested colour schemes apply to the above awning façade only, as the original below awning wall finishes were traditionally unpainted and consisted of ceramic tiles. Any colour scheme should be in keeping with the street as a whole. Works involving proposed changes to external finishes should aim to ensure that no irreversible works occur, such as painting over unpainted surfaces or rendering of an un-rendered surface.

Finishes and Colours

Performance Outcomes:

1. New building work has an appropriate level of regard for the palette of finishes, characteristics and colours in the Conservation Area.
2. Additions and alterations maintain the traditional palette of finishes and colours (see Design Guidelines – Colours).
3. Where deemed appropriate, additions and alterations are finished in a way which allows the original building to be distinguished from the new section.

Acceptable Solutions:

1. New building work uses the exterior treatments of the Federation and Inter-War periods, as seen in the original buildings.
2. Original architectural elements (e.g. windows, verandah details, tiles) are retained and refurbished.
3. Brickwork that has been painted over is cleaned *(Note: Water-blasting and chemical peels can be used - with professional advice – to achieve this).*
4. Face brickwork is not to be rendered, coated or painted.

5. Below awning wall finishes are glazed ceramic wall tiles. Tiles are to be 100 x 100mm in size and of a colour appropriate to the character of the building. White or cream are preferred with simple or no pattern.

Windows, Doors and Entrances

General

Windows, doors and entrances are a major part of any buildings design. Older style buildings usually fit in well with each other because the proportion of solid wall to openings is consistently well balanced. Most traditional window compositions are regular and symmetrical. Modern shopfronts are usually compatible, particularly where they are reduced in impact by awning shadows. Very few period shopfronts now survive in the Conservation Area; those that do should be kept and conserved.

Performance Outcomes:

1. Window, door openings and entrances are appropriately sized and balanced to complement the Streetscape.
2. Materials are sympathetic to traditional materials of the era.

Acceptable Solutions:

1. Wherever possible original doors, windows and entrances should be retained and restored in preference to their replacement. Original leadlight and coloured glass panes should be kept.
2. In circumstances where repair of the original is not possible, authentic reconstruction of similar material should be used.
3. New window and door openings should match sill and head heights of the original openings.
4. Wherever possible, original sunhoods, blinds, awnings, skirts and tiles should be retained and repaired. Authentic reconstruction should be used where this is not possible.
5. Floor tiling of recessed and hamper entries are to be unglazed 50x50mm mosaic ceramic tiles. Colours of ceramic tiles are to be appropriate to the style and character of the building.
6. Where new window framing to shopfronts is proposed, the framing is to be sympathetic to the style and character of the building. Preferred colours of framing are silver, chrome or bronze.

Awnings and Sun Blinds

General

Awnings serve the valuable function of providing shelter from rain and Moree's aggressive sun. Awnings also form an important part of the character of the Main Street. Attention should be paid to the height and depth of awnings on neighbouring buildings, as the slightest difference in height can be very noticeable. Many awnings still have their original pressed metal under awning soffit lining and these should be retained and conserved.

Performance Outcomes:

1. Awnings, where existing are to be maintained or restored to their original form and configuration.

2. New developments are sympathetic and compatible with surrounding buildings.
3. Sun blinds are in colours compatible with the heritage conservation area objectives.

Acceptable Solutions:

1. Original awning elements are reinstated, with the restoration process informed by investigating earlier detailing.
2. Existing awnings are retained at their existing height.
3. Awnings with the original press metal under awning soffit lining are retained and conserved.
4. Sun blinds utilise a colour from the colour palette in this chapter.
5. Advertising on a sun blind does not exceed 10% of the area of the blind when fully extended.

Roofs

General

Many roofs in the Conservation Area have no impact because they are hidden by parapets. This design approach can be adopted for new buildings and infill development in the area. If the roof is visible the roofing materials and pitch should be compatible with the style and period of neighbouring buildings.

Performance Outcomes:

1. Typical roof treatments are used in the design of new buildings.
2. Traditional but subordinate roof forms and materials are used in the design of roof additions.

Acceptable Solutions:

1. New buildings in Balo Street include the use of parapets in their building design, so as to reduce in the visibility of roof lines in the Conservation Area.
2. New buildings have roofs that reflect the size, mass, shape and pitch of neighbouring original roofs.
3. Roof treatments to additions match the form and detail of the original roof as closely as possible.
4. Air conditioning units, skylights, antennae, satellite dishes and the like, are sited on the rear roof plane, or at the side, so that they are not visible from the street.

Development Guidelines - Colour Schemes

General

For the purpose of this policy, the buildings in the Heritage Conservation Area have been divided into six groups according to style, type or period. Each group has characteristic colours. These groups are outlined below:

1. Victorian/ Federation:
2. Inter-War Classical:
3. Inter-War Art Deco:

4. Inter-War Spanish Mission:
5. Inter-War Garage:
6. Post-War: Art Deco:

The names used for the selected colours are as identified in the Moree Main Street Study of April 1992. The colours are sourced from two Dulux 1992 colour cards titled "Traditional Colours" and Exterior Colours" and are as follows:

Traditional Colours

1. Cream
2. Red Oxide
3. York Stone
4. Dark Crimson
5. Eau de Nil
6. Deep Bronze Green
7. Deep Brunswick Green

Exterior Colours

1. Confetti
2. Ocean Spray
3. Wallaby
4. Swansdown
5. Patina
6. Wineberry
7. Alabaster
8. Rain
9. Moonlight Sonata
10. Fireclay
11. Timeless Pink
12. Saxon Grey
13. Limousine

Equivalent colours from other paint companies are equally acceptable.

Table 7.2 Period Classification of Significant Buildings

Groups	Buildings of this Period
Victorian/ Federation:	103 Balo Street, (Reids) 43 – 47 Frome Street 37 Frome Street (Pitt Son Crane & Co. Ltd)
Inter-War Classical:	171 – 173 Balo Street (Mansour's Buildings) 145 Balo Street (Liljune House) 71 Heber Street (Morgan's Building) 67 and 69 Heber Street 57 Heber Street 33 Frome Street (Post Office Hotel) 78 Balo Street (Mellor's Building) 36 Balo Street (Memorial Hall)
Inter-War Art Deco:	143 Balo Street 135 and 137 Balo Street (Saunders Buildings) 133 Balo Street 38 Frome Street (Moree TAFE)
Inter-War Spanish Mission:	123-131 Balo Street (Wilson House) 54 Heber Street 61 Heber Street (Roslyn House)
Post –War Art Deco:	167 Balo Street 157 and 159 Balo Street 64 Balo Street 66 Balo Street 70 Balo Street 84 Balo Street 92-94 Balo Street 96 Balo Street 98 Balo Street 100 Balo Street 175 Balo Street

Performance Outcomes:

1. Colours used on buildings should be representative of the historical era of the building.
2. Colours used on new buildings should be compatible with the streetscape will stop.

Acceptable Solutions:

The suggested schemes for each grouping are set out in Tables 7.3 – 7.8 are included on the following pages. For most periods there are 2 or 3 schemes to choose from. The schemes must be internally consistent. Colours from different schemes cannot be combined or mixed.

Table 7.3 Victorian/Federation

	Scheme 1	**Scheme 2**
Walls	Confetti	Cream
Wall Mouldings	Dark Crimson Alabaster	
Lettering	Dark Crimson	
Window Frames	Alabaster	Alabaster
Window Sills		Sienna Stone
Awning Soffits	Alabaster	Alabaster
Parapet cappings, gutters, verandah columns, doors and architraves		Sienna Stone
Door panel mouldings		Alabaster
Awnings	Dark Crimson	

Table 7.4 Inter-War Classical

	Scheme 1	**Scheme 2**	**Scheme 3**	**Scheme 4**
Walls	Cream	Confetti	Cream	Confetti
Window Mouldings	Deep Bronze Green		Deep Bronze Green	
Lettering	Deep Bronze	Red Oxide	Deep Bronze	Dark Crimson
Wall mouldings and parapet capping	Dark Crimson	Red Oxide	Deep Bronze Green	Dark Crimson Buff
Window frames	Alabaster	Alabaster		
Louvres			Eau de Nil	
Louvre Frames			Deep Bronze Green	Alabaster
Brackets				Alabaster
Wall panels		Alabaster	Eau de Nil	Alabaster
Awning	Dark Crimson Deep Bronze Green	Moonlight Sonata	Alabaster	Dark Crimson Confetti

Table 7.5 Inter-War Art Deco

	Scheme 1	**Scheme 2**	**Scheme 3**	**Scheme 4**
Walls	Dusk Glow	Ocean Spray Swansdown Rain Saxon Grey Limousine	Ocean Spray	Ocean Spray Swansdown Rain Saxon Grey Limousine
Wall panels and Grooves	Patina	Rain		Timeless Pink
Wall mouldings			Timeless Pink	
Lettering	Alabaster Wineberry Patina	Wineberry Timeless Pink Ocean Spray Rain Limousine	Alabaster	Dark Crimson Alabaster
Chevron mouldings		Wineberry and Timeless Pink		
Window Frames	Wineberry	Wineberry		Wineberry
Columns		Wineberry		
Soffits, rendered sills, projecting cornices		Alabaster	Alabaster	
Awning	Dark Crimson	Dark Crimson	Dark Crimson	

Table 7.6 Inter-War Spanish Mission

	Scheme 1
Walls	Alabaster
Wall panels, other details	Moonlight Sonata or Confetti

Table 7.7 Inter-War Garage

	Scheme 1	**Scheme 2**
Walls	Cream	York Stone
Pilasters, cappings	Deep Brunswick Green	Patina
Lettering	Deep Brunswick Green	

Table 7.8 Post-War Art Deco

	Scheme 1	**Scheme 2**	**Scheme 3**	**Scheme 4**
Walls	Ocean Spray	York Stone	Moonlight Sonata	Confetti
Cappings	Deep Bronze Green		Patina or Deep Bronze Green	
Lettering and signs	Deep Bronze Green Red Oxide Alabaster Deep Crimson	Deep Bronze Green Red Oxide Alabaster Deep Crimson	Deep Bronze Green Red Oxide Alabaster Deep Crimson	
Awnings	Dark Crimson Confetti	Deep Crimson Deep Bronze Green	Confetti	

Alternative colour solutions to the schedules may be proposed. These colour solutions would need to be representative of the appropriate historical period of the subject building.

Appendix: Inventory Sheets of Main Design Elements

Table 7.9 Balo Street – East Side

No.	**Street**	**Awning**	**Tiles**	**Shop-front**	**Parapet**	**Notes**
64	Balo Street	Fibro, not original	Rendered	Aluminium	Clad	
66	Balo Street	Clad Aluminium	None	Aluminium	Clad	
68	Balo Street	Clad Aluminium	Replaced, needs improvement	Aluminium	Clad	
70	Balo Street	Clad Aluminium	Replaced, needs improvement	Aluminium	Clad	
72	Balo Street	Clad Aluminium	Replaced, needs improvement	Aluminium	Clad	
74	Balo Street	Not Original	Replaced, needs improvement	Entry doors replaced	Intact , windows replaced	
78	Balo Street	Original unlined	Rendered	Aluminium	Intact	Mellors 1923 buildings
80	Balo Street	Original pressed metal	None, painted brickwork	Partly original	Intact	Good original awning and shopfront
82	Balo Street	Clad	None	Aluminium	None	Intrusive
84	Balo Street	Clad	None, face-brick	Aluminium	Clad	Intrusive
88	Balo Street	Clad	None, face-brick	Bronze aluminium	Clad, too low	
90	Balo Street	Clad	None, face-brick	Bronze aluminium	Clad, too low	

92	Balo Street	Clad	None, face-brick	Bronze aluminium	Clad, too low	
94	Balo Street	Clad	None, face-brick	Bronze aluminium	Clad, too low	
96	Balo Street	Fibro	Replaced, needs improvement	Aluminium	1st floor offices	Needs improving
98	Balo Street	Clad	Replaced, needs improvement	Aluminium	None	
100	Balo Street	Clad	None, face-brick	Hoardings	Brick intact	
102	Balo Street					Car-yard
104	Balo Street	Clad	Replaced	Aluminium	Face-brick	
108(a)	Balo Street	Clad	Replaced	Shuttered	Clad	Parapet intrusive
108(b)	Balo Street	Clad	Replaced	Aluminium	Clad	Parapet intrusive

Table 7.10 Balo Street – West Side

No.	Street	Awning	Tiles	Shop-front	Parapet	Notes
113-121	Balo Street	Fibro replaced	All replaced	All aluminium	Intact	Imperial Buildings
123-131	Balo Street	Original pressed metal	All replaced	All aluminium	Intact	Potentialitem Wilson House Group
133	Balo Street	Original pressed metal	Replaced, needs improvement	Aluminium	Intact	
135-137	Balo Street	Original pressed metal	Replaced, acceptable	Original	Intact	Early shopfronts that have been altered. Saunders Buildings
139-141	Balo Street	Original pressed metal	Rendered	Aluminium	Intact	Windows replaced
143	Balo Street	Original pressed metal	Rendered	Aluminium	Intact	Windows replaced Arcade
145	Balo Street	Original pressed metal	Rendered	Aluminium	Intact	Liljune House
147(a)	Balo Street	Original pressed metal	Replaced, needs improvement	Aluminium	Intact face brick	Original fasciato aluminium Criterion Centre
147(b)	Balo Street	Clad	Original c1970, needs improvement	Aluminium	Clad	Intrusive element Arcade
157	Balo Street	Original pressed	Tiles, needs improvement	Aluminium	Clad	Original ceilings

No.	Street	Awning	Tiles	Shop-front	Parapet	Notes
		metal				
159	Balo Street	Original pressed metal	Timber	Aluminium	Clad	Original ceilings
161-165	Balo Street	Original pressed metal	Rendered	Aluminium	Original rendered	Former theatre 1929
167-169	Balo Street	Original pressed metal	Replaced, needs improvement	Aluminium	Clad	Intrusive colours
171	Balo Street	Clad	Original LHS	Aluminium	Rendered	Mansours Building 1929
173	Balo Street	Clad	Some remnant	Aluminium	Rendered	Mansours Building"1929
175	Balo Street	Clad	Sandstone	Aluminium	Facebrick	
185	Balo Street	Clad	Tiles painted over	Aluminium	Rendered	Part original shopfront
187	Balo Street	Clad	None	Aluminium	Clad	
191	Balo Street	Fibro	None	Aluminium	Facebrick	Intrusive
199	Balo Street	Original	Pressed metal	Aluminium	Pressed metal	Intact above awning, fascia to awning intact
201	Balo Street	Original	Pressed metal	Timber	Pressed metal	Intact above awning, fascia to awning intact
203	Balo Street	Clad	None	Aluminium	Original pressed metal	Intact above awning
205	Balo Street	Clad	None	Aluminium	Original pressed metal	Intact above awning

Table 7.11 Heber Street – North Side

No.	Street	Awning	Tiles	Shop-front	Parapet	Notes
19	Heber Street	Fibro original	Original	Original	Intact	1950's good
21	Heber Street	Fibro original	Original	Original	Intact	1950's good
23	Heber Street	Fibro original	Original	Original	Intact	1950's good
25	Heber Street	Metal/replaced	Original 150x150	Original	Intact, brick	1950'sgood
27	Heber Street	Metal/replaced	Original 150x150	Original	Intact, brick	1950'sgood
29	Heber Street	Metal/replaced	Original 150x150	Original	Intact, brick	1950'sgood
31	Heber Street	Metal/replaced	Replaced,	Aluminium,	Intact, brick	1950's good

No.	Street	Awning	Tiles	Shop-front	Parapet	Notes
			needs improvement	acceptable		
33	Heber Street	Metal/replaced	None, face-brick	None, entry-doors replaced	Intact, brick	1950's good
35	Heber Street	None	Granite	None, entry-doors replaced	Face-brick	1950'sgood
37	Heber Street	None	Tiles replaced, needs improvement	None, windows replaced	Rendered	1950'saltered
39	Heber Street	None	Tiles replaced, needs improvement	Replaced	Face-brick	1950's intact above ground floor
41	Heber Street		None	Aluminium	Face-brick	Intrusive
103	Balo Street	Intact	Metal clad, not original	Original Bronze	Intact	'Reids Building'
57	Heber Street	Intact	Replaced, needs improvement	New aluminium	Intact	Watson Chambers
61	Heber Street	Fibro intact	Terraz intact	Bronze intact	Intact	Outstanding
67	Heber Street	Replaced	Replaced	Aluminium	Intact	
69	Heber Street	Fibro intact	Replaced	Aluminium	Intact	
71	Heber Street	Pressed metal intact	Replaced	Metal original, altered	Intact	'Morgans Building' lead-lights

Table 7.12 Heber Street – South Side

No.	Street	Awning	Tiles	Shop-front	Parapet	Notes
30-42	Heber Street	Aluminium clad	All replaced	All altered	Altered	
113	Balo Street	Fibro replaced	All replaced	All altered	Intact	Some terrazo stops and old hotel entrance intact
54	Heber Street	Fibro replaced	Rendered	Aluminium	Intact	Mission style parapet
56	Heber Street	Fibro Original	Replaced	Doors replaced, some aluminium	Intact	Part of Royal Hotel

Information Collected in February 2002.

8. INDUSTRIAL SUBDIVISION AND DEVELOPMENT

ABOUT THIS CHAPTER

This chapter controls industrial subdivision and subsequent development. It is designed to ensure that industrial lots created function effectively and that development presents acceptably to public places.

WHERE THIS CHAPTER APPLIES

This chapter applies to land zoned IN1 and IN2 (Industrial) under Moree Plains Local Environmental Plan 2011. This includes light industrial and general industrial land.

Aims:

1. To support Moree Plains Local Environmental Plan 2011 by providing additional detail and guidance on the subdivision and development of industrial land; and
2. To ensure that industrial allotments function effectively for industrial purposes; and
3. To improve the appearance of industrial areas when viewed from a public place.

Performance outcomes:

1. To achieve width/depth ratios for new industrial allotments that respond to typical industrial building forms and which ensure heavy vehicles can adequately manoeuvre on site;
2. To ensure that industrial buildings present acceptably to the public realm; and
3. To ensure that roads, allotment access and parking areas are constructed to a standard that is durable and suitable for the proposed use.

Acceptable Solutions:

Industrial Allotments:

a) Have a minimum frontage and square width of 24 m, and a minimum area of 1000 m^2.

b) Are of regular size and shape with a depth to width ratio not exceeding 3:1.

c) Are serviced by underground electricity, water, sewer and telecommunications in accordance with the relevant authorities' requirements.

Roadways Created to serve an Industrial Subdivision:

a) Have a minimum road reserve width of 25m (for roads with dual frontage) or 19m (for roads with single frontage).

b) Have a minimum carriageway width of 13m.

c) Avoid, where practicable dead-end roads; however if these are provided, a minimum turning head of 25m is to be provided.

d) Are constructed in accordance with Council's engineering requirements for industrial subdivision.

Industrial Developments:

a) Provide on-site vehicle circulation and manoeuvring in accordance with AS 2890 Part 2.

b) Provide parking in accordance with the parking chapter of this DCP.

c) Provide a setback from the primary street frontage of at least 6 m to any building element not exceeding 4 m in height; and a setback from the primary street frontage of at least 9 m to any building element exceeding 4 m in height.

d) Provide a building setback from any secondary street frontage of at least 3 m.

e) Locate offices and/or customer areas and/or staff facilities addressing the primary road frontage of the development. These are located in a part of the building that does not exceed one story in height, and use materials and/or colours which are differentiated from the main parts of the building.

f) Locate customer and visitor parking at the front of the development, towards the primary street frontage. *Note: Customer and visitor parking may occur within the building setback area*

g) Sign customer and visitor parking appropriately.

h) Provide a clearly identified point of customer/visitor entry and appropriate separation of customers and visitors from operational areas of the site.

i) Utilise pre-painted sheeting (e.g. Colorbond or similar) for walls of the main part of the building which directly faces a public place (e.g. road, open space area or railway).

j) Achieve the necessary fire ratings under the Building Code of Australia when parts of the building are constructed to a boundary.

k) Avoid narrow and/or unfrequented areas which would be difficult to maintain.

l) Construct access aisles and manoeuvring areas in durable materials suitable for the proposed industrial use.

m) Construct car parking areas with a durable sub grade and an all-weather surface. *Note: Sealed carparks are preferred for customer and visitor areas.*

n) Provide landscaping to the primary street frontage with such landscaping being low maintenance and occupying not less than 20% of the area between the industrial building setback line and the street.

Alternative Approaches and Design Suggestions:

Alternative approaches will be considered on merit.

9. RURAL DEVELOPMENT

ABOUT THIS CHAPTER

This chapter addresses various aspects of rural development including biodiversity, bushfire management, recreational vehicles, feedlots, access to rural properties and dwelling development.

WHERE THIS CHAPTER APPLIES

This chapter applies to land zoned RU1, RU3 and RU4 under Moree Plains Local Environmental Plan 2011. Note: Residential development in the village zones is addressed under the chapter dealing with residential development.

BIODIVERSITY

Aims:

1. To support Moree Plains Local Environmental Plan 2011 by providing additional detail and guidance on addressing biodiversity issues associated with development.

Performance Outcomes:

1. To address biodiversity issues when the development is proposed so as to ensure appropriate weight is given to management of the natural environment as part of the consideration of proposals.

Acceptable Solutions:

1. Proposals falling within areas mapped as Koala Habitat (Map 9.1) undertake a review of the potential impacts on Koala Habitat as required by SEPP 44. *(Note: if there is uncertainty as to whether a property or proposal is affected, contact Council's Planning and Development Department for further advice).*
2. Proposals are reviewed against the provisions of the NSW Threatened Conservation Act and the NSW Planning Guideline, *Commonwealth Environmental Protection and Biodiversity Conservation Act 1999 Guide to implementation in NSW May 2007,* by an appropriately qualified and experienced ecologist or environmental scientist, and, if necessary, appropriate additional environmental investigations are conducted.
3. Where proposals would significantly affect areas of native vegetation, a review by an appropriately qualified and experienced ecologist or environmental scientist is undertaken as to the potential impact on wildlife habitat corridors.

(Note: Under the precautionary principle, persons proposing development that would affect significant areas of native vegetation, including grasses, groundcovers, shrubs and trees should make preliminary enquiries with an appropriately qualified and experienced ecologist or environmental scientist prior to preparing and submitting a development application).

Alternative Approaches and Design Suggestions:

None specified.

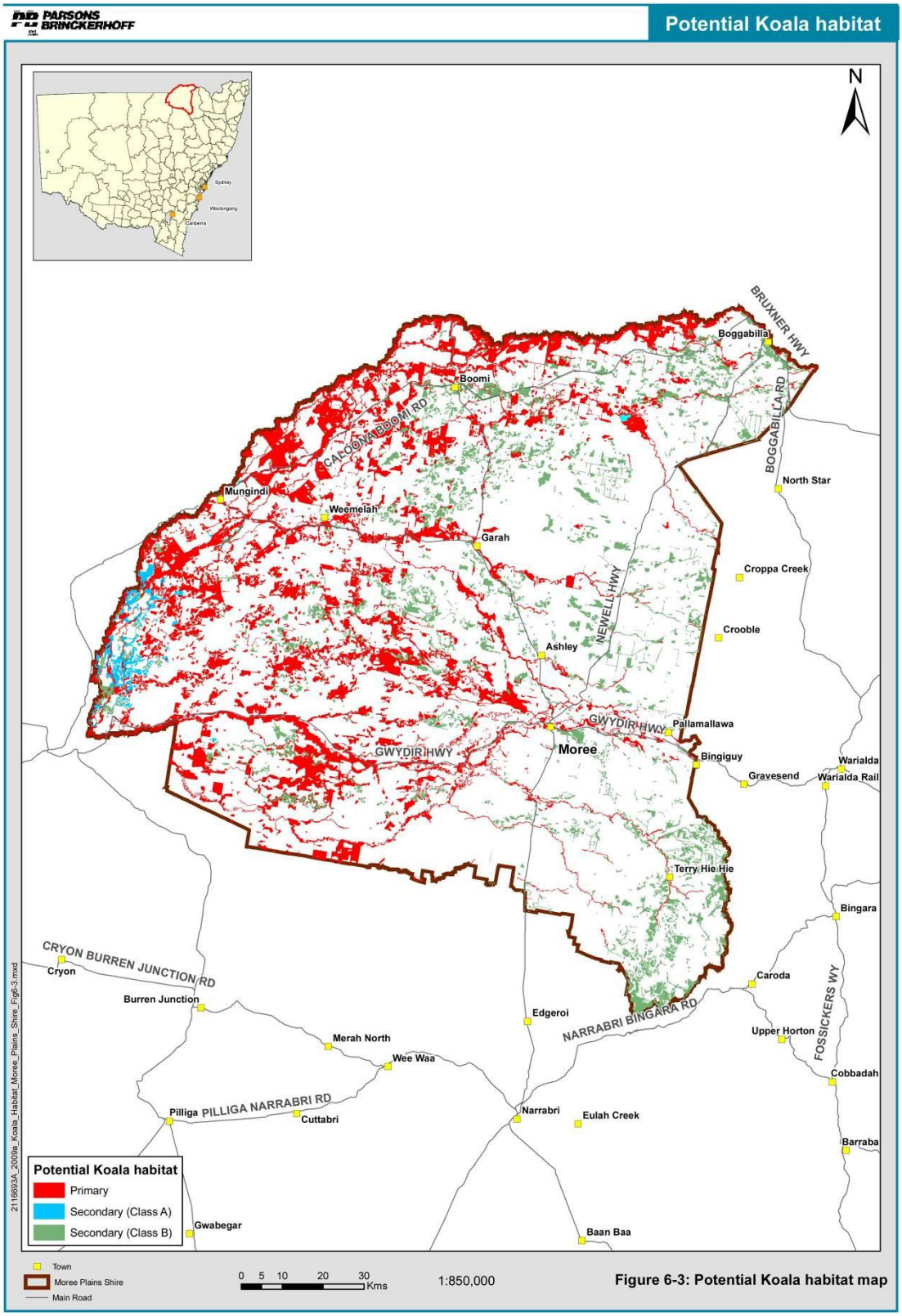


Figure 9.1 Overview Map of Potential Koala Habitat

BUSHFIRE MANAGEMENT

Aims:

1. To support Moree Plains Local Environmental Plan 2011 by providing additional detail and guidance on addressing bushfire management issues.

Performance Outcomes:

1. To manage the risk associated with Bushfire events so as to minimise the likelihood of loss of life and to reduce the likelihood of property damage.

Acceptable Solutions:

1. Proposals falling within a bushfire hazard area as identified by the Rural Fire Service (refer to Maps 9.2 and 9.3) undertake a review in accordance with the provisions of Planning for Bushfire Protection (2006) and provide the appropriate protection to comply with that document. *(Note: if there is uncertainty as to whether a property or proposal is affected, contact Council's Planning and Development Department for further advice).*
2. Proposals involving a habitable building and falling outside a mapped bushfire hazard area implement the following provisions:

To ensure protection against bushfire and grass fire, an asset protection zone is to be provided to the proposed dwelling/building. This asset protection zone is to be fully contained within the subject land and shall consist of one or more of the following:

a) A loop road or access way around the building, minimum 3 m in width; or

b) Managed grassland (i.e. grassland mowed or slashed or otherwise treated to maintain a maximum height of 10 cm) of a minimum width of 20 m around the proposed building; or

c) Cultivated domestic gardens of a minimum width of 20 m around the proposed building utilising species of low flammability to Council's satisfaction.

To assist in defending the building against bushfire, adequate water storage is to be provided in close proximity to the building. This shall consist of one or more of the following:

a) A natural or artificial permanent water body, of minimum size 20,000 litres, located no further than 50m and no closer than 6m from the proposed building, provided with access for firefighting vehicles; or

b) Tank storage of a minimum of 10,000 litres, located no further than 50m and no closer than 6m from the proposed building, in addition to any requirements for a potable water supply to service the development. In this regard, the storage may form part of the main domestic tankage of a dwelling, provided that at least 10,000 litres is stored below the take-off for the potable supply. Alternatively, a separate tank for fire fighting purposes may be provided. Tanks may be constructed of any material; however, tanks constructed of polythene or other forms of plastic may not have vegetation or other flammable materials within 3m. A stortz fitting, compatible with Rural Fire Service requirements (such as 38mm or 65mm), shall be fitted to access the 10,000 litre supply, and shall be located so as to enable clear access from a firefighting vehicle. (Note: a fitting suitable for coupling to an on-site portable pump is strongly recommended); or

c) An on-site bore located no further than 50m and no closer than 6m of the proposed building, provided with a direct power supply. A stortz fitting, compatible with Rural Fire Service requirements (such as 38mm or 65mm), shall be fitted to access the bore, and shall be located so as to enable clear access from a firefighting vehicle.

Alternative Approaches and Design Suggestions:

A report by a recognised bushfire planning consultant may propose alternative solutions to those identified in Planning for Bushfire Protection. Such solutions should involve early consultation with the Rural Fire Service prior to submission of an application.

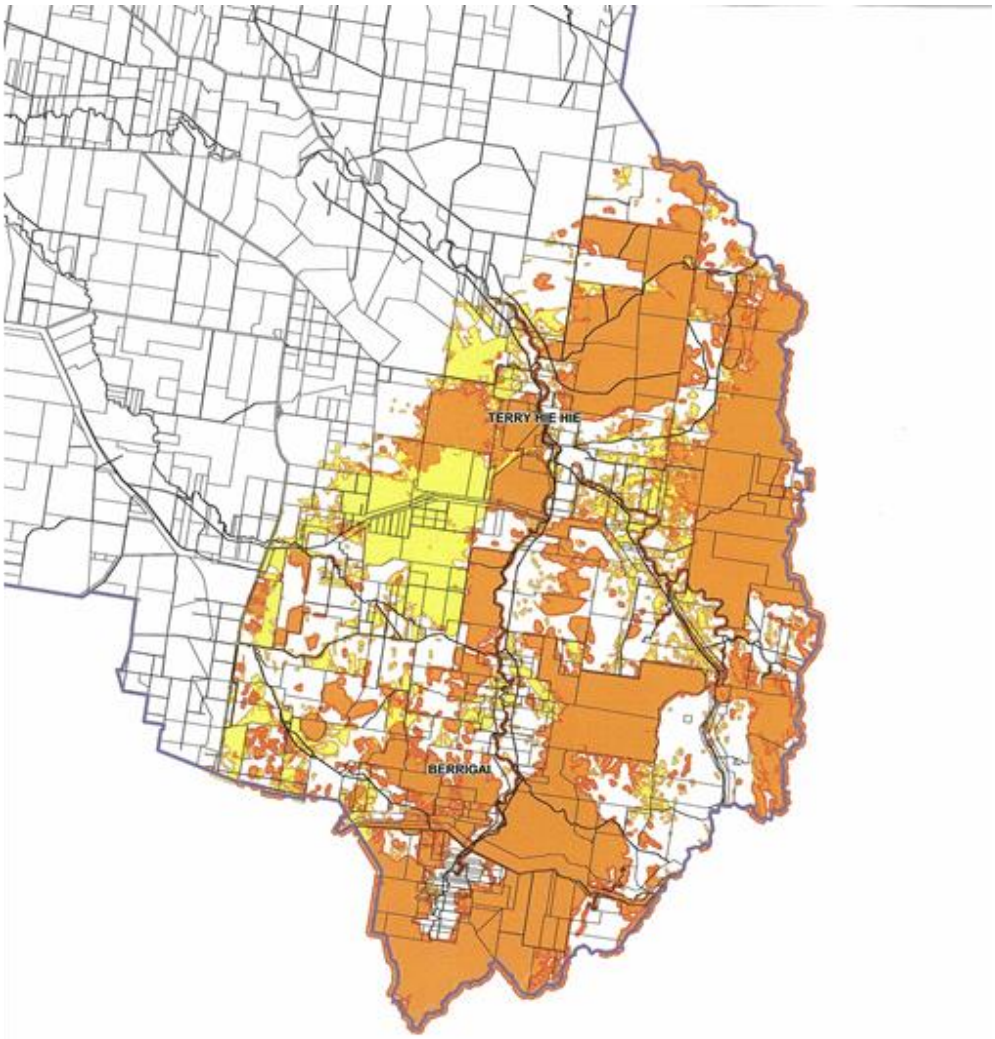


Figure 9.2 Bushfire Overview Map – Terry Hie Hie Area

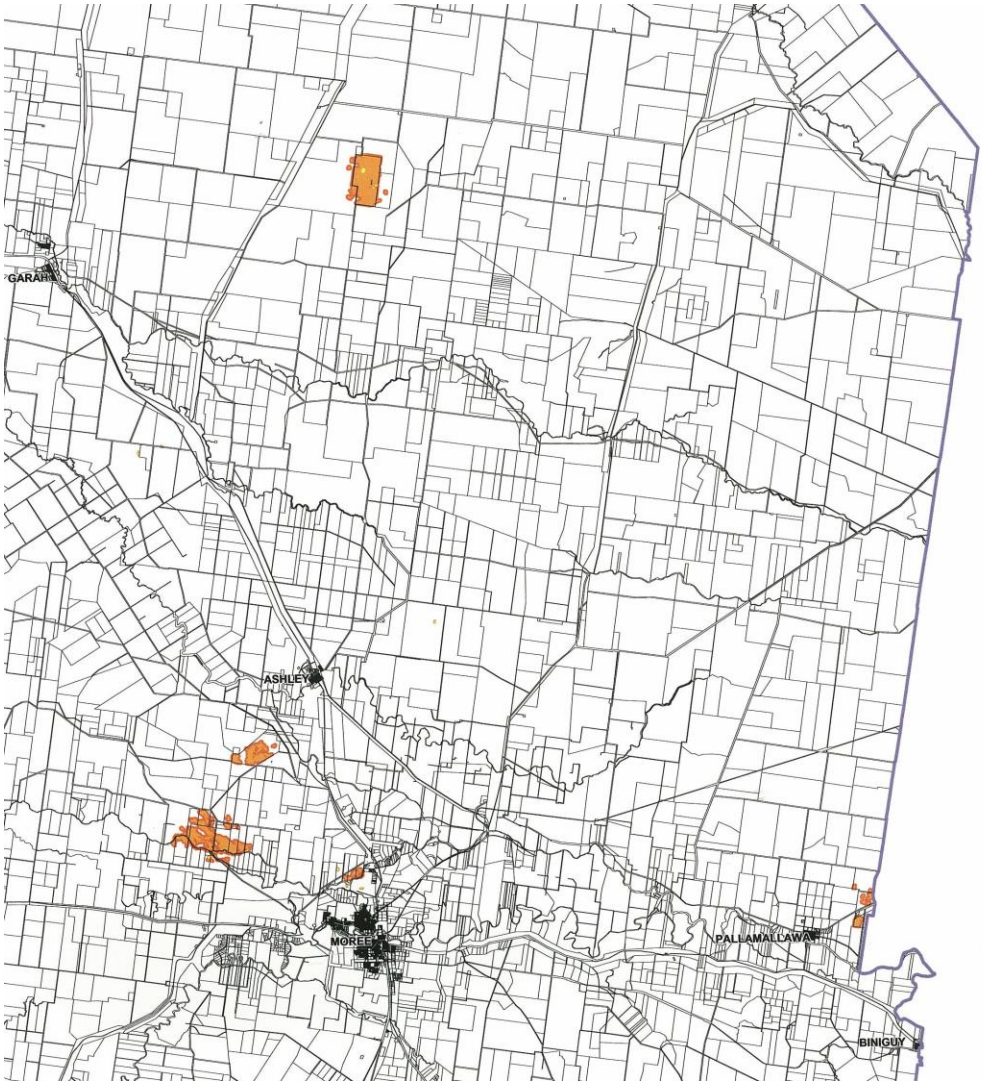


Figure 9.3 Bushfire Overview Map - Centre of Shire – Moree Area

RECREATIONAL VEHICLES

Aims:

1. To support Moree Plains Local Environmental Plan 2011 by providing additional detail and guidance on addressing developments for recreational vehicles.

Performance Outcomes:

1. To manage the impacts associated with recreational vehicle developments so as to preserve residential amenity and protect the environment.

Acceptable Solutions:

1. Applications for recreational vehicle areas are accompanied by
   a) An assessment as to the impact on the natural environment, and
   b) An acoustic impact assessment prepared by a recognised acoustic consultant.

Alternative Approaches and Design Suggestions:

None specified.

FEEDLOTS

General

Applicants are encouraged to utilise the Reference Manual for the Establishment and Operation of Beef Cattle Feedlots in Queensland, Department of Primary Industries and Fisheries, 2005 in the development of their proposals. This includes information relating to location of the developments, the physical disposition of the development and the intended management framework.

Applicants also need to submit a comprehensive operational management plan for the proposal, indicating and justifying the management regime selected in the context of the potential environmental impacts of the development (including buffer requirements) as determined from the standard methodology.

Buffers

Performance Outcomes:

1. Buffers are provided to the proposed feedlot that will achieve National Guideline standards with respect to odours at sensitive receptors.

Acceptable Solutions:

Buffers are part of the operational area of the development.

1. Users are responsible for their own buffers which are to be achieved within the holding, the subject of the development. No reliance is placed on buffers on adjoining lands to achieve reasonable ongoing separation.
2. Determination of the buffer distance is undertaken using a standard methodology consistent with the National Guidelines.

Alternative Approaches and Design Suggestions:

1. The size of the buffer increases with the scale of the development and also when less stringent management is likely to be practiced.
2. Where a development is unable to provide full buffers within the holding, written evidence of consultation with affected landowners is provided, together with their consent to the making of the development and the application of any required restriction as to user under Section 88B of the Conveyancing Act to their land. An annotation is to be made on the title of allotments in a different ownership to the proposed development applying a restriction as to use for any area contained within the buffer limiting the development of sensitive uses (e.g. dwellings). *Note: In this respect the buffer is considered an integral part of the development.*

Note: The issue of buffers to adjoining actual or potential sensitive receptors needs to be carefully addressed. It is noted that buffers may not be able to be achieved on the same allotment as a feedlot, but are much more likely to be able to be achieved on a holding. In this respect the presumption is that all buffers will be within the holding, the subject of the application, and will be considered as land on which the development occurs (the "operational area"). In this respect alienation of buffers from a holding, during the life of the development, would require formal modification of the consent, and may not be approved. Potential sensitive receptor covers land outside the holding that is able to have an application made for a dwelling (noting Council's practice of 150m minimum distance of a dwelling from a boundary in a rural zone and the potential additional distance offered by road reserves and the like).

Water Quality

Performance Outcomes:

1. The development demonstrates no negative water quality outcomes outside the site.

Acceptable Solutions:

1. Water quality treatment to address runoff from the development and impacts on groundwater quality is addressed as part of the development application such that there is no negative environmental impact from runoff or on groundwater quality.
2. Appropriate monitoring and remediation provisions are outlined.

Alternative Approaches and Design Suggestions:

None specified.

Provision of Water

Performance Outcomes:

1. Water matters are dealt with integrally as part of the development and adequate water (quantity, quality and reliability of supply) is available to serve the development so as to prevent undue stress on livestock.

Acceptable Solutions:

1. A water budget is submitted with the application indicating both practical and legal sources of supply including where separate license or changes to license are required (e.g. stock and domestic bore changing to industrial).
2. The applicant provides a management plan as to how they intend to cope with dry times which are defined as 25% less than average rainfall and with drought conditions. This includes a sensitivity analysis on the water budget for different rainfall figures together with a stocking/destocking plan.

Alternative Approaches and Design Suggestions:

None specified.

Transport Issues

Performance Outcomes:

1. Transport associated with the proposal will have minimal impact on the local road network, and minimal potential nuisance impacts of transport from and to the development.

Acceptable Solutions:

1. Applicants provide a traffic study which assesses the total additional traffic loadings over and above normal grazing/cropping practices in the area as part of any development application and which identifies
    a) The adequacy of the public road network to service the development, together with any necessary upgrades or specified routes required to maintain the public road network in a safe condition and provide safety for road users (including school buses);

b) The potential damage to or shortening of the life of the public road network associated with any increase in traffic loadings associated with the development.

2. Developer contribution payments* are made, related to the turnoff of stock where the turnoff would be greater than that resulting from a normal grazing/cropping operation on the land.

   a) These payments are related to nominated transport routes involving local roads and their connection with the state road network.

   b) Contributions are based on an assessment of the costs for maintaining the current level of service of the road under the anticipated traffic loadings associated with the development.

**Note: Formal developer contributions are subject to the exhibition and adoption of a suitable plan under S94 of the EPA Act. In the interim, Council would apply relevant conditions under Section 79C with respect to any necessary upgrading of infrastructure required to service the development and/or would enter into a developer agreement with the proponent.*

Alternative Approaches and Design Suggestions:

None specified.

ACCESS TO RURAL PROPERTIES

General

Performance Outcomes:

1. The development provides safe, convenient and readily maintainable access from a public road.

Acceptable Solutions:

1. Access to rural properties is from a public or Crown road.
2. An access point is constructed at the time of creation of an allotment with such access consisting of a gate recessed 20m from the property boundary, together with a table drain crossing in accordance with Council's engineering standards.

Alternative Approaches and Design Suggestions:

Rights of way to a rural property may only be considered in accordance with Table 9.1:

Note: "Right-of-Carriageway" is a strip of land over which one or more parcels of land enjoy certain right of access. Right-of-Carriageways are private agreements between individual owners of the parcels of land involved and Council has not any responsibilities nor rights with regards to them. Council will require the approval of all owners of land over which a Right-of-Carriageway is proposed prior to a Development Application for subdivision being lodged. Construction and maintenance of a Right-of-Carriageway is not the responsibility of Council but is the full responsibility of the relevant landholders.

Table 9.1 Access to rural properties

Benefited Lots	Standard of Access	Requirement
Up to 3	Access is maintained to a good trafficable standard suitable for two-wheel drive vehicles	A notation is placed on the title of every benefiting lot such that maintenance of the right-of-carriageway is required, to the standard specified, with the cost being borne proportionally by each owner based on the distance of the access point of their allotment to the public road.
4 to 5	Access is maintained to a good trafficable standard suitable for two-wheel drive vehicles	A notation shall be placed on the title of every benefiting lot such that maintenance of the right-of-carriageway is required, to the standard specified, with the cost being borne proportionally by each owner based on the distance of the access point of their allotment to the public road.

Note: Council considers 3 to be the maximum number of benefited lots for practical management, control and maintenance of private Right-of-Carriageways. Planning and Development Staff are able to assess and determine under delegation. In special circumstances a maximum of 5 benefited lots may be considered. An application proposing 4 to 5 benefited lots would be assessed and determined by Council.

ACCESS TO RURAL PROPERTIES – LAND SUBDIVIDED FOR AGRICULTURAL PURPOSES

General

Council acknowledges that a subdivision which creates land for sale to another owner may not, in some circumstances, warrant the construction of an independent access to that allotment in accordance with the provisions in this chapter relating to *Access to rural properties-general*. This is particularly the case when a subdivision is undertaken for agricultural purposes.

Performance Outcomes:

1. All created allotments have legal access.
2. Adequate physical access is available to a new allotment, being an allotment created for agricultural purposes.

Acceptable Solutions:

1. Each allotment created has legal access to a public road or Crown Road either through direct frontage, a right-of-way arrangement, or by consolidation with an existing allotment that has such access.
2. A covenant is provided on the title to any allotment created (that does not have constructed physical access provided or already available at the time of creation) to require the construction of such access at such time as the allotment is no longer in the same ownership as a directly abutting allotment.

3. Any such access is constructed prior to transfer of title, and in accordance with the provisions of *Access to rural properties-General. Note: this includes provisions relating to rights-of-way, where relevant.*

RURAL DWELLINGS

General

Council will give consideration to applications for rural dwellings either as a "right to build" application, or a full application including full design details of the dwelling. Where a more limited "right to build" application is lodged, Council would issue any development approval as a "deferred commencement" approval. This would require additional information to be lodged, prior to acting on the consent.

Note Regarding Deferred Commencement

Under the current planning laws, there is no "as of right" permission to build a dwelling on rural land. Council is prepared to consider approving a dwelling, without the full details of the actual building, under the circumstances outlined in these guidelines. This process allows Council to be confident that the site selected for a dwelling is appropriate, whilst deferring the detailed design matters to a later stage. If, following an approval, an applicant wishes to proceed to construct the dwelling, additional information is required to be submitted, prior to the work commencing, to satisfy the requirements under the deferred commencement conditions applying to any development approval. Consents for a dwelling, if issued, last for 5 years. By that time, applicants would need to have achieved "physical commencement" of the project, although it need not be fully complete. Planning laws can and do change. If, therefore, there is an expectation that applicants will be able to build on land, under the current plan, they should secure that right through this process.

Note Regarding Permissibility

A dwelling must be permissible with consent under Moree Local Environmental Plan (LEP) 2011 on the land. This means the dwelling must either meet the minimum requirements for the size of land under the LEP or must be permissible with consent under the "existing holding" provisions in the LEP. Applicants are advised to seek legal advice that their proposal is permissible under the LEP prior to submitting an application.

Note Regarding Consultation

Prior to submitting an application, applicants are advised to consult with any neighbours regarding the proposed dwelling site.

Basic Information to be Provided **– All Applications**

The following information provides a guide to the minimum information requirements that Council will need to assess the application. Additional information required to assess a dwelling in detail are indicated with an *.

1. An extract of a topographic (or similar) map showing the property (including the allotment proposed for the dwelling and any holding/overall property boundary), the location of the dwelling and the location of powerlines.
2. Evidence of the size of the allotment, property and/or holding (e.g. copy of the Deposited Plan, title certificates or similar).
3. The location of the proposed access road to the dwelling, and its proposed point of connection with the public road network *(Note: this point of connection must comply with the Moree LEP 2011 and must comply with the access requirements for rural properties).*

4. A site location that is not within 100m of a medium or high hazard bushfire area as shown on the plans held by Council or, for areas outside these areas, compliance with this DCP's requirements for low hazard bushfire areas.
5. The location of the dams, streams and the like.

Additional information

(where full dwelling design approval is being sought or to satisfy a deferred commencement condition):

1. Details of the dwelling including plan and elevation, drawn to an appropriate metric scale, and indicating north point.
2. Details of water supply including source of supply and, where that is from a tank, details of calculations so as to ensure that water supply will be adequate to serve the dwelling. Water supply information also needs to address either "Planning for Bushfire Protection" requirements or Council's DCP requirements for "Low Hazard Bushfire Areas" as appropriate.
3. Details of waste disposal, including type of system.
4. Submission of a BASIX assessment.

Performance Outcomes:

1. Dwelling sites are identified and are provided with safe connection to the public road network.
2. Visual and other impacts on neighbours are minimised.
3. Adequate area exists for on-site waste disposal
4. Dwellings are located so as to take advantage of any favourable microclimates.

Acceptable Solutions:

1. The dwelling is not within 130m of a public road.
2. The dwelling is not within 50m of the boundary to an allotment where that allotment is used primarily for residential purposes.
3. The dwelling is not within 150m of the boundary of an allotment which is primarily used for agricultural purposes *(Note that for land under cultivation, or suitable for cultivation, particularly of cotton, a preferred distance is 300m. Note also that in calculating setback distances, the widths of roads, rivers etc. can be taken into account).*
4. The dwelling complies with the bushfire standards indicated earlier in this DCP.
5. The dwelling complies with the flood provisions of this DCP. *(Note: Flood mapping is not available for all parts of Moree Plains Shire. Applicants should consult Council prior to lodgement of an application to ascertain what flooding information is available.)*
6. Access to the dwelling from the public road network complies with the provisions of this DCP relating to access to rural properties.
7. The dwelling is not located within 200m of a creek, dam or watercourse. *(Note: This is to ensure that on-site disposal of waste – e.g. septic – is not located where there is a risk of contamination of waterways).*
8. The dwelling is not located within 300m of
    a) Old sheep and cattle yard sites

b) Old livestock dip sites

c) Orchard areas

d) Disused mining areas

e) Cotton growing

9. The dwelling is not located within the buffer area of an approved feedlot or other similar operation.

Alternative Approaches and Design Suggestions:

1. Variation to acceptable solutions would need to be supported by a comprehensive statement of environmental effects which addresses the performance outcomes sought for rural dwellings and which demonstrates that the acceptable solutions are unreasonable or unnecessary in the circumstances of the case.

10. NOTIFICATION POLICY

ABOUT THIS CHAPTER OF THE DCP

Outline

This chapter of the DCP:

1. Supplements the provisions of the Moree Plains LEP 2011.
2. Provides policies and guidelines on the notification of Development Applications.

Purpose

This chapter of the DCP outlines Council's policy for community notification in the assessment of development applications and the formulation of development guidelines and policies. The chapter also outlines the necessary procedures involved in carrying out such notification.

Principal Aims

This chapter of the DCP has the following aims - to:

1. Set out Council's requirements for the notification of development applications and formulation of guidelines and policy.
2. Provide for public participation in the consideration of applications that may detrimentally affect the enjoyment of property or the public interest.
3. Ensure the community is consulted during the formulation of guidelines and policies.
4. Ensure that policy formulation is undertaken in a wider and more informed context.
5. Allow for a reasonable time for inspection and making submissions on applications while recognising the obligations of the Council to determine applications within prescribed periods.
6. Provide a direct avenue of access to the application process by affected residents and owners who wish to express their concerns about proposals to Council staff, Councillors or relevant Council Committee.
7. Set out matters for which the Council will have regard when forming its opinion as to whether or not the enjoyment of adjoining land may be detrimentally affected by a proposed development.
8. Specify the circumstances when notification is not required
9. Detail the form that notification will take and an applicant's responsibility to provide a notification plan.

Structure and Use of this Chapter

This chapter is divided into the following parts:

1. About this chapter - Outlines the purpose, principal aims, statutory context and contents of this Section.
2. Notification Procedures and Guidelines - This sets out the level of public consultation required for various development applications. Detailed guidelines regarding public notification procedures are also provided.

3. Advertised, Integrated Development and Designated Development - This deals specifically with the notification and advertising requirements of the above categories of development.
4. Policy Formulation - Outlines the community consultation guidelines that must be followed when formulating a range of planning policies. These guidelines have been set to ensure that policy formulation is undertaken in a wider and more informed context.

NOTIFICATION PROCEDURES AND GUIDELINES FOR APPLICATIONS

This chapter provides detailed guidelines on procedural processes that must be followed when notifying the community of applications. This plan provides for two levels of public consultation that an application may be subject to; these are notification and advertising.

Notification of Applications

Adjoining landowners will be given notice of an application if, in the opinion of the Planning and Development Department, the enjoyment of land adjoining the development may be detrimentally affected by the proposed development.

The following issues are considered in forming an opinion as to whether or not the enjoyment of land may be detrimentally affected by a proposed development:

1. The views to and the views from the land.
2. Overshadowing of the land.
3. The privacy of the land.
4. The likelihood of the land being detrimentally affected by the proposed use, such as noise, odour or other polluting emissions.
5. Proposed hours of use for the development.
6. The scale or bulk of the proposed development.
7. The siting of the development in relation to site boundaries.

Upon the lodgement of an Application, the Planning and Development Department will determine who may be detrimentally affected in terms of the matters to be considered.

Note: *Council may also broaden the extent of notification following any inspection of the development site, or increase the length of notification.*

Applications Which will Not be Notified

The following Applications will not be notified:

Exempt and Complying Development:

1. Exempt or complying development as set out in State Environmental Planning Policy No. 60 Exempt and Complying Development

Subdivisions:

1. Minor boundary adjustments, which do not require physical works,
2. Strata subdivision proposals

Commercial or Industrial Uses:

1. The change of use of buildings (in a commercial and industrial zone), except at Council's discretion.

Houses and Extensions:

1. Detached single- storey dwellings in a Residential Zone (other than second-hand dwellings).
2. Ancillary structures associated with residential developments, including carports, pergolas, garden sheds and the like, which are sited 1 m from any boundary, sited behind or in-line with the existing building line and comply with Council's building setbacks.
3. Alterations to an existing residential building where the works will not result in any change to the height, external configuration or external façade of the existing building;
4. Single rural dwellings on properties of greater than 10 hectares, where the proposed dwelling is located a minimum of 20 m from the boundaries of the property,
5. Alterations and extensions to rural dwellings on properties of greater than 10 hectares, where the proposed dwelling is located a minimum of 20 m from the boundaries of the property.
6. Rural workers accommodation on properties greater than 100 hectares where the proposed accommodation is located a minimum of 20 m from the boundaries of the site.

Swimming Pools:

1. Private swimming pools.

Persons to be Notified

Written notice of a Development Application will be sent to those persons who appear to the Council to own or occupy adjoining land and neighbouring land if, in the Council's opinion, the enjoyment of the land may be detrimentally affected by the development proposal. This could include land opposite or otherwise distanced from the application site.

Other Referrals

Certain Development Applications will attract a need for notification of other government authorities and the seeking of their comments.

Notice will also be given to relevant Councils listed below, if the proposed development is located in proximity to the Local Government Area boundary.

1. Narrabri Shire Council
2. Walgett Shire Council
3. Gwydir Shire Council
4. Goondiwindi Regional Council (Queensland)

In the case of an Integrated Development Application, the application is to be referred to the relevant authority in accordance with Clause 52A of the Environmental Planning and Assessment Regulation 2000.

NOTIFICATION OF AMENDMENTS PRIOR TO DETERMINATION AND MODIFICATION APPLICATIONS UNDER S96

Amendments Prior to Determination

An applicant may make amendments to an application at any time before its determination, subject to Council's acceptance of those amendments. In these circumstances, Council will re-notify:

1. Those persons who made submissions on the original application; and
2. Any persons who own adjoining or neighbouring land (including those persons who were previously notified of the application) who may in the opinion of the Planning and Development Department potentially be detrimentally affected by the proposal as amended.

NOTE: If re-notification is required, further sets of plans for this purpose must be provided by the applicant.

Modification of an Approval under Section 96

An applicant may lodge an application to modify an approval (under Section 96 of the Environmental Planning and Assessment Act 1979) if Council is satisfied that the development, as proposed to be modified, remains substantially the same development as that originally approved. Council will re-notify persons who made submission on the original application and any persons who own adjoining or neighbouring land only where in the opinion of the Planning and Development Department those persons could be detrimentally affected by the proposal as amended.

Submissions received in relation to the modified proposal will be considered in Council's assessment of the application.

NOTIFICATION PERIOD

A person may inspect a plan and make a submission within the notification period which will be a minimum of 14 days unless a longer period is specified by the Planning and Development Department or Council.

NOTE: For "advertised" and "designated development" the length of the notification period varies and will be in accordance with the advertising requirements of the Environmental Planning and Assessment Regulations (2000), unless a longer period is determined by the Planning and Development Department or Council.

FORM OF SUBMISSIONS FROM PERSONS NOTIFIED AND THE GENERAL PUBLIC

Submissions made in respect of applications must be in writing and addressed to the General Manager. Submissions must clearly indicate the name and address of the person making the submission and details of the proposal to which the submission relates. Should an objection be part of the submission, the reasons for the objection are to be provided. All submissions are to be accompanied by a form declaring any donations or gifts to an elected member of Council or a Council staff member (as set out in the form available for such declarations available from Council or Council's website).

Note: Information regarding the making of a submission shall be provided with the notification letter.

CONSIDERATION OF SUBMISSIONS

Council will consider all submissions received within the specified time period before determining a Development Application. In making a determination the content of a submission must be balanced with the Council's statutory obligations. Submissions form a part of the assessment of an application and each application will be assessed on its merits.

APPLICANT TO BE ADVISED OF OBJECTIONS

Written submissions cannot remain confidential as they may be used to assist in negotiations with the owner/applicant of the proposal or be included in Council business papers. The applicant, on request, will be advised of the terms of any objection and is entitled to read all submissions received. Where applications are amended in response to objections received, comments may be sought from previous objector/s.

NOTIFICATION OF DETERMINATION

Following determination of an application each person who made a submission will be advised in writing of Council's decision in determining an application as soon as practical.

ADVERTISING AND NOTIFICATION COSTS

The applicant shall pay the Council a fee in accordance with Council's adopted Schedule of Fees and Charges to cover the cost of advertising and notification of the application and any amendment or modification of it.

INTEGRATED, DESIGNATED DEVELOPMENT AND OTHER CATEGORIES OF DEVELOPMENT

Statutory notification requirements exist under the Environmental Planning and Assessment Act 1979, (EPA Act) for certain categories of development such as:

1. Integrated Development.
2. Designated development.
3. Other types of Approvals, including assessment of "activities" under Part 5 of the EPA Act.

These must be advertised and exhibited in line with the requirements as outlined in the EPA Act and the Regulations.

NOTE: The requirements of the Act and Regulations are mandatory.

Integrated Development

This is defined as a category of development (not being Exempt or Complying) that, in order for it to be carried out, requires development consent and one of more approvals set out in Section 91 of the EP&A Act 1979.

Public Notification and Exhibition

The advertising and exhibition period is 21 days. Written notice is to be provided to neighbouring owners surrounding the application site. The written notice shall contain all information as outlined in the Regulations to the Act. The relevant government authority is to be

forwarded a written notice of application and notification plan within 2 days of receiving the application. The notice shall also clearly state that the application is an Integrated Development.

Designated Development

Designated Developments are developments, which have major impacts on the environment. Schedule 3 of the EPA Regulations outlines what types of Development are classified as Designated Development.

Public Notification and Exhibition

The advertising and exhibition period is 30 days. Written notice is to be given to neighbouring owners surrounding the application site. The written notice shall contain all information as outlined in the Regulations to the Act. The relevant government authority is to be forwarded a written notice and notification plan. The notice shall also clearly state that the application is a Designated Development. Notice must include:

1. A minimum of 2 public notices in a local newspaper circulated in the area;
2. Notification sign placed on the property (application site).

Other types of Approval

"Activities" under Part 5 of the EPA Act and Part 5 Environmental Impact Statements must be notified and exhibited in accordance with the requirements of the EPA Act and Regulations (Section 113(1)).

Public Notification and Exhibition

The advertising and exhibition period is not less than 30 days and advertising must include:

1. A minimum of 2 public notices in a local newspaper circulated in the area.

COUNCIL POLICIES

Where Council has resolved to prepare Policies or Development Guidelines relating to the functions of the Planning and Development Division, the following notification procedures must be undertaken:

Public Notification and Exhibition

The advertising and exhibition period is 28 days and notification shall include:

1. Public notice in local newspaper circulated in the area. As a minimum, the notice must be placed in the newspaper on 2 separate occasions during the exhibition period.
2. Publicly exhibit at the places, on the dates and during the times set out in the notice. The following information must also be placed on display:
    a) A copy of the draft Policy;
    b) A copy of all related information.
3. In the case of Plans of Management, a copy of the POM must be forwarded to the relevant trust or board responsible for the care and control of the area, for comments prior to the Plan being placed on public exhibition. The Trust / Board is to be given 21 days to review the document and provide their comments.

SECTION 94 CONTRIBUTIONS PLAN

Where Council has resolved to prepare a draft contribution plan, the following notification procedures must be undertaken:

Public Notification and Exhibition

The advertising and exhibition period is 28 days and notification shall consist of:

1. Public notice in local newspaper circulated in the area. As a minimum, the notice must be placed in the newspaper on 2 separate occasions during the exhibition period.
2. Publicly exhibit at the places, on the dates and during the times set out in the notice. The following information must also be placed on display:
    a) A copy of the draft Plan;
    b) A copy of all related information.

WORKSHOPS

If substantial interest is generated from the public exhibition of a draft development control plan, or draft policy, then a workshop may be held to discuss relevant issues.

The reason for the workshop is to provide:

1. An opportunity to explain draft Development control plans/ policies;
2. Community concern can be discussed; and
3. Conflicts can be identified and possibly resolved.

The following procedures will be followed when organising a workshop:

1. Usually workshops are attended by Councillors, Council staff and interested parties.
2. Workshops are required to be publicly notified in a local newspaper at least seven (7) days prior to the meeting. Persons who make submissions in regard to a policy will be individually invited by letter to attend the workshop.

The need for a workshop must be identified early in the process. The following matters should be considered:

1. Interest in the DCP or policy;
2. History of concerns by community over issues addressed in DCP or policy;
3. Level of interest shown during the exhibition process.

11. GATEWAY PRECINCT

ABOUT THIS CHAPTER

The Gateway Precinct encompasses land bounded by the Newell Highway, Moree airport, and includes land to the North of Blueberry Road.

This chapter of the DCP has been prepared as a guide to applicants developing within the Precinct and provides additional details for the design of development including both within the private and public realm. New development in the precinct should respond to the precinct's unique characteristics and the vision set out for its development.

AIMS AND OBJECTIVES

- To outline a coherent vision for the development of the precinct;
- To implement a master plan to guide overall development within the precinct;
- To provide visual coherence to the precinct that responds to appropriate design references, including airport and water theme references;
- To manage potential land use conflicts;
- To detail specific controls in relation to the public and private domains, to achieve the above aims and objectives.

WHERE THIS CHAPTER APPLIES

This Chapter applies to the area as shown in Figure 1, over. This Chapter is to be read in conjunction with the provisions of Chapter 2: Parking, and Chapter 5: Commercial use of footpaths from Moree Plains DCP 2013.

THE VISION

The vision for the Precinct is the creation of a new commercial, industrial and tourism centre for Moree and the surrounding region which makes a positive and iconic entry statement at the southern end of the town. The Precinct seeks to promote and establish high standards of design and development so as to ensure both visual and functional cohesion and an excellent standard of public presentation. As a key gateway to Moree township, the design vernacular the precinct should draw on both airport and water references, drawing on the theme of Moree as a "water place". Within this context, development is encouraged to be of contemporary and innovative design. Landscaping provides a lush setting and should contribute to a visual design of flowing lines and curves, to complement the water references.



Figure 10.1 Moree Gateway Precinct location plan

PRECINCT - DESIGN AND LAYOUT

Introduction and General Provisions

The overall precinct design and lot layout provides the framework for individual site development. This needs to provide some flexibility for the development of individual sites, while retaining overall integrity.

Aims:

- To guide the layout of roads and sites within the Precinct so as to promote good site functioning and visual presentation;
- To locate and provide for development types which are compatible with surrounding land uses.

Performance Outcomes:

- The layout of roads and buildings provides for integration within the precinct, without relying on the Newell Highway for connectivity between sites;
- Access points to the Newell Highway are minimised, and effective use is made of Blueberry Road as the core access to the site;
- A boulevard treatment is provided to Blueberry Road where the precinct extends across both sides of the road;
- Street design provides for excellent traffic flow and connectivity to the different parts of each Precinct and provide for adequate servicing to the rear of properties;
- Road widths ensure that vehicles are able to manoeuvre on and off sites;
- Car parking is functional, and located appropriately for the purpose of the building;
- Where feasible and appropriate, conjunctive use of car parking areas is facilitated;
- Development respects neighbouring development by arranging sites and uses of areas so as to minimise amenity impacts on adjoining sites, and to ensure visual compatibility between sites;
- Development considers the impacts of adjoining existing uses and provides appropriate mitigation against any impacts;
- Provision is made, where possible, for future expansion of individual developments within sites;
- Uses are grouped according to function within appropriate sub-precincts, taking into account adjoining and nearby landuses;
- Appropriate provision is made for an integrated approach to drainage and water management within each sub-precinct;

Acceptable Solutions:

- Roads and allotments are located consistent with the Site Masterplan, as shown in Appendix 1;
- Road sizes (road reserve, carriageway and foot paths) are consistent with Appendix 5 and Appendix 6;
- Uses are consistent with the preferred uses as outlined on the Site Masterplan;
- Future potential development areas are shown on the plans for individual developments;
- Uses are consistent with the identified uses in the Site Masterplan for each precinct and site;

Alternative Approaches and Design Suggestions:

Use of a registered architect experienced commercial designer is recommended. Variations to the Site Masterplan layout would be considered on merit provided that achievement of the performance solutions and vision for the precinct is clearly achieved, and that conflict with adjoining landuses is managed.

PRECINCT - LANDSCAPING

Introduction and General Provisions

Precinct landscaping provides one of the key integrative elements of the site. In particular, it provides the backbone or framework within which individual site landscaping occurs, so that there is integrated and feel to landscaping across the public and private realm. Landscaping of detention basins, including, if possible, the introduction of water features, is encouraged.

Aims:

- To implement professionally designed Precinct landscaping in the public realm as part of precinct development.
- To provide a lush landscape backbone and framework for individual site landscaping.

Performance Outcomes:

- To develop precinct landscaping in the public realm which establishes an informal character to the Precinct, and which is of low maintenance and is drought tolerant while projecting an image of lush vegetation and which assists to mitigate offsite impacts;
- To implement as part of precinct development consistent hard landscaping elements and street furniture which complement the overall theme and vision;
- To ensure that the landscape elements are in scale with the intended scale of buildings and development for the Precinct;
- To ensure that drainage design, in particular detention basins, is integrated into the overall public realm landscaping treatment.

Acceptable solutions:

- Landscaping is constructed in accordance with the Landscape Masterplan for each sub-precinct;
- Landscaping utilises species from the species list in the Appendix to this Chapter, or other suitable native species; landscaping utilises suitable non-native species where they are in accordance with the Performance Outcomes;
- Street furniture including streetlights etc are visually consistent with the existing airport streetlights and street furniture is of robust simple design utilising materials such as hardwood and galvanised steel.

INDIVIDUAL SITE DEVELOPMENT – BUILDINGS

Introduction and General Provisions

Buildings need to fit within their site, and work with their neighbours. They are the main built element that sets the "tone" for the Precinct as a whole. The challenge is to provide common visual themes to "link" buildings to the Precinct design while still providing for individuality. Building design and treatment also need to respond to the overall precinct context, including issues such as noise and dust arising from existing development.

Aims:

- To enhance and develop precinct character;
- To ensure that building scale and location is appropriate to the site;
- To ensure the provision of appropriate car parking;
- To provide a framework for the visual treatment of buildings and landscaping;
- To ensure buildings provide appropriate amenity in the context of surrounding landuses

Performance Outcomes:

- The development of individual sites provides for interconnectivity between sites, adequate car parking that is shared with other adjoining uses where feasible, good visual separation between buildings, good presentation to the public realm and generous landscaping which complements landscaping in the public realm.
- Appropriate solutions are implemented to address amenity issues such as noise and dust.

Acceptable Solutions:

- The development of individual sites is consistent with the site access, building location, setbacks, sizes and car parking layouts outlined in the Site Masterplan;
- Building heights are within the limitations of the Height Obstacle Limitation Surface and height limits associated with the Moree Metrological Station;
- Buildings do not exceed 8 m in height or 50% of the shortest building frontage, whichever is the greater;
- Buildings on corner allotments address both street frontages;
- Buildings have an active facade orientated towards the Newell Highway, where the site directly adjoins the highway;
- Service areas (e.g. loading docks, etc, are located so that any similar facilities on adjoining land can be located adjacent;
- Buildings are designed and treated in accordance with "*Development near rail corridors and busy roads – interim guideline, NSW Department of Planning 2008*" or any subsequent good practice guideline

INDIVIDUAL SITE DEVELOPMENT – ARCHITECTURAL TREATMENT

Introduction and General Provisions

Architectural treatment needs to work with the overall built form as an integrated whole. Detailing needs to be intrinsic and natural rather than "added on".

Aims:

- To ensure that the architectural presentation of buildings is consistent with the Vision for the precinct, and is of high architectural quality.
- To provide specific controls for large buildings (above 300 m²) and small buildings (300 m² or smaller).
- To implement the "waves and curves" theme identified for the precinct.

Performance Outcomes:

- Buildings are architecturally designed, and while of contemporary design, draw on the vernacular associated with airport hangers and / or the curves and flowing lines which may be associated with water;
- Building materials and colours contribute to common themes throughout the Precinct, while still providing for individual expression and design statements;
- Building detailing avoids excessive ornamentation;
- Main entries are clearly delineated and are protected by verandas or awnings;
- Service areas and facilities are functional and well screened from public view;
- Buildings utilise energy efficient principles in orientation, materials and services.

Acceptable Solutions:

- Buildings reference the exemplar forms provided in the Appendix to this Chapter. Buildings are to reference water / marine or airport hangar forms;
- Exterior walls of large buildings utilise standing seam, corrugated sheet and metal panels;
- Exterior walls of smaller buildings use face brick or timber claddings;
- For large buildings, other finishes (except glass) are restricted to 15% of the building façade;

- Colours of metal sheeting are drawn from those outlined in the Appendix to this Chapter. No more than three colours are utilised on each building;
- Roof forms for buildings are drawn from curved profiles;
- Roofing uses sheet metal roofing, of medium to low reflectivity;
- Service areas are screened from public view;
- Services such as air-conditioners are screened from public view and are not roof mounted, except in the case of renewable energy facilities;
- Low energy lighting, appropriate installation and light colours are utilised together with maximising the use of natural light;
- Cooling is by means other than refrigerated air-conditioning;
- Rainwater tanks are provided, and are utilised for the flushing and other non-potable uses including landscape watering;
- Glass areas are integrated with the overall building design and minimise heat transmission;
- A veranda or awning is provided to the main public entry.

Alternative Approaches and Design Suggestions:

Design approaches will be considered on merit against the performance outcomes. Innovative curvilinear roof forms are encouraged.

INDIVIDUAL SITE DEVELOPMENT – LANDSCAPING

Introduction and General Provisions

Landscaping of individual sites provides a complement and context for buildings. Landscape design should be considered as part of the overall site design including the building design, and not as an "add-on". The intent is to provide a lush landscape context for the overall area, which includes individual sites. The use of water features is encouraged.

Aims:

- To ensure that a consistent approach is taken to landscaping across the public and private realm, which achieves the overall vision and that landscaping on individual sites is attractive and safe.

Performance Outcomes:

- Individual site landscaping is professionally prepared and continues the style and theme of public realm landscaping onto private lands;
- Landscaping is lush, drought tolerant, of low maintenance, and maintains an informal theme;
- Canopy trees are provided in-scale with buildings on the site, and partially screened these from the public realm vistas;
- Canopy trees are provided in car park areas, so that at maturity at least one third of spaces are shaded in summer;
- Landscaping addresses CPTED principles by minimising opportunities for antisocial behaviour and maximising visibility;
- Landscaping together with appropriate fencing is used to screen service areas, Power transformers, rubbish bin areas, plant and equipment and the like;
- Fencing styles are restrained and contribute to an informal "feel";
- High fences are minimised and used only where necessary for security reasons;

Acceptable Solutions:

- Landscaping plans are prepared by a qualified landscape architect with experience in the climatic conditions and soils of the Moree area;
- Landscaping utilises the species list from the Appendix to this Chapter or other suitable native species;
- Landscaping utilises suitable non-native species where they are in accordance with the Performance Outcomes;
- Clean limbed species are used for canopy trees;
- Shrubs and ground covers are below 1 m in height at maturity;
- Planting groups are in odd numbers, and ranged informally;
- Fencing styles are selected from the exemplars in the Appendix to this Chapter;
- Water features are provided.

Alternative Approaches and Design Suggestions:

Water features can be small scale, and/or integrated with drainage needs of the site.

SIGNAGE

Introduction and General Provisions

Signage needs to strike a balance between attracting the eye and not being visually dominant. Proliferation of signage contributes to visual clutter and detracts from the visual presentation of the Precinct. Signage should be focused on business identification and not product promotion. Where product promotion occurs this should be secondary to business identification. Signage is managed under the provisions of State Environmental Planning Policy No. 64 (SEPP 64). Where an application is provided for under SEPP 64 this DCP Chapter provides controls that will be followed in the assessment of applications.

Performance Outcomes:

- As set down in SEPP 64

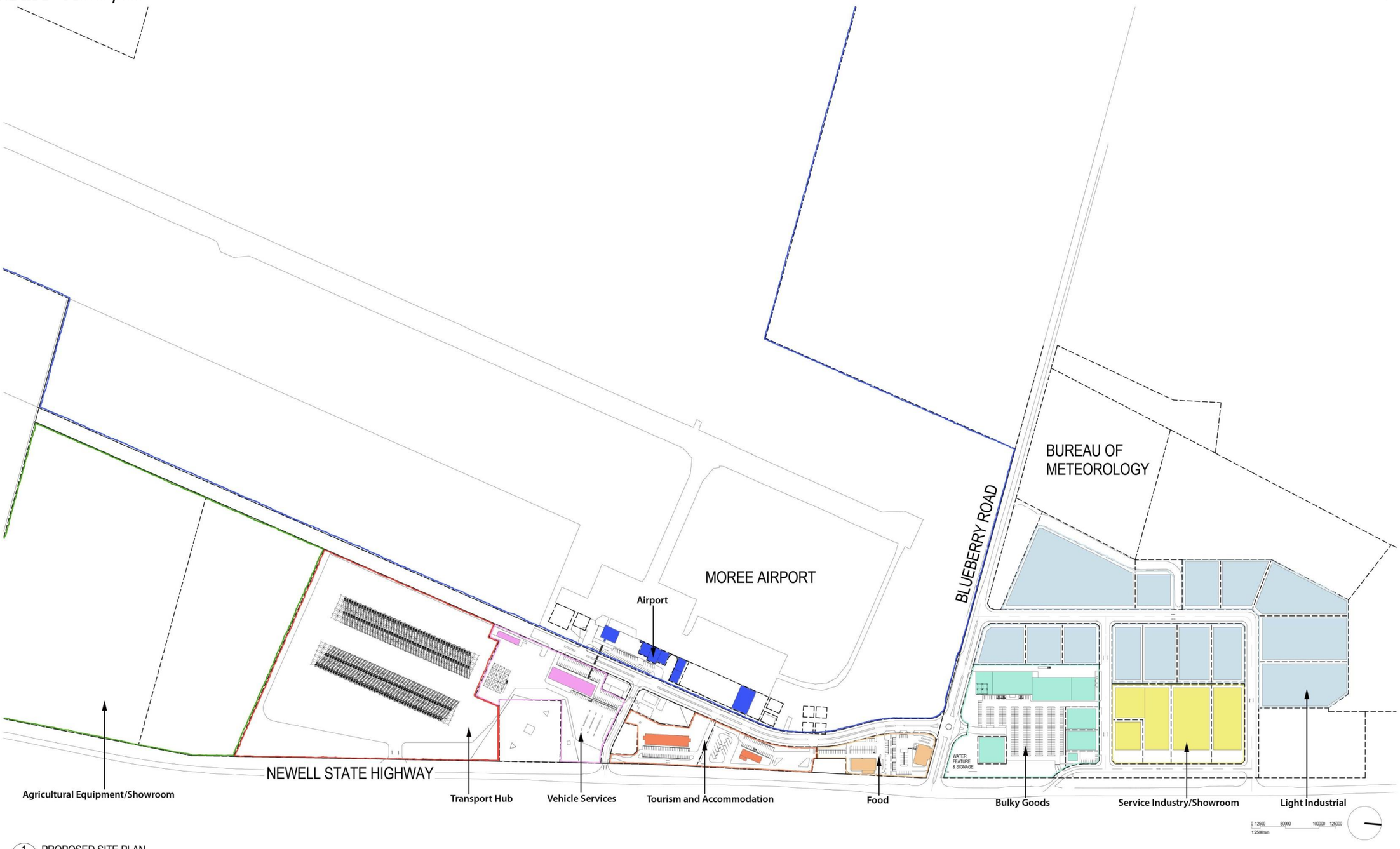
Acceptable Solutions:

- No more than one free-standing business identification sign per site per road frontage;
- Where more than one business occupies a site, a single free-standing business identification sign is to be used;
- No more than one business identification sign per façade;
- No more than one promotional sign per building;
- Internal illumination rather than external illumination is to be used for illuminated signs.
- Free standing signs not to exceed 8m in height.

Alternative Approaches and Design Suggestions:

Signage should be integrated in appearance with the building. It should not look like an add-on element.

APPENDIX 1 – Masterplan



1 W2009B PROPOSED SITE PLAN
1 : 2500

MOREE GATEWAY - PRECINCT MASTERPLAN

Moree Plains
P+i
AT&L
Suite 702, 6A Glen Street
Milsons Point NSW 2061
ABN 96 130 882 405
Tel: 02 8920 2466
Fax: 02 9922 5102
www.atl.net.au
info@atl.net.au
SITE IMAGE
woodhead™
Australia 343 Pacific Highway North Sydney NSW 2060 T +612 9964 9500 F +612 9964 9983 ABN 61 007 747 748 Nominated architects: Philip Bowen 4527; Juliette Churchill 5794
Asia
Europe

DRAWING TITLE: SITE PLAN	
PROJECT NAME: MOREE GATEWAY MASTERPLAN	CLIENT NAME: MOREE PLAINS SHIRE COUNCIL
PROJECT NUMBER: 10219002 / SCALE: 1 : 2500 / DRAWING NUMBER: ASK1.020 / DATE: 21.01.13 / REVISION NUMBER: 2	

APPENDIX 2 – Colour Palette

The colour palette below is not exhaustive, but represents key "theme colours" that should be utilised as part of colour schemes for proposals. At least two of the colours should be utilised, including one main colour and one trim colour.

Colours	Type	Red	Green	Blue	Hex
	Main	0	134	192	0086C0
	Main	58	180	227	3AB4E3
	Main	158	212	238	9ED4EE
	Main	153	189	41	99BD29
	Main	166	197	57	A6C539
	Main	215	228	174	D7E4AE
	Trim	0	91	128	005B80
	Trim	1	134	53	018635
	Trim	151	190	13	97BE0D

APPENDIX 3 – Sample Plant Species

Plant species suggested for landscaping may be drawn from the Grassy (Grey) Box Woodland or Coolibah-Black Box Woodland vegetation communities. Species from the Coolibah-Black Box Woodland are more suited to areas that are periodically inundated including detention areas and drainage swales. Common species in these associations are provided in the table below. Species selection should be on advice from a suitably qualified and experienced professional, and not all species listed may be suitable for landscaping purposes. Similar species (in particular local indigenous species) may be substituted as may suitable non-native species.

COOLIBAH-BLACK BOX WOODLAND SPECIES	
Botanical Name	**Common Name**
Acacia pendula	Weeping Myall, Boree
Eremophila maculata	Spotted Fuchsia-bush
Eucalyptus camaldulensis	River Gum, River Red Gum
Geijera parviflora	Wilga

GREY BOX GRASSY WOODLANDS	
Botanical Name	**Common Name/s**
Canopy layer - Trees	
Acacia pendula	Weeping Myall, Boree
Eucalyptus camaldulensis	River Red Gum
Eucalyptus leucoxylon	Yellow gum
Eucalyptus melliodora	Yellow Box
Eucalyptus microcarpa	Grey Box
Mid layer – Shrubs and Small Trees	
Acacia decora	Western Silver Wattle, Showy Wattle
Acacia spectabilis	Mudgee Wattle

Source:
http://www.environment.gov.au/biodiversity/threatened/communities/pubs/66-listing-advice.pdf; http://www.environment.gov.au/biodiversity/threatened/communities/pubs/86-listing-advice.pdf accessed 28 November 2012.

Large Shade Trees - deciduous	
Botanical Name	**Common Name/s**
Ulmus parvifolia	Chinese Elm
Fraxinus raywood	Claret Ash
Jacaranda mimosifolia	Jacaranda
Flindersia australis	Queensland Teak
Pyrus	Ornamental Pears
Koelreutenia	Golden rain
Ficus Hillii	Ficus Hillii
Ficus Flash	Ficus Flash
Olea europaea	Olive
Cupaniopsis anacardioides	Tuckaroo
Brachychiton acerifolius	Illawarra flame
Fraxinus ornus	Flowering Ash

Tall Shrubs	
Botanical Name	**Common Name/s**
Lagerstroemia	Crepe myrtle
Photinia	Photinia
Syzygium	Syzygium
Viburnum	Viburnum
Murraya	Curry Tree
Nandina domestica	Nandina, heavenly bamboo or sacred bamboo
Callistemon	Bottle brush
Hakea laurina	Emu Bush
Eremophila	Emu bush
Melaleuca	Melaleuca
Hibiscus	Hibiscus
Xylosma	Brushhollies, xylosmas and logwoods

Source:
Caroline Osmond of Fork and Spade Nursery, Moree. April 2013

APPENDIX 4 – Landscaping Masterplan



1:3000 @ A1

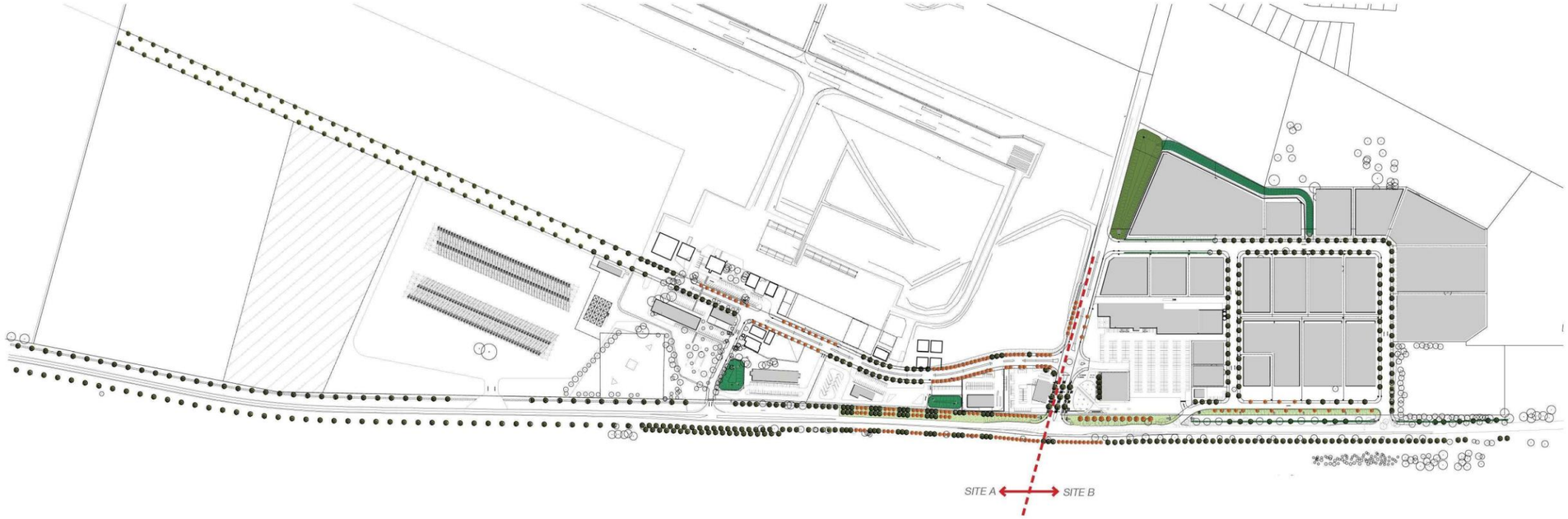
SITE IMAGE
Landscape Architects
Sydney | Melbourne | Ho Chi Minh City

Moree Gateway Development | Landscape Masterplan 1:3000

north

Client Moree Shire Council
Architect Woodhead
Site Image Job Number SS12-2530
Scale 1:3000
Drawing Number SK102
Issue C
Date 12.12.12

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LEGEND

- EXISTING TREE
- TREE TO BE REMOVED
- PROPOSED EVERGREEN TREE
- PROPOSED FEATURE TREE
- HEDGE PLANTING
- SWALE PLANTING
- BASIN PLANTING
- NATIVE GRASS VERGE
- TURF VERGE

1:3000 @ A1

0 10 25 50 100 200m

SITE IMAGE
Landscape Architects
Sydney | Melbourne | Ho Chi Minh City

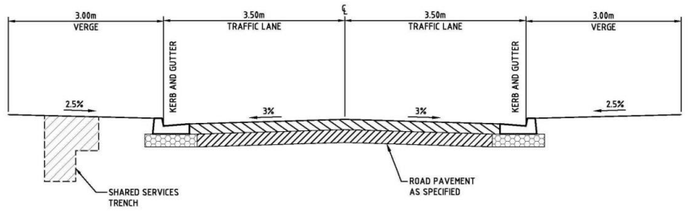
Moree Gateway Development | Landscape Masterplan 1:3000

north

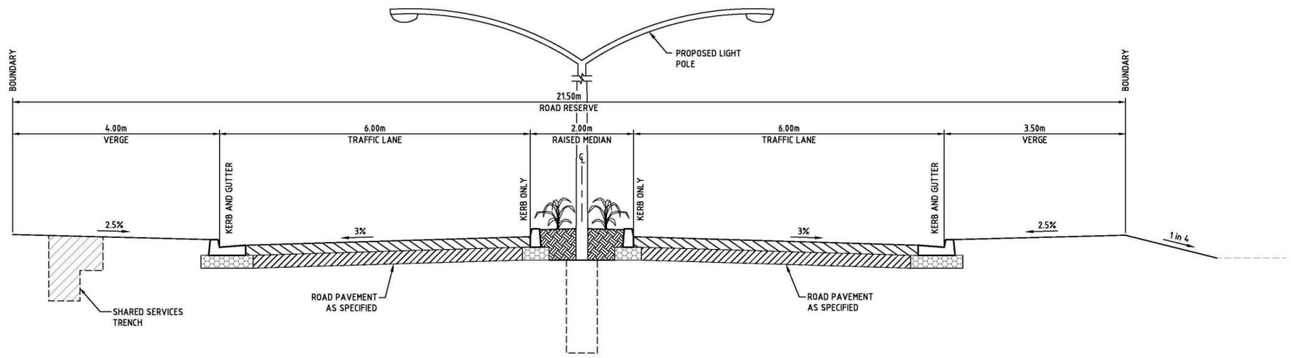
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Architect	Woodhead	Issue	C
Site Image Job Number	SS12-2530	Date	12.12.12
Scale	1:3000		

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APPENDIX 5 – Road Specifications for Site A



AIRPORT DRIVEWAY
TYPICAL CROSS SECTION
SCALE 1:50



AIRPORT ROAD
TYPICAL CROSS SECTION – 2.0m MEDIAN
SCALE 1:50

Issue	Description	Date
A	ISSUED FOR DA APPROVAL	13-12-12
P3	ISSUED FOR REVIEW	12-12-12
P2	ISSUED FOR REVIEW	15-10-12
P1	ISSUED FOR REVIEW	28-09-12

100mm on Original

Bar Scales
0 1 2 3 4 5m
1 : 50

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Scales: 1 : 2000
Grid: MGA
Height Datum: AHD
Drawn: GB
Designed: MM
Checked: AMcL
Approved:

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Project
MOREE GATEWAY
SITE 'A'
CIVIL WORKS

Title
TYPICAL ROAD
SECTIONS

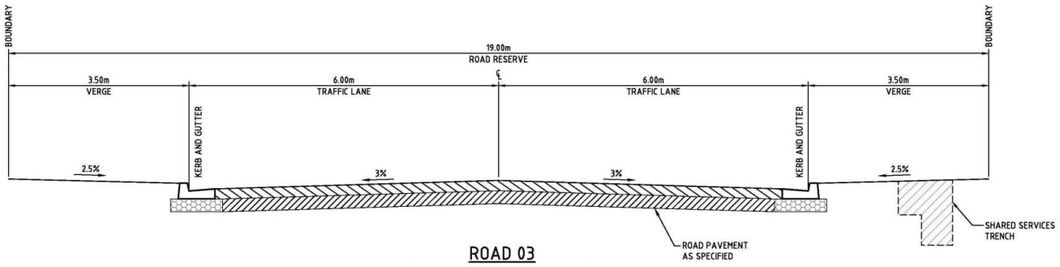
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A1

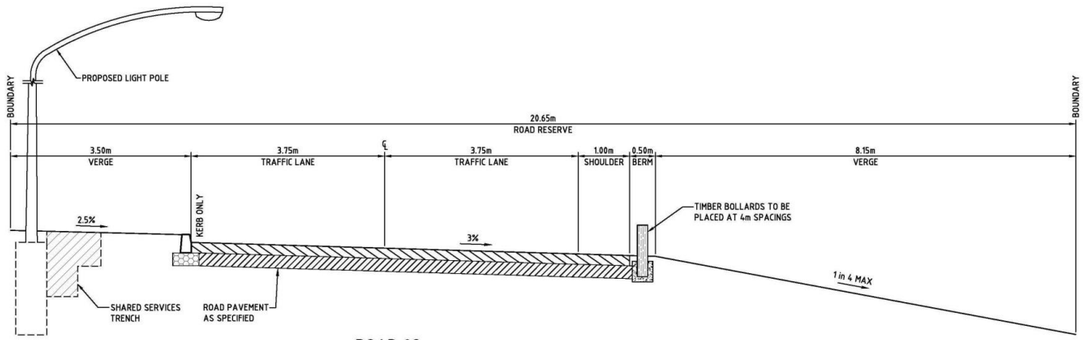
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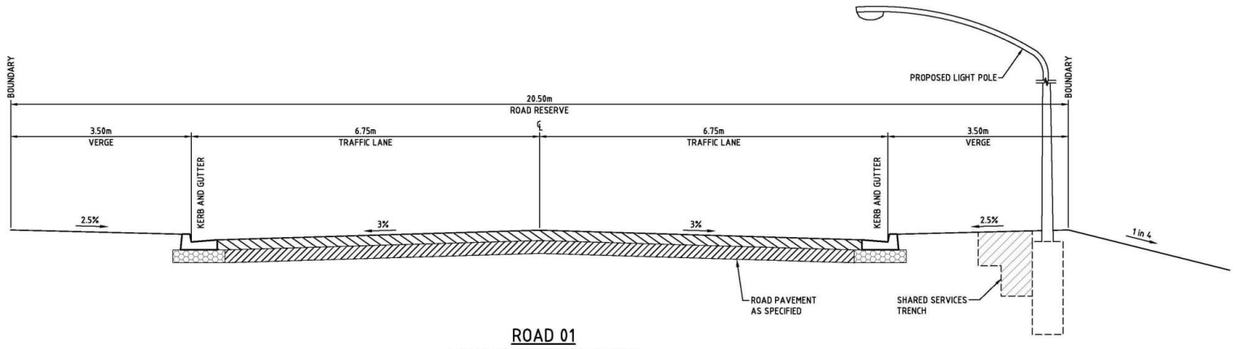
APPENDIX 6 – Road Specifications for Site B



ROAD 03
TYPICAL CROSS SECTION
SCALE 1:50



ROAD 02
TYPICAL CROSS SECTION
SCALE 1:50



ROAD 01
TYPICAL CROSS SECTION
SCALE 1:50

Issue	Description	Date
A	ISSUED FOR DA APPROVAL	13-12-12
P3	ISSUED FOR REVIEW	12-12-12
P2	ISSUED FOR REVIEW	15-10-12
P1	ISSUED FOR REVIEW	28-09-12

100mm on Original

Bar Scales
0 1 2 3 4 5m
1 : 50

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Scales 1 : 50
Grid
Height Datum AHD
Drawn GB
Designed MM
Checked AMcL
Approved

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Project
MOREE GATEWAY
SITE 'B'
CIVIL WORKS

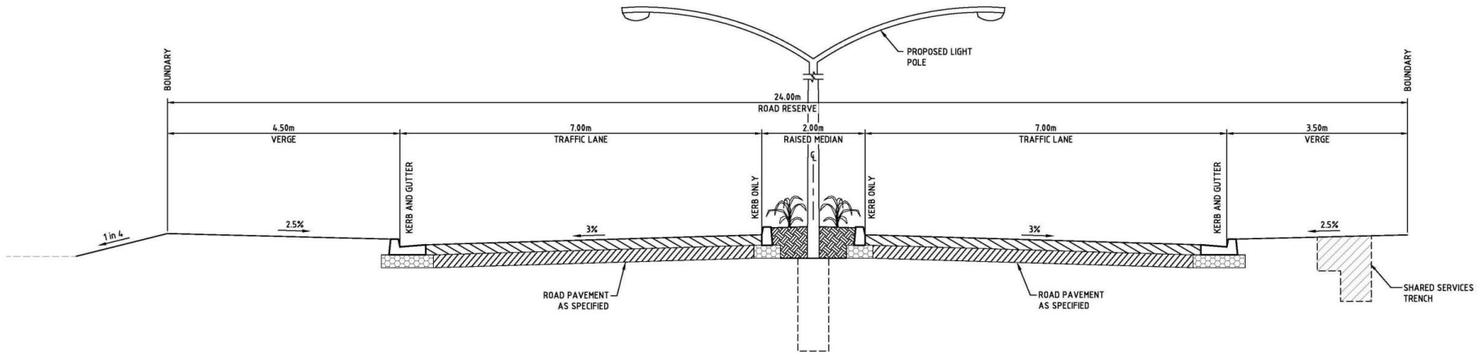
Title
TYPICAL ROAD
SECTIONS
SHEET 1 OF 3

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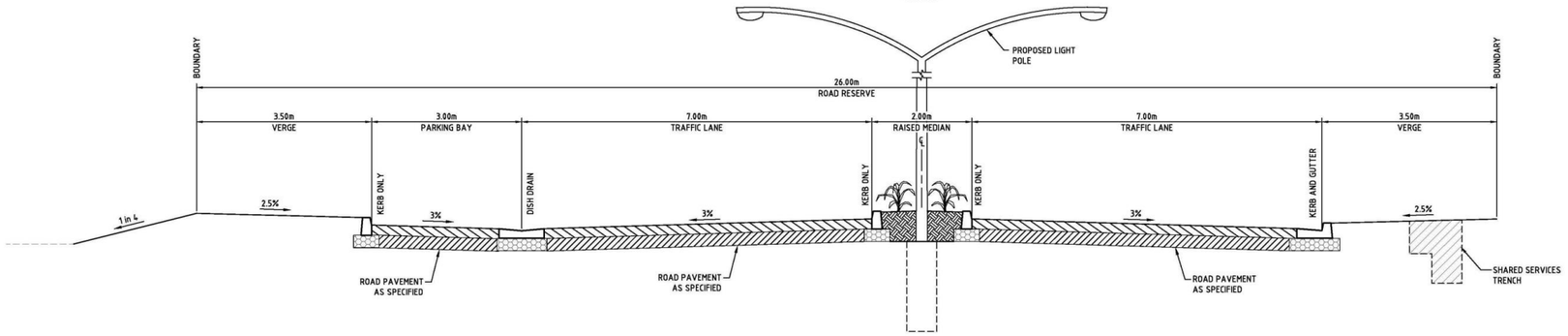
Status FOR APPROVAL
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Drawing No.	Project No.	Issue
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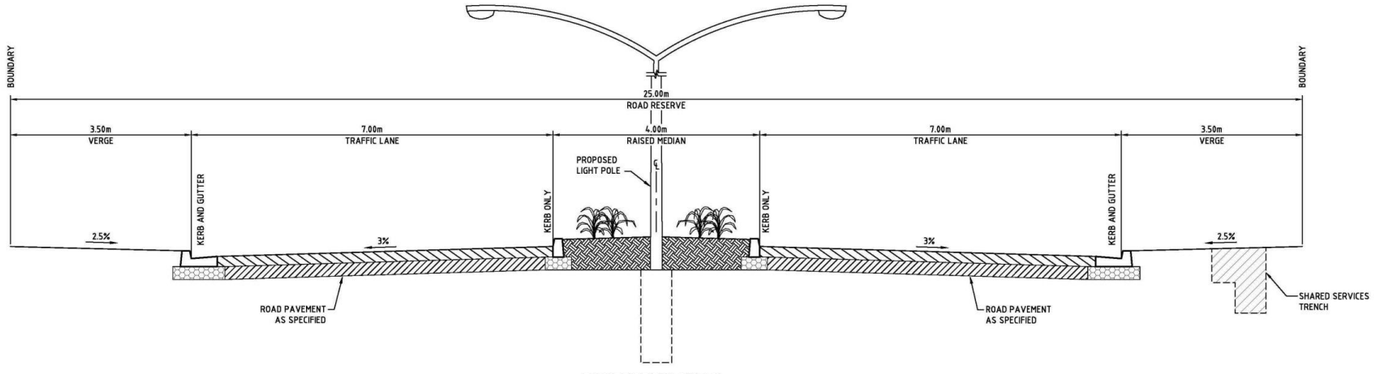
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BLUEBERRY ROAD
TYPICAL CROSS SECTION – 2.0m MEDIAN
SCALE 1:50



BLUEBERRY ROAD
TYPICAL CROSS SECTION – 2.0m MEDIAN WITH PARKING BAY
SCALE 1:50



BLUEBERRY ROAD
TYPICAL CROSS SECTION – 4.0m MEDIAN
SCALE 1:50

Issue	Description	Date
A	ISSUED FOR DA APPROVAL	13-12-12
P3	ISSUED FOR REVIEW	12-12-12
P2	ISSUED FOR REVIEW	15-10-12
P1	ISSUED FOR REVIEW	28-09-12

100mm on Original

Bar Scales
0 1 2 3 4 5m
1 : 50

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Scales 1 : 50
Grid
Height Datum AHD

Drawn	GB
Designed	MM
Checked	AMcL
Approved	

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Project
MOREE GATEWAY
SITE 'B'
CIVIL WORKS

Title
TYPICAL ROAD SECTIONS
SHEET 2 OF 3

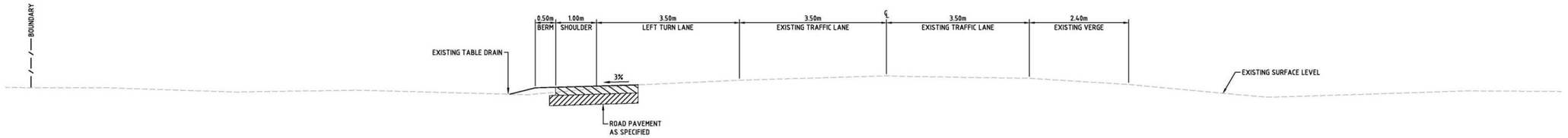
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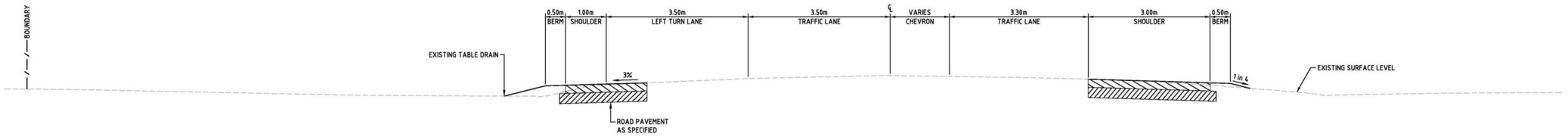
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Drawing No.	Project No.	Issue
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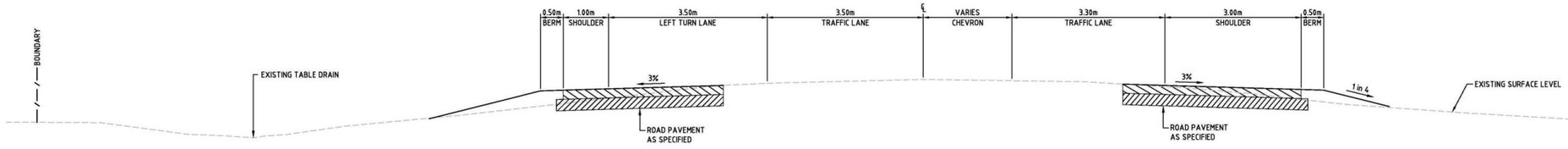
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NEWELL HIGHWAY
TYPICAL CROSS SECTION - CH: 560.000
SCALE 1:50



NEWELL HIGHWAY
TYPICAL CROSS SECTION - CH: 260.000
SCALE 1:50



NEWELL HIGHWAY
TYPICAL CROSS SECTION - CH: 80.000
SCALE 1:50

Issue	Description	Date
A	ISSUED FOR DA APPROVAL	13-12-12
P3	ISSUED FOR REVIEW	12-12-12
P2	ISSUED FOR REVIEW	15-10-12
P1	ISSUED FOR REVIEW	28-09-12

100mm on Original

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1 : 50

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Scales	1 : 50	Drawn	GB
		Designed	MM
Grid		Checked	AMcL
Height Datum	AHD	Approved	

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Project
MOREE GATEWAY
SITE 'B'
CIVIL WORKS

Title
TYPICAL ROAD SECTIONS
SHEET 3 OF 3

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Drawing No.	Project No.	Issue
C007	12-91	A

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